

Shelat and Grover, JJ.

509. All the six writ petitions involve common questions as to the validity of the 24th, 25th and 29th amendments to the Constitution. It is not necessary to set out the facts

which have already been succinctly stated in the judgment of the learned Chief Justice.

510. It was considered, when the larger bench was constituted, that the decision of the questions before us would hinge largely on the correctness or otherwise of the decision of

this court in I.C. Golak Nath and Ors. v. State of Punjab and Anr. [1967] 2 S.C.R. 762,

according to which it was held, by majority, that Article 13(2) of the Constitution was

applicable to Constitutional amendments made under Article 368 and that for that reason

the fundamental rights in Part III could not be abridged in any manner or taken away. The

decision in Golak Nath has become academic, for even on the assumption that the majority decision in that case was not correct, the result on the questions now raised

before us, in our opinion, would just be the same. The issues that have been raised travel

far beyond that decision and the main question to be determined now is the scope, ambit

and extent of the amending power conferred by Article 368. On that will depend largely

the decision of the other matters arising out of the 25th and the 29th amendments.

511. The respective positions adopted by learned Counsel for the parties diverge widely

and are irreconcilable. On the side of the petitioners, it is maintained inter alia that the

power of the amending body (Parliament) under Article 368 is of a limited nature. The

Constitution gave the Indian citizens the basic freedoms and a polity or a form of

government which were meant to be lasting and permanent. Therefore, the amending power does not extend to alteration or destruction of all or any of the essential features,

basic elements and fundamental principles of the Constitution which power, it is said,

vests in the Indian people alone who gave the Constitution to themselves, as is stated in

its Preamble.

512. The respondents, on the other hand, claim an unlimited power for the amending

body. It is claimed that it has the full constituent power which a legal sovereign can

exercise provided the conditions laid down in Article 368 are satisfied. The content and

amplitude of the power is so wide that, if it is so desired, all rights contained in Part II

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(Fundamental Rights) such as freedom of speech and expression; the freedom to form

associations or unions and the various other freedoms guaranteed by Article 19(1) as also

the right to freedom of religion as contained in Articles 25 to 28 together with

the protection of interests of minorities (to mention the most prominent ones) can be abrogated and taken away. Similarly, Article 32 which confers the right to move this Court, if any fundamental right is breached, can be repealed or abrogated. The directive principles in Part IV can be altered drastically or even abrogated. It is claimed that democracy can be replaced by any other form of government which may be wholly undemocratic, the federal structure can be replaced by a unitary system by abolishing all the States and the right of judicial review can be completely taken away. Even the Preamble which declares that the People of India gave to themselves the Constitution, to constitute India into a Sovereign Democratic Republic for securing the great objectives mentioned therein can be amended; indeed it can be completely repealed. Thus, according to the respondents, short of total abrogation or repeal of the Constitution, the amending body is omnipotent under Article 368 and the Constitution can, at any point of time, be amended by way of variation, addition or repeal so long as no vacuum is left in the governance of the country.

513. These petitions which have been argued for a very long time raise momentous issues of great Constitutional importance. Our Constitution is unique, apart from being the longest in the world. It is meant for the second largest population with diverse people speaking different languages and professing varying religions. It was chiselled and shaped by great political leaders and legal luminaries, most of whom, had taken an active part in the struggle for freedom from the British yoke and who knew what domination of a foreign rule meant in the way of deprivation of basic freedoms and from the point of view of exploitation of the millions of Indians. The Constitution is an organic document which must grow and it must take stock of the vast socioeconomic problems, particularly, of improving the lot of the common man consistent with his dignity and the unity of the nation.

514. We may observe at the threshold that we do not propose to examine the matters raised before us on the assumption that Parliament will exercise the power in the way claimed on behalf of the respondents nor did the latter contend that it will be so done. But while interpreting Constitutional provisions it is necessary to determine their width or reach in fact the area of operation of the power, its minimum and maximum dimensions cannot be demarcated or determined without fully examining the rival claims. Unless that is done, the ambit, content, scope and extent of the amending power cannot be properly and correctly decided.

515. For our purposes it is not necessary to go prior to the year 1934. It was in that year that the Indian National Congress made the demand for a Constituent Assembly as part of its policy. This demand was repeated in the Central Legislative Assembly in 1937 by the representatives of the Congress. By what is known as the Simla Conference 1945 the Congress repeated its stand that India could only accept the Constitution drawn by the people. After the end of World War II the demand was put forward very strongly by the Indian leaders including Mahatma Gandhi. Sir Stratford Cripps representing Britain had also accepted the idea that an elected body of Indians should frame the Indian Constitution. (The facts have been taken mainly from the Indian Constitution, Cornerstone of a Nation, by Granville Austin). In September 1945 the newly elected British Labour Government announced that it favoured the creation of a constituent body in India. Elections were to be held so that the newly elected provincial legislatures

could act as electoral bodies for the Constituent Assembly. A parliamentary delegation was sent to India in January 1946 and this was followed by what is known as the Cabinet Mission. There were a great deal of difficulties owing to the differences between the approach of the Indian National Congress and the Muslim League led by Mr. M.A. Jinnah. The Cabinet Mission devised a plan which was announced on May 16, 1946. By the end of June, both the Muslim League and the Congress had accepted it with reservations. The Constituent Assembly was elected between July-August 1946 as a result of the suggestion contained in the statement of the Cabinet Mission. The Attlee Government's efforts to effect an agreement between the Congress and the Muslim League having failed, the partition of the country came as a consequence of the declaration of the British Government on June 3, 1947. As a result of that declaration certain changes took place in the Constituent Assembly. There was also readjustment of representation of Indian States from time to time between December 1946 and November 1949. Many Smaller States merged into the provinces, many united to form union of States and some came to be administered as commissioner's provinces. There was thus a gradual process by which the Constituent Assembly became fully representative of the various communities and interests, political, intellectual, social and cultural. It was by virtue of Section 8 of the Indian Independence Act 1947 that the Constituent Assembly was vested with the legal authority to frame a Constitution for India.

516. The first meeting of the Constituent Assembly took place on December 9, 1946 when the swearing in of members and election of a temporary president to conduct the business until the installation of a permanent head, took place. On December 13, 1946 Pandit Jawahar Lal Nehru moved the famous "Objectives Resolution" giving an outline, aims and objects of the Constitution. This resolution was actually passed on January 22, 1947 by all members of the Constituent Assembly (standing) and it declared among other matters that all power and authority of the sovereign Independent India, its constituent parts and organs of Government are derived from the people. By November 26, 1949 the deliberations of the Constituent Assembly had concluded and the Constitution had been framed. As recited in the Preamble it was on that date that the people of India in the Constituent Assembly adopted, enacted and gave to themselves "this Constitution" which according to Article 393 was to be called "The Constitution of India". In accordance with

Article 394 that Article and the other Articles mentioned therein were to come into force at once but the remaining provisions of the Constitution were to come into force on the 26th day of January 1950.

517. Before the scheme of the Constitution is examined in some detail it is necessary to give the pattern which was followed in framing it. The Constituent Assembly was unfettered by any previous commitment in evolving a Constitutional pattern "suitable to the genius and requirements of the Indian people as a whole". The Assembly had before it the experience of the working of the Government of India Act 1935, several features of which could be accepted for the new Constitution. Our Constitution borrowed a great deal from the Constitutions of other countries, e.g. United Kingdom, Canada, Australia, Ireland, United States of America and Switzerland. The Constitution being supreme all the organs and bodies owe their existence to it. None can claim superiority over the other and each of them has to function within the four-corners of the Constitutional provisions. The Preamble embodies the great purposes, objectives and the policy underlying its provisions apart from the basic character of the State which was to come into existence i.e. a Sovereign Democratic Republic. Parts III and IV which embody the fundamental rights and directive principles of state policy have been described as the conscience of the Constitution (The Indian Constitution by Granville Austin p. 50) The legislative power distributed between the Union Parliament and the State Legislatures cannot be so exercised as take away or abridge the fundamental rights contained in Part III. Powers of the Union and the States are further curtailed by conferring the right to enforce fundamental rights contained in Part III by moving the Supreme Court for a suitable relief See generally, Kania C.J. in A.K. Gopalan v. The State [1950] S.C.R. 88 at pp. 96-97, Article 32 itself has been constituted a fundamental right. Part IV containing the directive principles of State policy was inspired largely by similar provisions in the Constitution of the Eire Republic (1937). This Part, according to B.N. Rao; is like an Instrument of Instructions from the ultimate sovereign, namely, the people of India (B.N. Rao, India's Constitution in the Making p. 393). The Constitution has all the essential elements of a federal structure as was the case in the Government of India Act 1935, the essence of federalism being the distribution of powers between the federation or the Union and the States or, the provinces. All the legislatures have plenary powers but these are

controlled
by the basic concepts of the Constitution itself and they function within the
limits laid
down in it Per Gajendragadkar C.J. in Special Reference No. 1 of 1964, [1965] 1
S.C.R.
413 at p. 445. All the functionaries, be they legislators, members of the
executive or the
judiciary take oath of allegiance to the Constitution and derive their authority
and
jurisdiction from its provisions. The Constitution has entrusted to the
judicature in this
country the task of construing the provisions of the Constitution and of
safeguarding the
fundamental rights Ibid p. 446. It is a written and controlled Constitution. It
can be
amended only to the extent of and in accordance with the provisions contained
therein,
the principal provision being Article 368. Although our Constitution is federal
in its
structure it provides a system modelled on the British parliamentary system. It
its the
executive that has the main responsibility for formulating the governmental
policy by
"transmitting it into law" whenever necessary. â™The executive function
comprises both the
determination of the policy as well as carrying it into execution. This
evidently includes
the initiation of legislation, the maintenance of order, the promotion of social
and
economic welfare, the direction of foreign policy, in fact the carrying on or
supervision of
the general administration of the State." R.S. Ram Jawaya Kapur and Ors. v. The
State of
Punjab (1955) 2 S.C.R. 225 at p. 236. With regard to the civil services and the
position of
the judiciary the British model has been adopted inasmuch as the appointment of
judges
both of the Supreme Court of India and of the High Courts of the States is kept
free from
political controversies. Their independence has been assured. But the doctrine
of
parliamentary sovereignty as it obtains in England does not prevail here except
to the
extent provided by the Constitution. The entire scheme of the Constitution is
such that it
ensures the sovereignty and integrity of the country as a Republic and the
democratic way
of life by parliamentary institutions based on free and fair elections.
518. India is a secular State in which there is no State religion. Special
provisions have
been made in the Constitution guaranteeing the freedom of conscience and free
profession, practice and propagation of religion and the freedom to manage
religious
affairs as also the protection of interests of minorities. The interests of
scheduled castes
and the scheduled tribes have received special treatment. The Rule of Law has
been

ensured by providing for judicial review. Adult suffrage, the "acceptance of the fullest implications of democracy" is one of the most striking features of the Constitution.

According to K.M. Pannikar, "it may well be claimed that the Constitution is a solemn

promise to the people of India that the legislature will do everything possible to renovate

and reconstitute the society on new principles (Hindu Society at crossroads (By K.M.

Pannikar) at pages 63-64).

519. We may now look at the Preamble.

520. It reads:

We, THE PEOPLE OF INDIA, having solemnly resolved to constitute

India into a SOVEREIGN DEMOCRATIC REPUBLIC and to secure to

all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity; and to promote among them all;

FRATERNITY assuring the dignity of the individual and the unity of the

Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of

November 1949, do HEREBY ADOPT, ENACT AND GIVE TO

OURSELVES THIS CONSTITUTION.

It may be mentioned that this Preamble and indeed the whole Constitution was drafted in

the light of and directions contained in the "OBJECTIVES RESOLUTION" adopted on January 22, 1947.

521. According to Granville Austin (Cornerstone of a nation (Indian

Constitution) by

Granville Austin, p. 75), directive principles of State policy set forth the humanitarian

socialist precepts that were the aims of the Indian social revolution. Granville Austin,

while summing up the interrelationship of fundamental rights and directive principles,

says that it is quite evident that the fundamental rights and the directive principles were

designed by the members of the Assembly to be the chief instruments in bringing about

the great reforms of the social revolution. He gives the answer to the question whether

they have helped to bring the Indian society closer to the Constitution's goal of social,

economic and political justice for all in the affirmative (Indian Constitution (Cornerstone

of a nation) by Granville Austin p. 113). Das C.J. in Re : Kerala Education Bill 1957

[1959] S.C.R. 995 at p. 1020 made the following observations with regard to Parts III and

IV:

While our Fundamental Rights are guaranteed by Part III of the

Constitution, Part IV of it on the other hand, lays down certain directive principles of State policy. The provisions contained in that Part are not

enforceable by any court but the principles therein laid down are,

nevertheless, fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws. Article 39

enjoins the State to direct its policy towards securing, amongst other

things, that the citizens, men and women, equally, have the right to an adequate means of livelihood.

Although in the previous decisions of this Court in *State of Madras v. Smt. Champdkam*

Dorairajan [1951] S.C.R. 525 at p. 531 and *Mohd. Hanif Qureshi and Ors. v. The State of*

Bihar [1959] S.C.R. 629 it had been held that the directive principles of State policy had

to conform to and run subsidiary to the Chapter of Fundamental Rights, the learned Chief

Justice was of the view which may be stated in his own words:

Nevertheless in determining the scope and ambit of the fundamental rights relied on by or on behalf of any person or body the court may not entirely ignore these directive principles of State policy laid down in Part IV of the Constitution but should adopt the principle of harmonious construction and should attempt to give effect to both as much as possible.

522. The first question of prime importance involves the validity of the Constitution

Amendment Act 1971 (hereinafter called the 24th Amendment). It amended Article 368

of the Constitution for the first time. According to the Statement of Objects and Reasons

in the Bill relating to the 24th amendment, the result of the judgment of this Court in

Golak Nath & Ors [1967] 2 S.C.R. 762 case has been that Parliament is considered to have no

power to take away or curtail any of the fundamental rights guaranteed by Part III of the

Constitution even if it becomes necessary to do so for giving effect to the Directive

Principles of State Policy and for attainment of the Objectives set out in the Preamble to

the Constitution. It became, therefore, necessary to provide expressly that Parliament has

the power to amend any provision of the Constitution including the provisions contained

in Part III.

523. Article 368 is in a separate Part i.e. Part XX. Its marginal note before the 24th

Amendment was "Procedure for amendment of the Constitution". It provided in the substantive portion of the Article how the Constitution "shall stand amended" when "An

Amendment of this Constitution" was initiated by the introduction of a Bill in either

House of Parliament. The following conditions had to be satisfied:

(i) The Bill had to be passed in each House by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of that House present and voting.

(ii) The Bill had to be presented for the assent of the President and his assent had to be obtained.

Under the proviso, it was necessary to obtain ratification of legislatures of not less than

one half of the States by Resolutions before presenting the Bill to the President for assent

if the amendment sought to make any change in the Articles, Chapters etc. mentioned in

Clauses (a) to (e) Clause (e) was "the provisions of this Article".

524. The 24th Amendment made the following changes:

(i) The marginal heading has been substituted by "Power of Parliament to amend the Constitution and procedure there-for".

(ii) Article 368 has been re-numbered as Clause (2).

(iii) Before Clause (2), the following clause has been inserted:

Notwithstanding anything in this Constitution, Parliament may in exercise of the Constituent power amend by way of addition, variation or repeal any provision of this Constitution in accordance with the procedure laid down in this article.

(iv) In Clause (2) as renumbered, for the words "it shall be presented to President for his assent and upon such assent being given to the Bill" the words "it shall be presented to the President who shall give his assent to the Bill and thereupon" have been substituted.

(v) A new Clause (3) has been inserted, namely:

(3) Nothing in Article 13 shall apply to any amendment made under this article.

It may be mentioned that by the 24th amendment Clause (4) has been inserted in Article

13 itself. It is:

(4) Nothing in this Article shall apply to any amendment of this Constitution made under Article 368.

525. On behalf of the petitioners, Mr. Palkhivala stated that he need not for the purposes

of this case dispute the 24th Amendment in so far as it leads to the following results:

(i) The insertion of the express provision in Article 368 that the source of the amending power is the Article itself.

(ii) The President is bound to give assent to any Bill duly passed under that Article.

The following three results have, however, been the subject of great deal of argument:

(i) The substitution of the words in Article 368 "amend by way of addition, variation or repeal..." in place of the concept "amendment".

(ii) Making it explicit in the said Article that when Parliament makes a Constitutional amendment under the Article it acts "in exercise of its constituent power".

(iii) The express provision in Article 13 and 368 that the bar in the former Article against abridging or taking away any of the fundamental rights should not apply to an amendment made under the latter Article.

In the judgment of Chief Justice Subba Rao with whom four learned judges agreed

in

Golak Nath's case the source of the amending power was held to reside in Article 248

read with entry 97 of List I to the Seventh Schedule. Whether that view is sustainable or

not need not be considered here now owing to the concession made by Mr. Palkhivala

that by amendment of Article 368 such a power could be validly located in that Article

even if it be assumed that it did not originally reside there. The real attack, therefore, is

directed against the validity of the 24th Amendment in so far as the three results

mentioned above are concerned. It has been maintained that if the effect of those results

is that the Parliament has clothed itself with legal sovereignty which the People of India

alone possess, by taking the full constituent power, and if the Parliament can in exercise

of that power alter or destroy all or any of the "essential features" of the Constitution, then

the 24th Amendment will be void. The fundamental rights embodied in Part III are a part of

the "essential features" and if their essence or core can be damaged or taken away, the 24th

amendment will be void and illegal.

526. The position taken up on behalf of the respondents is that so far as Article 368 is concerned, the 24th Amendment has merely clarified the doubts cast in the majority judgment in *Golak Nath*. That Article, as it originally stood, contained the constituent power by virtue of which all or any of the provisions of the Constitution including the Preamble could be added to, varied or repealed. In other words, the power of amendment was unlimited and unfettered and was not circumscribed by any such limitations as have been suggested on behalf of the petitioners. Therefore, the crux of the matter is the determination of the true ambit, scope and width of the amending provisions contained in Article 368 before the changes and alterations made in it by the 24th Amendment. If the Article conferred the power of the amplitude now covered by the 24th Amendment nothing new has been done and the amendment cannot be challenged. If, however, the original power though having the constituent quality was a limited one, it could not be increased. In other words the amending body cannot enlarge its own powers.

527. What then is the meaning of the word "amendment" as used in Article 368 of the

Constitution. On behalf of the respondents it has been maintained that "amendment" of this Constitution" can have only one meaning. No question, can arise of resorting to other aids in the matter of interpretation or construction of the expression "amendment." On the other hand, the argument of Mr. Palkhivala revolves on the expression "amendment"

which can have more than one meaning and for that reason it is essential to discover its true import as well as ambit by looking at and taking into consideration other permissible aids of construction. No efforts have been spared on both sides to give us all the meanings of the words "amendment" and "amend" from the various dictionaries as also authoritative books and opinions of authors and writers.

528. It is more proper, however, to look for the true meaning of the word "amendment" in the Constitution itself rather than in the dictionaries. Let us first analyse the scheme of

Article 368 itself as it stood before the 24th Amendment.

(i) The expression "amendment of the Constitution" is not defined or explained in any manner although in other Parts of the Constitution the word "amend" as will be noticed later has been expanded by use of the expression "amend by way of addition, variation or repeal.

(ii) The power in respect of amendment has not been conferred in express terms. It can be spelt out only by necessary implication.

(iii) The proviso uses the words "if such amendment seeks to make any change in". It does not use the words "change of" or "change" simpliciter.

(iv) The provisions of the Constitution mentioned in the proviso do not show that the basic structure of the Constitution can be changed if the procedure laid down therein is followed. For instance, Clause (a) in the proviso refers to Articles 54 and 55 which relate to the election of the President. It is noteworthy that Article 52 which provides that there shall be a President of India and Article 53 which vests the power of the Union in the President and provides how it shall be exercised are not included in Clause (a). It is incomprehensible that the Constitution makers intended that although the ratification of the legislatures of the requisite number of States should be obtained if any changes were to be made in Articles 54 and 55 but that no such ratification was necessary if the office of the President was to be abolished and the executive power of the Union was to be exercised by some other person or authority.

(v) Another Article which is mentioned in Clause (a) is Article 73 which deals with the extent of the executive power of the Union. So far as the Vice-President is concerned there is no mention of the relevant Articles relating to him. In other words the States have been given no voice in the question whether the office of the Vice-President shall be continued or abolished or what the method of his election would be.

(vi) The next Article mentioned in Clause (a) is 162 which deals with the extent of the executive power of the States. The Articles relating to the appointment and conditions of service of a Governor, Constitution and functions of his council of ministers as also the conduct of business are not mentioned in Clause (a) or any other part of the proviso.

(vii) Along with Articles 54, 55, 73 and 162. Article 241 is mentioned in Clause (a) of the proviso. This Article dealt originally only with the High Courts for States in Part C of the First Schedule.

(viii) Chapter IV of Part V of the Constitution deals with the Union Judiciary and Chapter V of Part VI with the High Courts in the States.

Although these have been included in Clause (b) of the proviso it is surprising that Chapter VI of Part VI which relates to Subordinate Judiciary is not mentioned at all, which is the immediate concern of the States.

(ix) Chapter I of Part XI which deals with legislative relations between the Union and the States is included in Clause (b) of the proviso but Chapter II of that Part which deals with Administrative Relations between the Union and the States and various other matters in which the States would be vitally interested are not included.

(x) The provisions in the Constitution relating to services under the State as also with regard to Trade and Commerce are not included in the proviso.

(xi) Clause (c) of the proviso mentions the lists in the Seventh Schedule. Clause (d) relates to the representation of States in Parliament and Clause (c) to the provisions of Article 368 itself.

529. The net result is that the provisions contained in Clauses (a) and (b) of the proviso

do not throw any light on the logic, sequence or systematic arrangement in respect of the

inclusion of those Articles which deal with the whole of the federal structure.

These

clauses demonstrate that the reason for including certain Articles and excluding other

from the proviso was not that all Articles dealing with the federal structure or the States

had been selected for inclusion in the proviso. The other unusual result is that if the

fundamental rights contained in Part III have to be amended that can be done without

complying with the provisions of the proviso. It is difficult to understand that the

Constitution makers should not have thought of ratification by the States if such

important and material rights were to be abrogated or taken away wholly or partially. It is

also interesting that in order to meet the difficulty created by the omission of Articles 52

and 53 which relate to there being a President in whom the executive functions of the

Union would vest, the learned Solicitor General sought to read by implication the

inclusion of those Articles because according to him, the question of election cannot arise

with which Articles 54 and 55 are concerned if the office of President is abolished.

530. We may next refer to the use of the words "amendment" or "amended" in other articles of the Constitution. In some articles these words in the context have a wide

meaning and in another context they have a narrow meaning. The group of articles which

expressly confer power on the Parliament to amend are five including Article 368. The

first is Article 4. It relates to laws made under Articles 2 and 3 to provide for amendment

of the First and the Second Schedules and supplemental, incidental and consequential

matters. The second Article is 169 which provides for abolition or creation of Legislative

Councils in States. The third and the fourth provisions are paras 7 and 21 of the 5th and 6th Schedules respectively which have to be read with Article 244 and which deal with the administration of Scheduled Areas and Tribal Areas. The expression used in Articles 4 and 169 is "amendment". In paras 7 and 21 it is the expanded expression "amendment by way of addition, variation or repeal" which has been employed. Parliament has been empowered to make these amendments by law and it has been expressly provided that no such law shall be deemed to be an amendment of the Constitution for the purpose of Article 368.

531. It is apparent that the word "amendment" has been used in a narrower sense in

Article 4. The argument that if it be assumed that Parliament is invested with wide

powers under Article 4 it may conceivably exercise power to abolish the legislative and

the judicial organs of the State altogether was refuted by this Court by saying that a State

cannot be formed, admitted or set up by law under Article 4 by the Parliament which

does not conform to the democratic pattern envisaged by the Constitution Mangol Singh

and Anr. v. Union of India [1967] 2 S.C.R. 109 at p. 112. 88 at pp. 96-97.

Similarly any

law which contains provisions for amendment of the Constitution for the purpose of

abolition or creation of legislative councils in States is only confined to that purpose and

the word "amendment" has necessarily been used in a narrow sense. But in Paras 7 and

21 the expanded expression is employed and indeed an attempt was made even in the

Constituent Assembly for the insertion of a new clause before Clause (1) of draft Article

304 (Present Article 368). The amendment (Constituent Assembly Debates Vol. 9, p.

1663) (No. 3239) was proposed by Mr. H.V. Kamath and it was as follows:

Any provision of this Constitution may be amended, whether by way of variation, addition or repeal, in the manner provided in this article.

Mr. Kamath had moved another amendment in draft Article 304 to substitute the words

"it shall upon presentation to the President receive his assent". Both these amendments were negatived by the Constituent Assembly Ibid. It is noteworthy that the 24th amendment as now inserted has introduced substantially the same amendments which were not accepted by the Constituent Assembly.

532. The Constituent Assembly, must be presumed to be fully aware of the expanded expression, as on September 17, 1949 it had substituted the following section in place of

the old Section 291 of the Government of India Act 1935 by means of Constituent Assembly Act 4 of 1949:

291. Power of the Governor General to amend certain provisions of the Act and order made thereunder.(1) The Governor General may at any time by Order make

such amendments as he considers necessary whether by way of addition, modification, or repeal, (emphasis supplied) in the provisions of this Act or of any Order made thereunder in relation to any Provincial Legislature with respect to any of the following matters, that is to say,(a) ...

The word "amendment" has also been used in certain Articles like Article 107 dealing with legislative procedure and Article 111 which enables the President to send a message

requesting the Houses to consider the desirability of introducing amendments etc.,

"Amendment" as used in these Articles could only have a limited meaning as is apparent

from the context. On behalf of the petitioners a great deal of reliance has been placed on

the contrast between the use of the word "amendment" in Article 4 and 169 and paras 7

and 21 of the 5th and 6th Schedules which use the composite expression "amend by way

of addition, variation or repeal." It is pointed out that in Article 368 it is only the word

"amendment" which has been used and if the Constitution makers intended that it should

have the expanded meaning then there was no reason why the same phraseology would

not have been employed as in paras 7 and 21 or as has been inserted now by the 24th

amendment. The steps in this argument are:

(i) The contrast in the language employed in the different provisions of the Constitution in respect of amendment;

(ii) conferment of the wider power for the purpose of the 5th and 6th Schedules which empower the Parliament to alter and repeal the provisions of those Schedules relating to the institutions contemplated by them, the law making authority set up under them and the fundamental basis of administration to be found in the two Schedules.

(iii) the wide language used in paras 7 and 21 of the two Schedules was meant for the purpose that at a proper time in the future or whenever considered necessary the entire basic structure of the Schedules could be repealed and the areas and tribes covered by them could be governed and administered like the rest of India.

(iv) the use of the word "amendment" simpliciter in Article 368 must have a narrower meaning than the composite expression "amend" or "amendment" by way of addition, variation or repeal and must correspond to the meaning of the word "amend" or "amendment" in Articles 4 and

169.

(v) The power of amending the Constitution is not concentrated in Article 368 alone but it is diffused as it is to be found in the other Articles and provisions mentioned. The reason why it was added that no law passed by the Parliament under those provisions shall be deemed to be an amendment of this Constitution for the purpose of Article 368 was only meant to clarify that the form and manner prescribed by Article 368 was not to be followed and the Parliament could, in the ordinary way, by following the procedure laid down for passing legislative enactments amend the Constitution to the extent mentioned in those Articles and provisions.

533. The learned Advocate General of Maharashtra, who appears for respondent No. 1,

has laid a great deal of emphasis on the fact that Article 368 is the only Article which is

contained in a separate Part having the title "Amendment of the Constitution".

It is under

that article that all other provisions including Articles 4, 169 and paras 7 and 21 of the 5th

and

6th Schedules respectively can be amended. The latter group of articles contain a

limited power because those Articles are subordinate to Article 368. This is illustrated by

the categorical statement contained in each one of those provisions that no such law

amending the Constitution shall be deemed to be an amendment there of for the purpose of Article 368. As regards the composite expression "amend by way of addition, variation or repeal" employed in paras 7 and 21 of the two Schedules, it has been pointed out that Clause (2), in which the words "Amendment of this Constitution" are used clearly shows that addition, variation or repeal of any provision would be covered by the word "amendment". According to the learned Attorney General the word "amendment" must mean, variation addition or repeal. He has traced the history behind paras 7 and 21 of Schedules 5 and 6 to illustrate that the expression "amend by way of addition, variation or repeal" has no such significance and does not enlarge the meaning of the word "amendment". Our attention has been invited to a number of Articles in the Constitution itself out of which mention may be made of Articles 320(5) and 392(1) where the expressions used were "such modification, whether by way of repeal or amendment" and "such adoption whether by way of modification, addition or omission". It has been urged that the expression "amendment of this Constitution" has acquired substantive meaning over the years in the context of a written Constitution and it means that any part of the Constitution can be amended by changing the same either by variation, addition or repeal.

534. Dr. B.R. Ambedkar who was not only the Chairman of the Drafting Committee but also the main architect of the Constitution made it clear (Constituent Assembly Debates Vol. 9, page 1661) that the articles of the Constitution were divided into different categories; the first category was the one which consisted of articles which could be amended by the Parliament by a bare majority; the second set of articles were such which required the two-third majority. This obviously had reference to the group of articles consisting of Articles 4, 169 and paras 7 and 21 of the two Schedules and Article 368 respectively. The scheme of the amending provisions outlined by Dr. B.R. Ambedkar seems to indicate that the Constitution makers had in mind only one distinction between the amending power conferred by the other Articles and Article 368. No such distinction was present to their mind of the nature suggested by the learned Advocate General that the amending power conferred by Articles other than Article 368 was of a purely subordinate nature. In one sense the power contained in the first group of Articles can be said to be subordinate in those Articles themselves could be amended by the procedure prescribed by Article 368. But that Article itself could be amended by the same procedure. It would not, therefore, be wrong to say that the amending power was of a

diffused kind and was contained in more than one provision of the Constitution. It appears that the statement in the articles and provisions containing the amending power other than Article 368 that any amendment made under those articles would not amount to an amendment under Article 368 merely embodied the distinction emphasised by Dr.

B.R. Ambedkar that one category could be amended by the Parliament by a bare majority and all the other articles could be amended by the said body but only by following the form and manner prescribed by Article 368. Although prima facie it would appear that the Constitution makers did not employ the composite expression in Article 368 for

certain reasons and even rejected Mr. Kamath's amendment which pointedly brought to their notice that it was of material importance that the expanded expression should be used, it may not be possible to consider this aspect as conclusive for the purpose of

determining the meaning of the word "amendment" in Article 368.

535. According to Mr. Palkhivala there can be three possible meanings of amendment:

(i) to improve or better; to remove an error, the question of improvement being considered from the standpoint of the basic philosophy underlying the Constitution but subject to its essential features.

(ii) to make changes which may not tall within (i) but which do not alter or destroy any of the basic features, essential elements or fundamental principles of the Constitution.

(iii) to make any change whatsoever including changes falling outside (ii).

He claims that the preferable meaning is that which is contained in (i) but what is stated

in (ii) is also a possible construction. Category (iii) should be ruled out altogether.

Category (i) and (ii) have a common factor, namely that the essential features cannot be damaged or destroyed.

536. On behalf of the respondents it is not disputed that the words "amendment of this

Constitution" do not mean repeal or abrogation of this Constitution. The amending

power, however, is claimed on behalf of the respondents to extend to addition, alteration,

substitution, modification, deletion of each and every provision of the Constitution. The

argument of the Attorney General is that the amending power in Article 368 as it stood

before the 24th amendment and as it stands now has always been and continues to be the

constituent power, e.g., the power to deconstitute or reconstitute the Constitution or any

part of it. Constitution at any point of time cannot be so amended by way of variation,

addition or repeal as to leave a vacuum in the government of the country. The whole

object and necessity of amending power is to enable the Constitution to continue and such a constituent power, unless it is expressly limited in the Constitution itself, can by its very nature have no limit because if any such limit is assumed, although not expressly found in the Constitution, the whole purpose of an amending power will be nullified. It has been pointed out that in the Constitution First Amendment Act which was enacted soon after the Constitution of India came into force, certain provisions were inserted, others substituted or omitted and all these were described as amendments of the article mentioned therein. In the context of the Constitution, amendment reaches every provision including the Preamble and there is no ambiguity about it which may justify having resort to either looking at the other Articles for determining the ambit of the amendatory power or taking into consideration the Preamble or the scheme of the Constitution or other permissible aids to construction.

537. A good deal of reliance has been placed on behalf of the respondents on Article 5 of the Constitution of the United States hereinafter called the "American Constitution" which deals with amendment and its interpretation by the American courts. Reference has been made to the writings of authors and writers who have dealt with the meaning of the word "amendment" in the American Constitution. It has been argued that in Article 5 of that Constitution the word used is "amendments" and our Constitution makers had that word in mind when they employed the expression "amendment of this Constitution" in Article

368. We propose to refer to the decision from other countries including those of the Supreme Court of the United States later. We wish to observe, at this stage, that our founding fathers had primarily the Constitutions of Canada, Australia, Eire, U.S.A. and Switzerland in view apart from that of Japan. The whole scheme and language of Article

368 is quite different from the amending provisions in Constitutions of those countries. For instance, in U.S.A., Eire, Australia, Switzerland and Japan the people are associated in some manner or the other directly with the amending process. It would be purely speculative or conjectural to rely on the use of the word "amend" or "amendment" in the Constitution of another country unless the entire scheme of the amending section or article is also kept in mind. In India Parliament is certainly representative of the people but so are similar institutions in the countries mentioned above and yet there

is a provision for ratification by convention or referendum or submission of the proposed law to electors directly. Another way of discovering the meaning on which both sides relied on is to refer to the various speeches in the Constituent Assembly by the late Prime Minister Pandit Jawahar Lal Nehru and late Dr. B.R. Ambedkar the Chief Architects of the Constitution. The position which emerges from an examination of their speeches does not lead to any clear and conclusive result. Their Speeches show that our Constitution was to be an amendable one and much rigidity was not intended. Pandit Nehru time and again emphasised that while the Constitution was meant to be as solid and as permanent a structure as it could be, nevertheless there was no permanence in the Constitution and there should be certain flexibility; otherwise it would stop a nation's growth. Dr. Ambedkar, while dealing with draft Article 25 corresponding to the present Article 32, said that the most important Article without which the Constitution would be a nullity and which was the very soul of the Constitution and the heart of it was that Article. But what he said at a later stage appears to suggest that that article itself could be amended and according to the respondents even abrogated. This illustration shows that nothing conclusive can emerge by referring to the speeches for the purpose of interpretation of the word "amendment".

538. It is not possible to accept the argument on behalf of the respondents that amendment can have only one meaning. This word or expression has several meanings and we shall have to determine its true meaning as used in the context of Article 368 by taking assistance from the other permissible aids to construction. We shall certainly bear in mind the well known principles of interpretation and construction, particularly, of an instrument like a Constitution. A Constitution is not to be construed in any narrow and pedantic sense. A broad and liberal spirit should inspire those whose duty it is to interpret it.

It was in *Gwyer C.J. In Re. C.P. & Berar Sales of Motor Spirit & Motor Lubricants Taxation Act 1938* [1939] F.C.R. 18 adopted the words of Higgins J., of the High Court of Australia from the decision in *Attorney General for New South Wales v. The Brewery Employees Union of New South Wales etc.* [1908] 6 C.L.R. 469 at pp. 611-612 according to which even though the words of a Constitution are to be interpreted on the same principles of interpretation as are applied to any ordinary law, these very principles of interpretation require taking into account the nature and scope of the Act remembering that "it is a Constitution, a mechanism under which laws are to be made and not a mere Act which

declares what the law is to be". [1939] F.C.R. 18, 37. The decision must depend on the words of the Constitution as provisions of no two Constitutions are in identical terms.

The same learned Chief Justice said that the "grant of the power in general terms standing by itself would no doubt be construed in the wider sense, but it may be qualified by other express provisions in the same enactment, by the implication of the context, and even by considerations arising out of what appears to be the general scheme of the Act." *ibid* p.

42. The observations of Lord Wright in *James v. Commonwealth of Australia* [1936] A.C. 578 at p. 613 were also quoted in the aforesaid judgment of the Federal Court of India at page 73:

The question, then, is one of construction and in the ultimate resort must be determined upon the actual words used read not in a vacuo but as occurring in a single complex instrument, in which one part may throw light on another. The Constitution has been described as the federal compact, and the construction must hold a balance between all its parts. Apart from the historical background and the scheme of the Constitution the use of the

Preamble has always been made and is permissible if the word "amendment" has more

than one meaning. Lord Green in *Bidis v. General Accident, Fire and Life Assurance*

Corporation [1948] 2 All. E.R. 998 pointed out that the words should never be interpreted

in vacuo because few words in the English language have a natural or ordinary meaning

in the sense that they must be so read that their meaning is entirely independent of their

context. The method which he preferred was not to take the particular words and attribute

to them a sort of *prima facie* meaning which may have to be displaced or modified. To

use his own words "it is to read the statute as a whole and ask oneself the question.

In this state, in this context, relating to this subject matter, what is the true

meaning of that word?"

We shall first deal with the Preamble in our Constitution. The Constitution makers gave

to the preamble the pride of place. It embodied in a solemn form all the ideals and

aspirations for which the country had struggled during the British regime and a Constitution was sought to be enacted in accordance with the genius of the Indian people.

It certainly represented an amalgam of schemes and ideas adopted from the Constitutions

of other countries. But the constant strain which runs throughout each and every article of

the Constitution is reflected in the Preamble which could and can be made sacrosanct. It

is not without significance that the Preamble was passed only after draft articles of the

Constitution had been adopted with such modifications as were approved by the Constituent Assembly. The preamble was, therefore, meant to embody in a very few and

well defined words the key to the understanding of the Constitution.

539. It would be instructive to advert to the various stages through which the

Preamble

passed before it was ultimately adopted by the Constituent Assembly. In the earlier draft of the Union Constitution the Preamble was a somewhat formal affair. The one drafted by

B.N. Rau said:

We, the People of India, seeking to promote the common good, do hereby, throughout chosen representatives, enact, adopt and give to ourselves this Constitution.

The Union Constitution Committee provisionally accepted the draft Preamble of B.N.

Rau and reproduced it in its report of July 4, 1947 without any change with the tacit

recognition, at that stage, that the Preamble would finally be based on the Objectives

Resolution.

540. On July 18, 1947, Pandit Nehru in a statement observed that the Preamble was

covered more or less by the Objectives Resolution which it was intended to incorporate in

the final Constitution. Three days later, while moving the report of the Union Constitution Committee, he suggested that it was not at that stage necessary to consider

the Preamble since the Assembly stood by the basic principles laid down in the Objectives Resolution and these could be incorporated in the Preamble later. The suggestion was accepted and further consideration of the Preamble was held over.

541. The Drafting Committee considered the Preamble at a number of its meetings in

February 1948. The Committee omitted that part of the Objectives Resolution which

declared that the territories of India would retain the status of autonomous units with

residuary powers. By this time the opinion had veered round for a strong centre with

residuary powers. The Drafting Committee felt that the Preamble should be restricted "to

defining the essential features of the new State and its basic socio-political objectives and

and that the other matters dealt with in the Resolution could be more appropriately provided in the substantial parts of the Constitution". Accordingly it drafted the

Preamble, which

substantially was in the present form.

542. Meanwhile important developments had taken place in regard to the Indian States.

With the completion of the process of merger and integration of the Indian States the

principle had been accepted (i) of sovereign powers being vested in the people, and (ii)

that their Constitutions should be framed by the Constituent Assembly and should form

integrated part of the new Constitution. On October 12, 1949, Sardar Patel declared in the

Assembly that the new Constitution was "not an alliance between democracies and dynasties, but a real union of the Indian people, built on the basic concept of the sovereignty of the people.

543. The draft preamble was considered by the Assembly on October 17, 1949. The object of putting the Preamble last, the President of Assembly explained, was to see that

it was in conformity with the Constitution as accepted. Various amendments were at this

stage suggested, but were rejected. One of such was the proposal to insert into it the

words "In the name of God". That was rejected on the ground that it was inconsistent

with the freedom of faith which was not only promised in the Preamble itself but was also

guaranteed as a fundamental right (Constituent Assembly Debates Vol. 10, pp. 432-442).

544. An amendment was moved in the Constituent Assembly to make it clear beyond all

doubt that sovereignty vested in the people. It was not accepted on the short ground that

"the Preamble as drafted could convey no other meaning than that the Constitution

emanated from the people and sovereignty to make this Constitution vested in them (The

Framing of India's Constitution by B. Shiva Rao, p. 131)

545. The history of the drafting and the ultimate adoption of the Preamble shows:

(1) that it did not "walk before the Constitution" as is said about the preamble to the United States Constitution;

(2) that it was adopted last as a part of the Constitution:

(3) that the principles embodied in it were taken mainly from the Objectives Resolution;

(4) the Drafting Committee felt, it should incorporate in it "the essential features of the "new State":

(5) that it embodied the fundamental concept of sovereignty being in the people.

546. In order to appreciate how the preamble will assist us in discovering the meaning of

the word "amendment" employed in Article 368 we may again notice the argument presented by the respondents that the amending body can alter, vary or repeal any

provision of the Constitution and enact it and apply that process to the entire Constitution

short of total repeal and abrogation. It is maintained on behalf of the Respondents that by

virtue of the amending power even the preamble can be varied, altered or repealed. Mr.

Palkhivala, however, relies a great deal on the preamble for substantiating the contention

that "amendment" does not have the widest possible meaning as claimed by the respondents and there are certain limitations to the exercise of the amending power and,

therefore, the expression "amendment" should be construed in the light of those

limitations. All the elements of the Constitutional structure, it is said, are to be found in

the preamble and the amending body cannot repeal or abrogate those essential elements

because if any one of them is taken away the edifice as erected must fall.

547. The learned Advocate General of Maharashtra, says that the preamble itself is

ambiguous and it can be of no assistance in that situation. It has further been contended

that the concepts recited in the preamble, e.g., human dignity, social and economic justice

are vague; different schools of thought hold different notions of their concepts. We are

wholly unable to accede to this contention. The preamble was finalised after a long

discussion and it was adopted last so that it may embody the fundamentals underlying the

structure of the Constitution It is true that on a concept such as social and economic

justice there may be different schools of thought but the Constitution makers knew what

they meant by those concepts and it was with a view to implement them that they enacted

Parts III (Fundamental Rights) and Part IV (Directive Principles of State Policy) - both

fundamental in character-on the one hand, basic freedoms to the individual and on the

other social security, justice and freedom from exploitation by laying down guiding

principles for future governments.

548. Our court has consistently looked to the preamble for guidance and given it a

transcendental position while interpreting the Constitution or other laws. It was so referred

in *Behram Khurshid Pesikaka* [1955] 1 S.C.R. 613 at p. 653 case. *Bhagwati J.*, in

Bhadeshwar Nath v. Commissioner of Income-tax [1959] Suppl. 1 S.C.R. 528 Rajasthan

when considering the question of waiver of a fundamental right referred to the preamble

and to the genesis of declaration of fundamental rights which could be traced to the report

of the Nehru Committee of 1928. He proceeded to say "the object sought to be achieved

was, as the preamble to the Constitution states...." In *Re Kerala Education Bill* 1957

[1959] S.C.R. 995 this Court referred to the preamble extensively and observed that the

fundamental rights were provided for "to implement and fortify the supreme purpose set forth in the preamble". The court also made use of the "inspiring and nobly expressed preamble to our Constitution" while expressing opinion about the legality of the various provisions of the Kerala Education Bill 1957. It is unnecessary to multiply citations from judgments of this Court in which the preamble has been treated almost as sacrosanct and has been relied on or referred to for the purpose of interpreting legislative provisions. In other countries also following the same system of jurisprudence the preamble has been referred to for finding out the Constitutional principles underlying a Constitution. In *Rex v. Hess* [1949] Dom. L.R. 199 at p. 208 it was said: I conclude further that the opening paragraph of the preamble to the B.N.A. Act 1867, which provided for a "Constitution similar in principle to that of the United Kingdom" thereby adopted the same Constitutional principles and hence Section 1025A is contrary to the Canadian Constitution and beyond the competence of Parliament or any provincial legislature to enact so long as our Constitution remains in its present form of a Constitutional democracy. In *John Switzman v. Freda Elbling & Attorney General of the Province of Quebec* [1957] Canada L.R. 285 at p. 326 (Supreme Court), Abbot J., relied on the observations of Duff C.J., in an earlier decision in *Re Alberta Statutes* [1938] S.C.R. 100 (Canada) which was affirmed in *Attorney General for Alberta v. Attorney General for Canada* [1939] A.C. 117—that view being that the preamble of the British North America Act showed plainly enough that the Constitution of the Dominion was to be similar in principle to that of the United Kingdom. The statute contemplated a Parliament working under the influence of public opinion and public discussion. In *McCawley v. The King* Lord Birkenhead [1920] A.C. 691 at p. 711 (Lord Chancellor) while examining the contention that the Constitution Act of 1867 (Queensland, Australia) enacted certain fundamental organic provisions of such a nature which rendered the Constitution stereotyped or controlled proceeded to observe at page 711: It may be premised that if a change so remarkable were contemplated one would naturally have expected that the legislature would have given some indication, in the very lengthy preamble of the Act, of this intention. It has been seen that it is impossible to point to any document or instrument giving to, or imposing upon the Constitution of Queensland this quality before the year 1867. Yet their Lordships discern nowhere in the preamble the least indication that it is intended for the first time to make provisions which are sacrosanct or which at least can only be modified by methods never previously required. 549. In *re. Berubari Union and Exchange of Enclaves* [1960] 3 S.C.R. 250 an argument had been raised that the preamble clearly postulated that the entire territory

of India was beyond the reach of Parliament and could not be affected either by ordinary legislation or even by Constitutional amendment. The Court characterized that argument as extreme

and laid down the following propositions:

1. A preamble to the Constitution serves as a key to open the minds of the makers, and shows the general purposes for which they made the several provisions in the Constitution;
 2. The preamble is not a part of our Constitution;
 3. It is not a source of the several powers conferred on government under the provisions of the Constitution;
 4. Such powers embrace those expressly granted in the body of the Constitution "and such as may be implied from those granted";
 5. What is true about the powers is equally true about the prohibitions and limitations;
 6. The preamble did not indicate the assumption that the first part of preamble postulates a very serious limitation on one of the very important attributes of sovereignty, viz., ceding territory as a result of the exercise of the sovereign power of the State of treaty-making and on the result of ceding a part of the territory.
550. On behalf of the respondents reliance has been placed on this case for the proposition that no limitation was read by virtue of the preamble. A careful reading of the judgment shows that what was rejected was the contention that the preamble was the source of power. Indeed, it was held that the preamble was not even a part of the Constitution and that one must seek power and its scope in the provisions of the Constitution. The premise for the conclusion was that a preamble is not the source of power since it is not a part of the Constitution. The learned Advocate General of

Maharashtra has himself disputed the conclusion in the aforesaid judgment that the preamble is not a part of the Constitution. It is established that it was adopted by the Constituent Assembly after the entire Constitution had been adopted.

551. Mr. Palkhivala has given an ingenious explanation as to why the preamble cannot be regarded as a part of our Constitution. He makes a distinction between the concept of the Constitution and the concept of the Constitution's statutes. The last words in the preamble "This Constitution is the Constitution which follows the preamble, "according to Mr. Palkhivala. It starts with Article 1 and ended originally with the Eighth Schedule and now ends with the Ninth Schedule after the First Amendment Act 1951. It is sought to be concluded from this that the way in which the preamble has been drafted, indicates that what follows or is annexed to the preamble is the Constitution of India. It is further argued that:

The Constitution statute of India consist of two parts-one, the preamble and the other the Constitution: The preamble is a part of the Constitution statute, but is not a part of the Constitution. It precedes it; The preamble came into force on Nov. 26, 1949 and not 26th January 1950 as contended on behalf of Respondent No. 1

552. There is a clear recital in the preamble that the people of India gave to themselves this Constitution on the 26th day of November 1949. Even if the preamble was actually adopted by the Constituent Assembly at a later date, no one can question the statement made in the Preamble that the Constitution came into force on the date mentioned therein. The preamble itself must be deemed by a legal fiction to have come into force with effect from 26th November 1949. Even if this is a plausible conclusion, it does not appear to be sufficient to support the observation in the Berubari case that the preamble was not a part of the Constitution. To our mind, it hardly makes any substantial difference whether the preamble is a part of the Constitution or not. The preamble serves several important purposes. Firstly, it indicates the source from which the Constitution comes viz. the people of India. Next, it contains the enacting clause which brings into force the Constitution. In the third place, it declares the great rights and freedoms which the people of India intended to secure to all citizens and the basic type of government and polity which was to be established. From all these, if any provision in the Constitution had to be interpreted and if the expressions used therein were ambiguous, the preamble would certainly furnish valuable guidance in the matter, particularly when the

question is of the correct ambit, scope and width of a power intended to be conferred by Article 368.

553. The stand taken up on behalf of the respondents that even the preamble can be varied, altered or repealed, is an extraordinary one. It may be true about ordinary statutes but it cannot possibly be sustained in the light of the historical background, the Objectives Resolution which formed the basis of the preamble and the fundamental position which the preamble occupies in our Constitution. It constitutes a landmark in India's history and sets out as a matter of historical fact what the people of India resolved

to do for moulding their future destiny. It is unthinkable that the Constitution makers ever conceived of a stage when it would be claimed that even the preamble could be abrogated or wiped out.

554. If the preamble contains the fundamentals of our Constitution, it has to be seen whether the word amendment in Article 368 should be so construed that by virtue of the amending power the Constitution can be made to suffer a complete loss of identity or the basic elements on which the Constitutional structure has been erected, can be eroded or taken away. While dealing with the preamble to the United States, Constitution it was observed by Story (Commentaries on the Constitution of the United States, 1833 edition, Volume I), that the preamble was not adopted as a mere formulary; but as a solemn promulgation of a fundamental fact, vital to the character and operations of the Government. Its true office is to expound the nature and extent and application of the powers actually conferred by the Constitution and not substantially to create them Story, para 462 at p. 445.

555. Now let us examine the effect of the declarations made and the statements contained in the preamble on interpretation of the word "amendment" employed in Article 368 of the Constitution. The first thing which the people of India resolved to do was to constitute their country into a Sovereign Democratic Republic. No one can suggest that these words and expressions are ambiguous in any manner. Their true import and connotation is so well known that no question of any ambiguity is involved. The question which

immediately arises is whether the words "amendment or amended" as employed in Article 368 can be so interpreted as to confer a power on the amending body to take away any of these three fundamental and basic characteristics of our polity. Can it be said or even suggested that the amending body can make institutions created by our Constitution undemocratic as opposed to democratic; or abolish the office of the President and, instead, have some other head of the State who would not fit into the conception of a "Republic" The width of the power claimed on behalf of the respondents has such large dimension that even the above part of the preamble can be wiped out from which it would follow that India can cease to be a Sovereign Democratic Republic and can have a polity denuded of sovereignty, democracy and Republican character.

556. No one has suggested-it would be almost unthinkable for anyone to suggest-that the amending body acting under Article 368 in our country will ever do any of the things mentioned above, namely change the Constitution in such a way that it ceases to be a Sovereign Democratic Republic. But while examining the width of the power, it is essential to see its limits, the maximum and the minimum; the entire ambit and magnitude of it and it is for that purpose alone that this aspect is being examined. While analysing the scope and width of the power claimed by virtue of a Constitutional provision, it is wholly immaterial whether there is a likelihood or not of such an eventuality arising.

557. Mr. Palkhivala cited example of one country after another in recent history where from a democratic Constitution the amending power was so utilized as to make that country wholly undemocratic resulting in the negation of democracy by establishment of rule by one party or a small oligarchy. We are not the least impressed by these instances and illustrations. In the matter of deciding the questions which are before us, we do not want to be drawn into the political arena which, we venture to think, is "out of bounds" for the judiciary and which tradition has been consistently followed by this Court. [See

Wanchoo J, as he then was in *Golak Nath* [1967] 2 S.C.R. 762 at p. 850].

558. Since the respondents themselves claim powers of such wide magnitude that the results which have been briefly mentioned can flow apart from others which shall presently notice, the consequences and effect of suggested construction have to be taken into account as has been frequently done by this Court. Where two constructions are possible the court must adopt that which will ensure smooth and harmonious working of the Constitution and eschew the other which will lead to absurdity or give rise to practical

inconvenience or make well-established provisions of existing law nugatory State of Punjab v. Ajaib Singh and Anr. [1953] S.C.R. 254 at page 264; Director of Customs, Baroda v. Dig Vijay Singhji Spinning & Weaving Mills Ltd. [1962] 1 S.C.R. p. 896. 559. In Don John Francis Douglas Liyange and Ors. v. The Queen [1967] (I) A.C. 259, Lord Pearson declined to read the words of Section 29(1) of the Ceylon Constitution as entitling the Parliament to pass legislation which usurped the judicial power of the judicature by passing an Act of Attainder against some persons or instructing a judge to bring in a verdict of guilty against someone who is being tried-if in law such usurpation would otherwise be contrary to the Constitution. 560. In Maxwell's Interpretation of Statutes (12th Edition), Chapter 5 deals with restrictive construction and the very first section contains discussion on the question whether the consequences of a particular construction being adopted can be considered and examples have been given from cases decided in England with reference to the consequences. According to American Jurisprudence, Vol. 50, 1962 Reprint at pp. 372, 373 there are cases in which consequences of a particular construction are in and of themselves, conclusive as to the correct solution of the question. 561. The learned Advocate General of Maharashtra has contended that the proper way of construing an amending provision is not to take into consideration any such speculation that the powers conferred by it, would be abused. It has also been said that any court deciding the validity of a law cannot take into consideration extreme hypothetical examples or assume that a responsible legislature would make extravagant use of the power The Bank of Toronto v. Lambe (1887) 12 A.C. 575 at pp. 586-587. 562. According to Mr. Palkhivala, the test of the true width of a power is not how probable it is that it may be exercised but what can possibly be done under it; that the abuse or misuse of power is entirely irrelevant; that the question of the extent of the power cannot be mixed up with the question of its exercise and that when the real question is as to the width of the power, expectation that it will never be used is as wholly irrelevant as an imminent danger of its use. The court does not decide what is the best what is the worst. It merely decides what can possibly be done under a power if the words conferring it are so construed as to have an unbounded and limitless width, as claimed on

behalf of the respondents.

563. It is difficult to accede to the submission on behalf of the respondents that while considering the consequences with reference to the width of an amending power contained in a Constitution any question of its abuse is involved. It is not for the courts

to

enter into the wisdom or policy of a particular provision in a Constitution or a statute.

That is for the Constitution makers or for the parliament or the legislature.

But that the

real consequences can be taken into account while judging the width of the power is well

settled. The Court cannot ignore the consequences to which a particular construction can

lead while ascertaining the limits of the provisions granting the power.

According to the

learned Attorney General, the declaration in the preamble to our Constitution about the

resolve of the people of India to constitute it into a Sovereign, Democratic Republic is

only a declaration of an intention which was made in 1947 and it is open to the amending

body now under Article 368 to change the Sovereign Democratic Republic into some

other kind of polity. This by itself shows the consequence of accepting the construction

sought to be put on the material words in that article for finding out the ambit and width

of the power conferred by it.

564. The other part of the Preamble may next be examined. The Sovereign Democratic

Republic has been constituted to secure to all the citizens the objectives set out. The

attainment of those objectives forms the fabric of and permeates the whole scheme of the

Constitution. While most cherished freedoms and rights have been guaranteed the government has been laid under a solemn duty to give effect to the Directive Principles.

Both Parts III and IV which embody them have to be balanced and harmonised-then alone the dignity of the individual can be achieved. It was to give effect to the main

objectives in the Preamble that Parts III and IV were enacted. The three main organs of

government legislative, executive and judiciary and the entire mechanics of their

functioning were fashioned in the light of the objectives in the Preamble, the nature of

polity mentioned therein and the grand vision of a united and free India in which every

individual high or low will partake of all that is capable of achievement. We must,

therefore, advert to the background in which Parts III and IV came to be enacted as they

essentially form a basic element of the Constitution without which its identity will

completely change.

565. It is not possible to go back at any length to the great struggle for

freedom from British Rule and the attainment of independence. The British executive's arbitrary acts, internments and deportations without trial and curbs on the liberty of the press and individuals are too well known to every student of Indian history to be specifically mentioned. This was before some essential rights based on British Common law and jurisprudence came to be embodied in various Parliamentary enactments. According to B.N. Rau Year Book of Human Rights 1947, human rights, with few exceptions, were not guaranteed by the Constitution (Government of India Act). Shiva Rao has in his valuable study Framing of India's Constitution (B. Shiva Rao) given the various stages beginning with 1895 Constitution of India Bill framed by the Indian National Congress which envisaged a Constitution guaranteeing a number of freedoms and rights. Two events at a later stage exercised a decisive influence on the Indian leaders. One was the inclusion of a list of fundamental rights in the Constitution of Irish Free State in 1921 and the other, the problem of minorities. Ibid p. 172.

566. The next steps were the report of the Nehru Committee in 1928, the reiteration of the resolve at the session of the Indian National Congress at its Karachi Session in March 1931 and omitting some details, the deliberations of the Sapru Committee appointed by the All India Parties Conference (1944-45). The British Cabinet Mission in 1946 recommended the setting up of an Advisory Committee for reporting inter alia on fundamental rights. Before reference is made to the Objectives Resolution adopted in January 22, 1947 it must be borne in mind that the post war period in Europe had witnessed a fundamental orientation in juristic thinking, particularly in West Germany, characterized by a farewell to positivism, under the influence of positivist legal thinking. During the pre-war period most of the German Constitutions did not provide for judicial review which was conspicuously absent from the Weimar Constitution even though Hugo Preuss, often called the Father of that Constitution, insisted on its inclusion. After World War II when the disastrous effects of the positivist doctrines came to be realized there was reaction in favour of making certain norms immune from amendment or abrogation. This was done in the Constitution of the Federal Republic of Germany. The atrocities committed during Second World War and the world wide agitation for human rights

ultimately embodied in the U.N. Declaration of Human Rights on, which a number of the provisions in Parts III and IV of our Constitution are fashioned must not be forgotten while considering these matters. Even in Great Britain, where the doctrine of the legal sovereignty of Parliament has prevailed since the days of Erskine, Blackstone, Austin and lastly Dicey, the new trend in judicial decisions is to hold that there can be at least procedural limitations (requirement of form and manner) on the legislative powers of the legislature. This follows from the decisions in *Moore v. The Attorney General for the Irish Free State* (1935) A.C. 484; *Attorney General for New South Wales v. Trethowan* (1932) A.C. 526. The Objective's Resolution declared, inter alia, the firm, and the solemn resolve to proclaim India as Independent Sovereign Republic and to draw up for her future governance a Constitution. Residuary powers were to vest in the States. All power and authority of the Sovereign Independent India, its constituent parts and organs of government, were derived from the people and it was stated:

(5) wherein shall be guaranteed and secured to all the people of India, justice, social, economic and political; equality of status, of opportunity, and before the law; freedom of thought, expression, belief, faith, worship, vocation, association and action, subject to law and public morality; and

(6) wherein adequate safeguards shall be provided for minorities, backward and tribal areas, and depressed and other backward classes; and

(7) whereby shall be maintained the integrity of the territory of the Republic and its sovereign rights on land, sea, and air according to justice and the law of civilised nations, and

567. It may be recalled that as regards the minorities the Cabinet Mission had recognised in their report to the British Cabinet on May 6, 1946 only three main communities; general, muslims and sikhs. General community included all those who were nonmuslims or non-sikhs. The Mission had recommended an Advisory Committee to be set up by the Constituent Assembly which was to frame the rights of citizens, minorities, tribals and excluded areas. The Cabinet Mission statement had actually provided for the cession of sovereignty to the Indian people subject only to two matters which were; (1) willingness to conclude a treaty with His Majesty's Government to cover matters arising out of transfer of power and (2) adequate provisions for the protection of the minorities. Pursuant to the above and paras 5 and 6 of the Objectives Resolution the Constituent Assembly set up an Advisory Committee on January 24, 1947. The Committee was to consist of representatives of muslims, the depressed classes or the scheduled castes, the sikhs, christians, parsis, anglo-Indians, tribals and excluded areas besides the Hindus

Constituent Assembly Debates Vol. 2 pages 330-349. As a historical fact it is safe to say that at a meeting held on May 11, 1949 a resolution for the abolition of all reservations for minorities other than the scheduled castes found whole hearted support from an overwhelming majority of the members of the Advisory Committee. So far as the scheduled castes were concerned it was felt that their peculiar position would necessitate special reservation for them for a period of ten years. It would not be wrong to say that the separate representation of minorities which had been the feature of the previous Constitutions and which had witnessed so much of communal tension and strife was given up in favour of joint electorates in consideration of the guarantee of fundamental rights and minorities rights which it was decided to incorporate into the new Constitution. The Objectives Resolution can be taken into account as a historical fact which moulded its nature and character. Since the language of the Preamble was taken from the resolution itself the declaration in the Preamble that India would be a Sovereign, Democratic Republic which would secure to all its citizens justice, liberty and equality was implemented in Parts III and IV and other provisions of the Constitution. These formed not only the essential features of the Constitution but also the fundamental conditions upon and the basis on which the various groups and interests adopted the Constitution as the Preamble hoped to create one unified integrated community. The decision of the Privy Council in the Bribery Commissioner v. Pedrick Ranasinghe [1965] A.C. 172 at pp. 193-194 will require a more detailed discussion in view of the elaborate arguments addressed on both sides based on it. But for the present all that need be pointed out is that the above language is borrowed mainly from the judgment of Lord Pearce who, after setting out Section 29 of the Ceylon Constitutional Order which gave Parliament the power to make laws for the peace, order and good government of the island, said with regard to Clause (2) according to which no law could prohibit or restrict the free exercise of any religion, There follow (b), (c) and (d), which set out further entrenched religious and racial matters, which shall not be the subject of legislation. They represent the solemn balance of rights between the citizens of Ceylon, the fundamental conditions on which inter se they accepted the Constitution;

and these are therefore unalterable under the Constitution. Another opposite observation in this connection was made in *In re the Regulation and Control of Aeronautics in Canada* [1932] A.C. 54 at p. 70 while interpreting the British North America Act 1867. It was said that inasmuch as the Act embodied a compromise under which the original provinces agreed to federate, it is important to keep in mind that the preservation of the rights of minorities was a condition on which such minorities entered into the federation and the foundation upon which the whole structure was subsequently erected.

568. Our Constitution is federal in character and not unitary. In a federal structure the existence of both the Union and the States is indispensable and so is the power of judicial review.

According to Dicey: *Law of the Constitution* by A.V. Dicey p. 144.

A federal State derives its existence from the Constitution, just as a corporation derives its existence from the grant by which it is created.

Hence every power, executive, legislative or judicial, whether it belong to the nation or to the individual States, is subordinate to and controlled by the Constitution. *Law of the Constitution* by A.V. Dicey p. 144.

The object for which a federal State is formed involves a division of authority between

the national government and the separate States. *Ibid* p. 151. Federalism can flourish only

among communities imbued with a legal spirit and trained to reverence the law. Swiss

federalism, according to Dicey, "fails, just where one would expect it to fail, in

maintaining that complete authority of the courts which is necessary to the perfect federal

system". *Ibid* p. 180. The learned Advocate General of Maharashtra while relying a great

deal on Dicey's well known work in support of his other points, has submitted that

although he was one of the greatest writers on the law of English Constitution, his book

was concerned with two or three guiding principles which pervade the modern Constitution of England. The discussion of federal government in his book was a subordinate part and the discussion was designed to bring out sharply the two or three

guiding principles of the English Constitution by contrast with the different principles

underlying the Constitution of the federal government. Reliance has been placed on

Professor Wheare's statement in his book *Federal Government*, 4th Edn. (1963) that the

Swiss Courts are required by the Constitution to treat all laws passed by the federal

assembly as valid though they may declare Cantonal laws to be void and that does not

constitute such a departure from the federal principle that the Swiss people cannot be

regarded as having a federal Constitution and a federal government. Switzerland is

probably the only country having a federal Constitution where full-fledged right of judicial review is not provided. We are unable to understand how that can have any relevancy in the presence of judicial review having been made an integral part of our Constitution.

569. It is pointed out on behalf of the petitioners that the scheme of Article 368 itself contains intrinsic pieces of evidence to give a limited meaning to the word "amendment".

Firstly, Article 368 refers to "an amendment of this Constitution", and the result of the amendment is to be that "the Constitution shall stand amended". As the Constitution has

an identity of its own, an amendment, made under a power howsoever widely worded cannot be such as would render the Constitution to lose its character and nature. In other words, an amendment cannot be such as would denude the Constitution of its identity.

The amending power is conferred on the two Houses of Parliament, whose identity is

clearly established by the provisions in the Constitution. It must be the Parliament of the

Sovereign Democratic Republic. It is not any Parliament which has the amending power,

but only that Parliament which has been created by the Constitution. In other words, it

must continue to be the Parliament of a sovereign and democratic republic. The institution of States must continue to exist in order that they may continue to be

associated with the amending power in the cases falling under the proviso. If the

respondents are right, the proviso can be completely deleted since Article 368 itself can be

amended. This would be wholly contrary to the scheme of Article 368 because two agencies are provided for amending the provisions covered by the proviso. One agency

cannot destroy the other by the very exercise of the amending power. The effect of

limitless amending power in relation to amendment of Article 368 cannot be conducive to

the survival of the Constitution because the amending power can itself be taken away and

the Constitution can be made literally unamendable or virtually unamendable by providing for an impossible majority.

570. While examining the above contentions, it is necessary to consider the claim of the

respondents that the amending body under Article 368 has the full constituent power. It

has been suggested that on every occasion the procedure is followed as laid down in

Article 368 by the two Houses of Parliament and the assent of the President is given there

is the reproduction of the functions of a Constituent Assembly. In other words, the

Parliament acts in the same capacity as a Constituent Assembly when exercising the power of amendment under the said Article. This argument does not take stock of the admission made on behalf of the respondents that the entire Constitution cannot be repealed or abrogated by the amending body. Indisputably, a Constituent Assembly specially convened for the purpose would have the power to completely revise, repeal or abrogate the Constitution. This shows that the amending body under Article 368 cannot have the same powers as a Constituent Assembly. Even assuming that there is reference on the nature of power between enacting a law and making an amendment, both the powers are derived from the Constitution. The amending body has been created by the Constitution itself. It can only exercise those powers with which it has been invested. And if that power has limits, it can be exercised only within those limits. 571. The respondents have taken up the position that even if the power was limited to some extent under Article 368, as it originally stood, that power could be enlarged by virtue of Clause (e) of the proviso. It must be noted that the power of amendment lies in the first part of Article 368. What Clause (e) in the proviso does is to provide that if Article 368 is amended, such an amendment requires ratification by the States, besides the larger majority provided in the main part. If the amending power under Article 368 has certain limits and not unlimited Article 368 cannot be so amended as to remove these limits nor can it be amended so as to take away the voice of the states in the amending process. If the Constitution makers were inclined to confer the full power of a Constituent Assembly, it could have been easily provided in suitable terms. If, however, the original power was limited to some extent, it could not be enlarged by the body possessing the limited power. That being so, even where an amending power is expressed in wide terms, it has to be exercised within the framework of the Constitution. It cannot abrogate the Constitution or frame a new Constitution or alter or change the essential elements of the Constitutional structure. It cannot be overlooked that the basic theory of our Constitution is that "Pouvoir Constituent", is vested in the people and was exercised, for and on other behalf by the Constituent Assembly for the purpose of framing the Constitution. 572. To say, as has been said on behalf of the respondents, that there are only two categories of Constitutions, rigid or controlled and flexible or uncontrolled and that the difference between them lies only in the procedure provided for amendment is an oversimplification. In certain Constitutions there can be procedural and or

substantive limitations on the amending power. The procedural limitations could be by way of a prescribed form and manner without the satisfaction of which no amendment can validly result. The form and manner may take different forms such as a higher majority either in the houses of the concerned legislature sitting jointly or separately or by way of a convention, referendum etc. Besides these limitations, there can be limitations in the content and scope of the power. To illustrate, although the power to amend under Article 5 of the U.S. Constitution resides ultimately in the people, it can be exercised in either of the modes as might be prescribed by the Congress viz. through ratification by the State legislatures or through conventions, specially convened for the purpose. The equal suffrage in the Senate granted to each of the States, cannot be altered without the consent of the State. The true distinction between a controlled and an uncontrolled Constitution lies not merely in the difference in the procedure of amendment, but in the fact that in controlled Constitutions the Constitution has a higher status by whose touch-stone the validity of a law made by the legislature and the organ set up by it is subjected to the process of judicial review. Where there is a written Constitution which adopts the preamble of sovereignty in the people there is firstly no question of the law-making body being a sovereign body for that body possesses only those powers which are conferred on it. Secondly, however representative it may be, it cannot be equated with the people. This is especially so where the Constitution contains a Bill of Rights for such a Bill imposes restraints on that body, i.e. it negates the equation of that body with the people.

573. Before concluding the topic on the interpretation or construction of the words "amendment of this Constitution" in Article 368, it is necessary to deal with some American decisions relating to Article 5 of the American Constitution on which a great deal of reliance was placed on behalf of the respondents for establishing that the word "amendment" has a precise and definite meaning which is of the widest amplitude. The first relates to the 18th amendment, known as the National Prohibition cases in the State of Rhode Island v. A. Mitchel Palmer 64 L. Ed. 946. In that case and other cases heard with it, elaborate arguments were addressed involving the validity of the 18th amendment and of certain features of the National Prohibition Law, known as Volstead Act, which was adopted to enforce the amendment. The relief sought in each case was an injunction against the execution of that Act. The Court merely stated its conclusions and did not

give any reasons-a matter which was profoundly regretted by Chief Justice White.
From,

the conclusions stated and the opinion of the Chief Justice it appears that a good deal of controversy centered on Section 2 of the amendment which read "Congress and the several States shall have concurrent power to enforce this Article by appropriate legislation". In the dissenting opinion of Mr. Justice Mckenna it was said that the Constitutional validity of the 18th amendment had also been attacked and although he dissented in certain other matters he agreed that the 18th amendment was a part of the Constitution of the United States. The learned Advocate General of Maharashtra has placed a great deal of reliance on this decision. His argument is that though the judgment in the Rhode Island case gives no reasons, yet it is permissible to look at the elaborate briefs filed by the counsel in several cases and their oral arguments in order to understand what was argued and what was decided. One of the main contentions raised was that the 18th amendment was not in fact an amendment, for an amendment is an alteration or improvement of that which is already there in the Constitution and that term is not intended to include any addition of a new grant of power. The judgment shows that this argument was not regarded even worth consideration and was rejected outright. Now it is significant that most of the justices including the Chief Justice who delivered judgments dealt only with the questions which had nothing to do with the meaning of the word "amendment". It is not possible to derive much assistance from this judgment. 574. In J.J. Dhillon v. R.W. Gloss 65 L. Ed. 994 it was observed that an examination of Article 5 discloses that it was intended to invest Congress with a wide range of power in proposing amendments. However, the following observations are noteworthy and have been relied upon in support of the case of the petitioners that according to the United States Constitution it is the people who get involved in the matter of amendments. "A further mode of proposal-as yet never invoked-is provided, which is, that on application of two-third of the States, Congress shall call a convention for the purpose. When proposed in either mode, amendments, to be effective must be ratified by the legislatures or by convention in three fourths of the States as the one or the other mode of ratification may be proposed by the Congress". Thus the people of the United States, by whom the Constitution was ordained and established, have made it a condition for amending that instrument that the amendment be submitted to representative assemblies in the several

States and be ratified in three-fourths of them. The plain meaning of this is (a) that all amendments must have the sanction of the people of the United States, the original fountain of power, acting through representative assemblies, and (b) that ratification by these assemblies in three-fourths of the States shall be taken as a decisive expression of the people's will and be binding on all.

575. Although all the amendments were made by the method of ratification by the requisite number of State legislatures, the convention mode was adopted when the 18th

amendment was repealed by the 21st amendment Another case, *United States of America*

v. William H. Sprague and William J. Howey 75 L. Ed. 640, 644, will be discussed more

fully while considering the question of implied limitations. All that it establishes for the

purpose of meaning of amendment is that one must look to the plain language of the

Article conferring the power of amendment and not travel outside it. Article 5, it was

said, contained procedural provisions for Constitutional change by amendment without

any present limitation whatsoever except that no State might be deprived of equal

representation in the Senate without its consent. Mr. Justice Douglas while delivering the

opinion of the court in *Howard Joseph Whitehill v. Wilson Elkins* 19 L. Ed. 2d. 228

stated in categorical terms that the Constitution prescribes the method of "alteration" by

amending process in Article 5 and, while the procedure for amending it is restricted there

is no restraint on the kind of amendment that may be offered. Thus the main submission

on behalf of the counsel for the respondents has been that Article 5 of the United States

Constitution served as model for Article 368 of our Constitution.

576. Article V provides different modes of amendment These may be analysed as follows:

577. The proposals can be made-,

(1) By two thirds of both Houses of the Congress or

(2) By a Convention for proposing amendments to be called by the Congress on the application of legislatures of two-thirds of the States.

578. The ratification of the proposals has to be made by

(1) Legislatures of three fourths of the States or

(2) by Conventions in three fourths thereof (as one of the other mode of ratification may be proposed by the Congress)

In *Hawke v. Smith* 64 L. Ed. 871, the question raised was whether there was any conflict

between Article 5 of the U.S. Constitution which gave power to the Congress to provide whether the ratification should be by State Legislatures or Conventions and the Constitution of Ohio as amended. The Supreme Court held that Article 5 was grant of authority by the people to Congress. The determination of the method of ratification was the exercise of the national power specifically granted by the Constitution and that power was limited to two methods, by the State Legislatures or by Conventions. The method of ratification, however, was left to the choice of Congress. The language of the Article was plain and admitted of no doubt in its interpretation. In that case the Constitution of Ohio even after amendment which provided for referendum vested the legislative power primarily in a General Assembly consisting of a Senate and a House of Representatives. Though the law making power of a State was derived from the people the power to ratify a proposed amendment to the Federal Constitution had its source in that Constitution. The act of ratification by the State derived its authority from the federal Constitution. Therefore, in order to find out the authority which had the power to ratify, it was Article 5, to which one had to turn and not to the State Constitution. The choice of means of ratification was wisely withheld from conflicting action in the several States. 579. On behalf of the respondents it is claimed that these decisions establish that the power of amendment conferred by Article 5 was of the widest amplitude. It could be exercised through the representatives of the people, both in the Congress and the State Legislatures. In the case of Article 368 also Parliament consists of representatives of the people and the same analogy can be applied that it is a grant of authority by the people to the Parliament. This argument loses sight of the fact that under the American theory of government, power is inherent in the people including the right to alter and amend the organic instrument of government. Indeed, practically all the State Constitutions associate the people with the amending process. The whole basis of the decisions of the Supreme Court of the United States and of some of the State Supreme Courts is that it is the people who amend the Constitution and it is within their power to make the federal Constitution or unmake it. The reason is quite obvious. So far as Article 5 of the American Constitution is concerned, out of the alternative methods provided for amendment, there is only one in which the people cannot get directly associated, whereas in the others they are associated with the amending process, e.g., proposal of amendment by two-thirds of

both Houses of Congress and its ratification by conventions in three-fourths of the States
or a proposal of amendment by a convention called on the application of two-thirds of the
State Legislatures and its ratification by either convention in three-fourths of the States
or

by the Legislature of the same number of States.

580. The meaning of the words "amendment of this Constitution" as used in Article 368

must be such which accords with the true intention of the Constitution makers as ascertainable from the historical background, the Preamble, the entire scheme of the

Constitution, its structure and framework and the intrinsic evidence in various Articles

including Article 368. It is neither possible to give it a narrow meaning nor can such a

wide meaning be given which can enable the amending body to change substantially or

entirely the structure and identity of the Constitution. Even the concession of the learned

Attorney General and the Advocate General of Maharashtra that the whole Constitution

cannot be abrogated or repealed and a new one substituted supports the conclusion that

the widest possible meaning cannot be given to it.

581. Coming to the question of what has been called "inherent and implied limitations" to

the amending power in Article 368 of our Constitution. Mr. Palkhivala has maintained

that inherent limitations are those which inhere in any authority from its very nature,

character and composition whereas implied limitations are those which are not expressed

but are implicit in the scheme of the Constitution conferring the power. He maintains that

the "rule is established beyond cavil that in construing the Constitution of the United

States, what is implied is as much a part of the instrument as what is expressed",

American Jurisprudence (2d), Vol. 16, p. 251 Although the courts have rejected in

various cases a plea that a particular inherent or implied limitation should be put upon

some specific Constitutional power, no court, says Mr. Palkhivala, has ever rejected the

principle that such limitations which are fairly and properly deducible from the scheme of

the Constitution should be read as restrictions upon a power expressed in general terms.

Several decisions of our court, of the Privy Council, Irish courts, Canadian and Australian

courts have been cited in support of the contention advanced by him. The approach to this

question has essentially to be to look at our own decisions first. They fall in two

categories. In one category are those cases where limitations have been spelt out of

Constitutional provisions; the second category consists of such decisions as have laid

down that there is an implied limitation on legislative power.

582. Taking up the cases of the first category, before 1955, Article 13(2) was read as

containing an implied limitation that the State could acquire property only for a public purpose. (The Fourth Amendment expressly enacted this limitation in 1955). It was observed in *Chiranjit Lal Chowdhuri v. The Union of India and Ors.* [1950] S.C.R. 869

at p. 902 that one limitation imposed upon acquisition or taking possession of private property which is implied in the clause is that such taking must be for a public purpose.

Mahajan J., (later Chief Justice) said in *the State of Bihar v. Maharajadhiraja Sir*

Kameshwar Singh of Darbhanga and Ors. [1952] S.C.R. 889 at p. 934 that the existence

of a public purpose is undoubtedly an implied condition of the exercise of compulsory

power of acquisition by the State. The power conferred by Articles 3 and 4 of the

Constitution to form a new State and amend the Constitution for that purpose has been

stated to contain the implied limitation that the new State must conform to the democratic

pattern envisaged by the Constitution and the power which Parliament can exercise is not

the power to override the Constitution *Mangal Singh and Anr. v. Union of India* [1967] 2

S.C.R. 109 at p. 112 scheme. It may be mentioned that so far as Article 368 is concerned

there seems to have been a good deal of debate in *Golak Nath's* case on the question

whether there were any inherent or implied limitations. Dealing with the argument that in

exercise of the power of amendment Parliament could not destroy the structure of the

Constitution but it could only modify the provisions thereof within the framework of its

original instrument for its better effectuation, Subba Rao C.J. observed that there was no

necessity to express any opinion on this all important question owing to the view which

was being taken with regard to the meaning of the word "law" in Article 13(2). But it was

recognised that the argument had considerable force. Wanchoo J. (as he then was) considered the question of implied limitations at some length but felt that if any implied

limitation that basic features of the Constitution cannot be changed or altered, were to be

put on the power of amendment, the result would be that every amendment made in the

Constitution would involve legal wrangle. On the clear words of Article 368 it was not

possible to infer any implied limitation on the power of amendment *Hidayatullah J.*, (later

Chief Justice) discussed the question of implied limitations and referred to the state of

writings on the subject. He expressed no opinion on the matter because he felt that in our

Constitution Article 13(2) took in even constitutional amendments. *Bachawat J.*,

disposed of the matter by saying that the argument overlooked the dynamic character of the Constitution. Ramaswami J., clearly negated the argument based on implied limitations on the ground that if the amending power is an adjunct of sovereignty it does not admit of any limitation.

583. The cases which fall in the second category are decidedly numerous. It has been consistently laid down that there is an implied limitation on the legislative power; the legislature cannot delegate the essentials of the legislative function. Mukherjea J. (who later became Chief Justice) in *Re. Delhi Laws Act 1912* case (1951) S.C.R. 747 at pp. 984-985 stated in clear language that the right of delegation may be implied in the exercise of legislative power only to the extent that it is necessary to make the exercise of the power effective and complete. The same implied limitation on the legislature, in the field of delegation, has been invoked in *Raj Narain Singh v. Patna Administration* [1955] 2 S.C.R. 290; *Hari Shankar Bagla v. State of Madhya Pradesh* [1955] 1 S.C.R. 380; *Vasantlal Sanjanwala v. State of Bombay* [1961] 1 S.C.R. 341; *The Municipal Corporation of Delhi v. Birla Cotton Mills* [1968] 3 S.C.R. 251 and *Grewal D.S. v. State of Punjabi* [1959] Supp. 1 S.C.R. 792. Implied limitations have also been placed upon the legislature which invalidates legislation usurping the judicial power : See for instance *Shri Prithvi Cotton Mills Ltd. v. Broach Borough Municipality and Ors.* (1970) 1 S.C.R. 388 at pp. 392-393 and *Municipal Corporation of the City of Ahmedabad Etc. v. New Shorrock Spg. and Wvg. Co. Ltd. etc.* (1971) 1 S.C.R. 288 at pp. 294-297.

584. Before we go to cases decided by the courts in other countries it may be useful to refer to some of the Constitutional provisions which are illustrative of the concept of implications that can be raised from the language and context thereof. The first provision in point is Article 368 itself. It has been seen at the stage of previous discussion that the power to amend is to be found in that Article only by implication as there is no express conferment of that power therein. The learned Solicitor General made a concession that various Articles are included by implication in the clauses of the provision by reason of the necessity for giving effect to the express power contained therein, e.g., Articles 52 and 53 must be so read as to impliedly include the power to amend Articles 54 and 55 which are not expressly mentioned in Clause (a) of the proviso. It has been implied that the President has been made a formal or a Constitutional head of the executive and the real executive power vests in the council of ministers and the Cabinet R.S. Ram Jawaya Kapur and Ors. v. The State of Punjab [1955] 2 S.C.R. 225. Article 53 declares

that the

executive power of the Union shall be vested in the President; Article 74 provides for a council of ministers headed by the Prime Minister to aid and advise the President in exercise of his functions. Article 75 says that the Prime Minister shall be appointed by the President and the other ministers shall be appointed by him on the advice of the Prime Minister. The ministers shall hold office during the pleasure of the President and the council of ministers shall be collectively responsible to the House of the People.

Although the executive power of the President is apparently expressed in unlimited terms, an implied limitation has been placed on his power on the ground that he is a formal or Constitutional head of the executive and that the real executive power vests in the council of ministers. This conclusion which is based on the implications of the Cabinet System of government can be said to constitute an implied limitation on the power of the President and the GovernOrs.

585. It may be mentioned in all fairness to the Advocate General of Maharashtra that the court did not desire him to address in detail about the President or the Governor being a Constitutional head and the implications arising from the system of Cabinet Government.

The decisions thereon are being referred to for the purpose of noticing that according to them the President or the Governor though vested with full executive powers cannot exercise them personally and it is only the council of ministers which exercises all the executive functions. This is so, notwithstanding the absence of any express provisions in the Constitution to that effect.

586. Next, reference may be made to the decisions of the Privy Council relied on by one side or the other for deciding the question under consideration. The Advocate General of Maharashtra laid much stress on the principle enunciated in *Queen v. Burah* (1878) 3

A.C. 889 at pp. 904-5, which according to him, has been consistently followed by the Federal Court and this Court. The principle is that when a question arises whether the prescribed limits have been exceeded the court must look to the terms of the instrument "by which affirmatively, the legislative powers were created and by which, negatively, they were restricted. If what has been done is legislation within the general scope of the affirmative words which give the power, and if it violates no express condition or restriction by which that power is limited...it is not for any court of justice to inquire

further, or to enlarge constructively those conditions or restrictions". The ratio of that decision is that conditional legislation is to be distinguished from delegation of legislative power and that conditional legislation is within the power of the legislature in the absence of any express words prohibiting conditional legislation. The oft-quoted words about the affirmative conferment of power and absence of express restriction on the power are used only to repel the contention that conditional legislation was barred by implication. It is significant that if *Queen v. Burah* (1878) 3 A.C. 889 at pp. 904-5 is to be treated as laying down the principle that the powers in a Constitution must be conferred only in affirmative words the argument of the respondents itself will suffer from the infirmity that it is only by necessary implication from the language of Article 368 (before the 24th Amendment) that the source of the amending power can be said to reside in that Article. There were no such words in express or affirmative terms which conferred such a power. Indeed in *Golak Nath* (1967) 2 S.C.R. 762 case there was a sharp divergence of opinion on this point. Subba Rao C.J. with whom four other judges agreed held that the source of the amending power was to be found in the provisions conferring residuary provisions, namely, Article 248 read with Entry 97 in the Seventh Schedule. The other six judges including Hidayatullah J. were of the view that the power was to be found in Article 368 itself.

587. In *The Initiative and Referendum Act* [1919] A.C. 935 the position briefly was that the British North America Act 1867, Section 92, head I, which empowered a Provincial Legislature to amend the Constitution of the Province, "excepting as regards the office of the Lieutenant-Governor," excluded the making of a law which abrogated any power which the Crown possessed through the Lieutenant Governor who directly represented the Crown. The Legislative Assembly of Manitoba passed the Initiative and Referendum Act. It compelled the Lieutenant Governor to submit a proposed law to a body of voters totally distinct from the legislature of which he was the Constitutional head. The Privy Council was of the opinion that under the provisions of that law the Lieutenant Governor was rendered powerless to prevent a proposed law when passed in accordance with the Act from becoming actual law. The language of the Act could not be construed otherwise than as intended, seriously affecting the position of the Lieutenant Governor as an integral part of the legislature and to detract from the rights which were important in the

legal theory of that position. Section 92 of the Act of 1867 entrusted the legislative power in a Province to its legislature and that legislature only. A body that has power of legislation on the subjects entrusted to it, the power being so ample as that enjoyed by a Provincial legislature in Canada, could while "preserving its own capacity intact seek the assistance of a subordinate agency...but it does not follow that it can create and endow with its own capacity a new legislative power not created by the Act to which it owes own existence" Ibid at p. 945.

588. This case is more in point for consideration of validity of that part of the 25th Amendment which inserted Article 31-C but it illustrates that an implied limitation was spelt out from the Constitutional provisions of the British North America Act 1867 which conferred legislative power on the legislatures of provinces as constituted by that Act.

589. *McCawley v. The King* (1920) A.C. 691 was another case involving Constitutional questions. The legislature of Queensland (Australia) had power to include in an Act a provision not within the express restrictions contained in the Order in Council of 1959. But inconsistent with the term of the Constitution of Queensland, without first amending the term in question under the powers of amendments given to it, the Industrial Arbitration Act of 1916 contained provisions authorising the Government in Council to appoint any Judge of the Court of Industrial Arbitration to be a Judge of the Supreme Court of Queensland. After explaining the distinction between a controlled and an uncontrolled Constitution, their Lordships proceeded to examine the contention that the Constitution of Queensland could not be altered merely by enacting legislation inconsistent with its article; it could only be altered by an Act which in plain and unmistakable language referred to it; asserted the intention of the legislature to alter it, and consequentially gave effect to that intention by its operative provisions. That argument was repelled by saying Ibid p. 706.

It was not the policy of the Imperial Legislature at any relevant period to shackle or control in the manner suggested, the legislative power of the Nascent Australian Legislations.

Section 5 of the Colonial Laws Validity Act 1865 was held to have clearly conferred on the colonial legislatures a right to establish courts of judicature and to abolish and reconstitute them. A question had been raised that the Constitution Act of 1867 enacted certain fundamental organic provisions of such a nature as to render the Constitution controlled. It was said that if a change of that nature was contemplated, there

would have
been some indication in the very lengthy preamble of the Act, of that intention.
Their
Lordships could observe nowhere in the preamble the least indication that it was
intended
for the first time to make provisions which were sacrosanct, or which at least
could only
be modified by methods never previously required. It was finally held that the
legislature
of Queensland was the master of its own household except in so far as its power
had in
special cases been restricted. No such restriction had been established and none
in fact
existed.

590. The Advocate General of Maharashtra has sought to deduce the following
propositions from the dissenting judgment of Issacs and Rich JJ of the
Australian High

Court which was approved by the Privy Council in the above case:

(1) Unless there is a special procedure prescribed for amending any part of
the Constitution, the Constitution is uncontrolled and can be amended by
the manner laid down for enacting ordinary law and, therefore, a
subsequent law inconsistent with the Constitution would pro-tanto repeal
the Constitution.

(2) A Constitution largely or generally uncontrolled may contain one or
more provisions which prescribe a different procedure for amending them.
In that case an ordinary law cannot amend them and the procedure must be
strictly followed if the amendment is to be effected.

(3) The implication on limitation of power ought not to be imported from
general concepts but only from express or necessarily implied limitations
(emphasis supplied).

(4) While granting powers to the colonial legislatures, the British
Parliament as far back as 1865 refused to put limitations of vague
character, but limited those limitations to objective standards e.g., statutes,
statutory regulations, etc. to objective standards.

591. We have already repelled at an earlier stage Pp. 70-71 the contention that
the only
distinction between a controlled and an uncontrolled Constitution is that in the
former the
procedure prescribed for amending any part of the Constitution has to be
strictly
followed. The second proposition is of a similar nature and can hardly be
disputed. As

regards the third and fourth proposition all that need be said is that implied limitation which was sought in McCawley's case by counsel for the respondents was that the Queensland legislature should first amend the Constitution and then pass an Act which would otherwise have been inconsistent, for the Constitution had not been amended. That contention in terms was rejected. The Constitution in McCawley's case was uncontrolled and therefore the Queensland legislature was fully empowered to enact any breaking law. Moreover Lord Birkenhead in an illuminating passage in McCawley's [1920] A.C. 691 at pp. 703-704 case has himself referred to the difference of view among writers upon the subject of Constitutional law which may be traced "mainly to the spirit and genius of the nation in which a particular Constitution has its birth". Some communities have "shrunk from the assumption that a degree of wisdom and foresight has been conceded to their generation which will be, or may be, wanting to their successors". Those who have adopted the other view probably believed that "certainty and stability were in such a matter the supreme desiderata". It was pointed out that different terms had been employed by the text book writers to distinguish between those who contrasted forms of Constitution. It was added: Their special qualities may perhaps be exhibited as clearly by calling the one a controlled and the other an uncontrolled Constitution as by any other nomenclature.

592. Lord Birkenhead did not make any attempt to define the two terms "controlled" and "uncontrolled" as precise legal terms, but merely used them as convenient expressions.

593. The next case of importance is Attorney General for New South Wales v. Trethowan. (1932) A.C. 526 The Constitution Act, 1902 enacted by the legislature of New South Wales, was amended in 1929 by adding Section 7-A which provided that no Bill for abolishing the Legislative Council should be presented to the Governor for His Majesty's assent until it had been approved by a majority of the electors voting upon a submission made in accordance with the section. The same provision was to apply to a Bill for repealing that section. In 1930 two Bills were passed by the Legislature. One was to repeal Section 7-A and the other to abolish the Legislative Council. Neither of the two Bills had been approved in accordance with Section 7-A. Reference was made to Section 5 of the Colonial Laws Validity Act 1865, which conferred on the Legislature of the State full power to make laws inter alia in respect of the Constitution in such "manner and form" as might from time to time be provided by any Act of Parliament Letters

Patent,
Colonial law in force in the colony etc. It was held that the whole of Section 7-A was within the competence of the legislature of the State under Section 5 of the Colonial Laws Validity Act. The provision that the Bills must be approved by the electors before being presented was a provision as to form and manner and accordingly the Bills could not lawfully be presented unless and until they had been approved by a majority of the electors voting. A number of contentions were raised, out of which the following may be noted:

(a) The Legislature of New South Wales was given by the Imperial Statutes plenary power to alter the Constitution, powers and procedure of such Legislature.

(b) When once the Legislature had altered either the Constitution or powers and procedure, the Constitution and powers and procedure as they previously existed ceased to exist and were replaced by the new Constitution and powers.

594. According to their lordships the answer depended entirely upon a consideration of the meaning of Section 5 of the Colonial Laws Validity Act read with Section 4 of the Constitution statute assuming that the latter section still possessed some operative effect.

The whole of Section 7-A was held to be competently enacted. The Privy Council, however, held that the repealing Bill after its passage through both Chambers could not be lawfully presented for the Royal assent without having first received the approval of the electors in the prescribed manner. In order to be validly passed, the law must be passed in the manner prescribed by Section 7-A which was in force for the time being.

Trethowan's case (supra) fully illustrates how the Privy Council enforced such limitations even though they were of a procedural nature which had been provided in a Constitutional statute relating to the form and manner in which any such statute could be altered or repealed.

595. These decisions, in particular, (Trethowan's case) illustrate that the Privy Council

has recognised a restriction on the legislative powers of a sovereign legislature even though that is confined only to the form and manner laid down in a Constitution for amending the Constitution Act. In a country which still sticks to the theory of Parliamentary sovereignty, limitations of any other nature would be regarded as

somewhat non-conformist and unorthodox.

596. The decision of the Privy Council in the Bribery Commissioner v. Pedrick Ranasinghe [1965] A.C. 172 has been heavily relied on by both sides. On behalf of the petitioners support has been sought from the observations relating to rights regarded as

fundamental, being unalterable. What had happened there was that by virtue of Section

41 of the Bribery Amendment Act 1956, a provision was made for the appointment of a

Bribery Tribunal which was in conflict with the requirement in Section 55 of the Ceylon

Constitution (Order in Council 1946), hereinafter called the "Ceylon

Constitution Act",

according to which the appointment of Judicial Officers was vested in the Judicial

Service Commission. Section 29 of the Ceylon Constitution Act provided by Sub-section

(1) that subject to the provisions of the Order, the Parliament had the power to make laws

for the peace, order and good government of the island. By Sub-section (2) it was

provided that no such law shall (a) prescribe or restrict the free exercise of any religion

etc. This was followed by Clauses (b), (c) and (d) which set out further religious and

racial matters, which according to their Lordships, could not be the subject of legislation.

In the words of their Lordships "they represent the solemn balance of rights between the

citizens of Ceylon, the fundamental conditions on which inter se they accepted the

Constitution; and these are therefore unalterable under the Constitution". By Sub-section

(3) any law made in contravention of Sub-section (2) was to be void to the extent of such

contravention. Sub-section (4) may be reproduced below:

(4) In the exercise of its powers under this section, Parliament may amend or repeal any of the provisions of this Order, or of any other Order of Her Majesty in Council in its application to the Island:

Provided that no Bill for the amendment or repeal of any of the provisions of this Order shall be presented for the Royal

Assent unless it has endorsed on it a certificate under the hand of the Speaker that the number of votes cast in favour

thereof in the House of Representatives amounted to not less than two-thirds of the whole number of Members of

the House (including those not present).

Every certificate of the Speaker under this sub-section shall be conclusive for all purposes and shall not be questioned in any court of law.

597. The Bribery Amendment Act 1958 had not been enacted in accordance with the provisions contained in Sub-section (4) of Section 29 of the Ceylon Constitution Act. As

it involved a conflict with the Constitution, it was observed that a certificate of the

Speaker as required by Sub-section (4) was a necessary part of the Act making process.

The point which engaged the serious attention of the Privy Council was that when a

sovereign Parliament had purported to enact a Bill and it had received the Royal, Assent, could it be a valid Act in course of whose passing there was a procedural defect, or was it an invalid Act which Parliament had no power to pass in that manner ? A distinction was made while examining the appellant's arguments between Section 29(3) which expressly made void any Act passed in respect of the matters entrenched in and prohibited by Section 29(2); whereas Section 29(4) made no such provisions, but merely couched the prohibition in procedural terms. Reliance had been placed on behalf of the appellant Bribery Commissioner on the decision in McCawley's case. It was pointed out that McCawley's case, so far as it was material, was in fact opposed to the appellant's reasoning. It was distinguished on the ground that the Ceylon legislature had purported to pass a law which being in conflict with Section 55 of the Ceylon Constitution Act, must be treated, if it was to be valid, as an implied alteration of the Constitutional provisions about the appointment of judicial officers. It was held that such alterations, even if expressed, could only be made by laws which complied with the special legislative procedure laid down in Section 29(4). The Ceylon Legislature did not have the general power to legislate so as to amend its Constitution by ordinary majority resolutions such as the Queensland Legislature was found to have under Section 2 of its Constitution Act.

598. The learned Advocate General of Maharashtra has referred to the arguments in Ranasinghe's case and has endeavoured to explain the observations made about the entrenched provisions being unalterable by saying that the same were obiter. According to him it was not the respondent's case that any provision was unamendable. The references to the solemn compact etc. were also obiter because the appeal did not raise any question about the rights of religion protected by Sub-section (2) or Section 29 and the issues were entirely different. It is claimed that this decision supports the position taken up on behalf of the respondents that it is only the form and manner which is material in a controlled Constitution and that the above decision is an authority for the

proposition that in exercise of the amending power a controlled Constitution can be converted into an uncontrolled one. Any implied limitations on Parliament's amending power here can be abrogated by an amendment of Article 368 itself and the amending power can be enlarged by an exercise of that very power. According to Mr. Palkhivala this argument is wholly fallacious. Firstly, the observations of the Privy Council Ibid p. 198 is merely on the form and manner of amendment and has nothing to do with substantive limitations on the power of amendment. Placing limits on the amending power cannot be confused with questions of special legislative process which is also referred to by their Lordships. Ibid portions D to E Secondly, the Ceylon Constitution authorised the Parliament to amend or repeal the Constitution, which power is far wider than the power of amendment simpliciter conferred by Article 368. It is suggested that Ranasinghe's case is a direct authority against the respondents since it held the religious and racial rights to be unalterable, which clearly implies that Parliament had no competence to take away those rights even in exercise of its power to amend the Constitution by following the prescribed form and manner in Sub-section (4) of Section 29 of the Ceylon Constitution Act. The material importance of this case is that even though observations were made by the Lordships which may in a sense be obiter those were based on necessary implications arising from Section 29 of the Ceylon Constitution Act and were made with reference to interpretation of Constitutional provisions which had a good deal of similarity (even on the admission of the Advocate General of Maharashtra) with some parts of our Constitution, particularly those which relate to fundamental rights.

599. Don John Francis Douglas Liyange v. The Queen [1967] 1 A.C. 259 is another decision on which strong reliance has been placed on behalf of the petitioners. The Ceylon Parliament passed an Act which substantially modified the Criminal Procedure Code inter alia by purporting to legalise an ex-post facto detention for 60 days of any person suspected of having committed an offence against the State. This class of offences for which trial without a jury by three Judges nominated by the Minister for Justice could be ordered was widened and arrest without a warrant for waging war against the Queen could be effected. New minimum penalties for that offence were provided. The Privy Council held that the impugned legislation involved a usurpation and infringement by the legislature of judicial powers inconsistent with the written Constitution of

Ceylon which, while not in terms vesting judicial functions in the judiciary, manifested an intention to secure in the judiciary a freedom from political, legislative and executive control and in effect left untouched the judicial system established by the Charter of Justice of 1833. The legislation was struck down as void. Their Lordships observed inter alia that powers in case of countries with written Constitutions must be exercised in accordance with the terms of the Constitution from which they were derived. Reference was made to the provisions in the Constitution for appointment of Judges by the Judicial Service Commission and it was pointed out that these provisions manifested an intention to secure in the judiciary a freedom from political, legislative and executive control. It was said that these provisions were wholly appropriate in a Constitution which intended that judicial power shall vest only in the judicature. And they would be inappropriate in a Constitution by which it was intended that judicial power should be shared by the executive or the legislature.

600. There seems to be a good deal of substance in the submission of Mr. Palkhivala that the above decision is based on the principle of implied limitations; because otherwise under Section 29(1) of the Ceylon Constitution Act Parliament was competent to make laws for the peace, order and good government of the island subject to the provisions of the Order. Strong observations were made on the true nature and purpose of the impugned enactments and it was said that the alterations made by them in the functions of the judiciary constituted a grave and deliberate incursion in the judicial sphere. The following passage is noteworthy and enlightening:

If such Acts as these were valid the judicial power could be wholly absorbed by the legislature and taken out of the hands of the judges. It is appreciated that the legislature has no such general intention. It was beset by a grave situation and it took grave measures to deal with it, thinking, one must presume, that it had power to do so and was acting rightly. But that consideration is irrelevant, and gives no validity to acts which infringe the Constitution. What is done once, if it be allowed, may be done again and in a lesser crisis and less serious circumstances. And thus judicial power may be eroded. Such an erosion is contrary to the clear intention of the Constitution.

601. Mohamed Samsudden Kariapper v. S.S. Wijesinha and Anr. [1968] Appeal Cases 717 has been cited on behalf of the State of Kerala for the proposition that judicial power

could, by an amendment of our Constitution, be transferred to the legislature thus negating the principle of implied limitation. In that case a report had been made under the Commission of Inquiry Act about certain allegations of bribery having been proved against some members of the Parliament of whom the appellant was one. Under a certain Act civil disabilities on persons to whom the Act applied were imposed. It also contained a provision that in the event of inconsistency with existing law, the Act should prevail. The appellant challenged the validity of that Act on the ground that it was inconsistent with the Constitution and was usurpation of the judicial power. It may be mentioned that the Speaker had, in accordance with the proviso to Section 29(4) of the Constitution of Ceylon, endorsed a certificate under his hand on the bill for imposition of civic disabilities (Special Provisions) Act. The Privy Council held that the said Act was an exercise of legislative power and not the usurpation of judicial power. The Constitution of Ceylon was a controlled Constitution and the Act was an inconsistent law; the Act was to be regarded as amending the Constitution unless some provisions denying the Act Constitutional effect was to be found in the Constitutional restrictions imposed on the power of amendment. Apart from the proviso to Section 29(4) of the Constitution Act, there was no reason for not construing the words "amend or repeal" in that provision as extending to amendment or repeal by inconsistent law. The Act, therefore, amended the Constitution. Finally upon the merits it was observed that in view of the conclusion that the Act was a law and not an exercise of judicial power it was not necessary to consider the question whether Parliament could, by a law passed in accordance with the proviso to Section 29(4), both assume judicial power and exercise it in the one law. 602. The above decision can certainly be invoked as an authority for the proposition that even in a controlled Constitution where the form and manner had been followed of amending it, an Act, which would be inconsistent with it and which did not in express terms state that it was an amending Act, would have the effect of altering the Constitution. But it does not support any suggestion, as has been made on behalf of the respondents, that judicial power could, by an amendment of our Constitution, be transferred to the legislature. Moreover, as expressly stated by their lordships, the Ceylon Constitution empowered the Parliament "to amend or repeal" the Constitution and, therefore, there can be no comparison between the scope of the Ceylon Parliament's amending power and that of the amending body under Article 368.

603. We may next deal with the Australian decisions because there has been a good deal of discussion in them about implied limitations which can arise in the absence of express limitations. The subject matter of most of the decisions has been the Commonwealth's taxing power. Section 51 of the Australian Constitution grants power to legislate with regard to taxation to the Commonwealth in wide terms but with certain express reservations, viz., that duties of customs should be uniform, that the taxing laws must not discriminate between States, nor must revenue laws give preference to one State over another State. Section 114 bars the Commonwealth from taxing property of any kind belonging to a State. In *Amalgamated Society of Engineers v. Adelaide Steamship Co. Ltd.* [1920] 28 C.L.R. 129 the High Court of Australia accepted the principles of construction of a Constitution laid down by the Privy Council in *Reg v. Burah* [1878] 3 A.C. 889 and *Att. Gen. of Ontario v. Att. Gen. of Canada* [1912] A.C. 571 viz., that the only way in which a court can determine whether the prescribed limits of legislative power had been exceeded or not was "by looking to the terms of the instrument by which affirmatively, the legislative powers are created, and by which negatively, they are restricted"; nothing was to be read into it on ground of policy of necessity arising or supposed to arise from the nature of the federal form of government nor were speculations as to the motives of the legislature to be entered into by the Court. These words would apparently appear to reject any proposition as to implied limitations in the Constitution against an exercise of power once it is ascertained in accordance with the ordinary rules of construction. Such an interpretation of the *Engineers' case* [1920] 28 C.L.R. 129 supposed to have buried for ever the principle of implied limitations, has not been unanimously accepted nor has the above criterion laid down been adhered to. In *Att. Gen. of New South Wales v. Brewery Employees Union* [1908] 6 C.L.R. 469 at pp. 611-612, Higgins, J. cautioned that "although the words of the Constitution are to be interpreted on the same principles of interpretation as are applied to any ordinary law, these very principles of interpretation compel us to take into account the nature and scope of the Act-"to remember that it is a Constitution, a mechanism under which laws are to be made, and not a mere Act which declares what the law is to be". Sir Owen Dixon in *Australian Railways Union v. Victorian Railway Commissioners* [1930] 44 C.L.R. 319, 390 and later in *West v. Commissioner of Taxation* [1937] 56 C.L.R. 657, 682 formulated what in his view was the basic principle laid down in *Engineers' case* (Supra)

and made observations relating to reservations of qualifications, which he thought had been made, concerning the prima facie rule of interpretation which that decision laid down. In Ex-parte Professional Engineers Association [1959] 107 C.L.R. 208, 239 he once again adverted to the Engineers[™] case and suggested that perhaps "the reservations and qualifications therein expressed concerning the federal power of taxation and laws directed specially to the states and also perhaps the prerogative of the Crown received too little attention." The question as to implied limitations was directly raised and decided in the Melbourne Corporation v. Commonwealth. [1947] 74 C.L.R. 31 It was held that Section 48 of the Banking Act, 1945, prohibiting banks from conducting banking business for a state and for any authority of the state, including a local government authority was invalid. Two contentions were raised in that case : (1) that the impugned Act was not a law on banking within Section 51(xiii) because it was not a law with respect to banking, and (2) that the grant of power in Section 51(xiii) must be read subject to limitations in favour of the State because it appears in a federal Constitution, so that even if Section 48 could be treated as a law with respect to banking, it was still invalid since its operation interfered with the states in the exercise of their governmental functions. The second contention was accepted by the majority. Latham C.J. stated that laws which discriminated against states or which unduly interfered with states in the exercise of their functions of government were not laws authorised by the Constitution, even if they were laws with respect to a subject matter within the legislative power of the Commonwealth Parliament. Rich J., held that the Constitution expressly provided for the continued existence of the States and that, therefore, any action on the part of the Commonwealth, in purported exercise of its Constitutional powers, which would prevent a State from continuing to exist or function as such was necessarily invalid because of inconsistency with the express provisions of the Constitution. Stark, J. said that the federal character of the Australian Constitution carried implications of its own, that the government was a dual system based upon a separation of organs and of powers and, consequently, maintenance of the States and their powers was as much the object of the Constitution as maintenance of the Commonwealth and its powers. Therefore, it was beyond the power of either to abolish or destroy the other.

604. The same contention was raised in a recent case of *Victoria v. The Commonwealth* [1971] 45 A.L.J. 251, where the Pay-roll Tax Act, 1941 and the Pay-roll Tax Assessment Act, 1941-1969 were impugned. These Acts were passed by the Commonwealth Parliament for financing the provisions of the Child Endowment Act, 1941 and casting the burden on employers by taxing wages paid by them. The Crown in right of a State was in each State a considerable employer of labour, and in some States of industrial labour. The Crown in right of a State was included in the definition of "employer" for the purpose of the Act. The question raised for decision was about the Constitutional validity of the Act in so far as it purported to impose upon the State of Victoria an obligation to payroll tax rated to the amount of salaries and wages paid to its public servants employed in certain department named in its statement of claim.

605. The contention raised by the State of Victoria as summarised by Barwick, C.J. was that though the impugned Act fell under the enumerated power of taxation in Section 51 of the Constitution Act, that section did not authorise the imposition of a tax upon the Crown in the right of a State because there was an implied Constitutional limitation upon that Commonwealth power operating universally, that is to say, as to all the activities of a State. The point most pressed, however, was in a somewhat limited form, viz., that the legislative power with respect to taxation did not extend to authorise the imposition of a tax upon "any essential governmental activity" of a State and therefore, at the least, the power under Section 51 did not authorise a tax upon the State in respect of wages paid to its civil servants. In other words such a limitation, whether of universal or of limited operation, was derived by implication from the federal nature of the Constitution, and therefore, to levy a tax rated to the wages paid to its servants employed in departments of governments, so trenching upon the governmental functions of the State as to burden, impair and threaten the independent exercise of those functions. All the seven judges agreed, firstly, that the Act was valid, and secondly, upon the proposition laid down in the *Engineers* case (Supra) as also in certain other decisions that where a power was granted to the Commonwealth by a specific provision such as Section 51(ii), the Commonwealth could pass a law which would bind the States as it would bind individuals. The difference amongst the judges, however, arose as regards the question of implied limitation on such a power, however, expressly granted. Barwick C.J. and Owen

J. were of the view that a law which in substance takes a State or its powers or functions of government as its subject matter is invalid because it cannot be supported upon any granted legislative power but there is no implied limitation on a Commonwealth legislative power under the Constitution arising from its federal nature.

McTiernan J. was

also of the view that there was no necessary implication restraining the Commonwealth

from making the law. However, Menzies, Windeyer, Walsh and Gibbs JJ. held in categorical terms that there is an implied limitation on Commonwealth legislative power

under the Constitution on account of its federal nature. According to Menzies J. a

Constitution providing for indissoluble federal Commonwealth must protect both Commonwealth and States. The States were not outside the Constitution.

Accordingly

although the Constitution clearly enough subjected the States to laws made by Commonwealth Parliament it did so with some limitation. Windeyer J., read the Melbourne Corporation case (Supra) as confirming the principle of implication and added

that the court in reading the Constitution "must not shy away from the word

â ~implicationâ™

and disavow every concept that it connotes." Walsh J. rejected the contention that it was

inconsistent with the principles of construction laid down in Engineersâ™ case that the

ambit of power with respect to enumerated subject matter should be restricted in any way

otherwise than by an express provision specially imposing some defined limitation upon

it and observed:

there is a substantial body of authority for the proposition that the federal nature of the Constitution does give rise to implications by which some limitations are imposed upon the extent of the power of the Commonwealth Parliament to subject the States to its legislation.

According to Gibbs J., the ordinary principles of statutory interpretation did not preclude

the making of implications when they were necessary to give effect to the intention of the

legislature as revealed in the statute as a whole. The intention of the Imperial Parliament

in enacting the Constitution was to give effect to the wishes of the Australian people to

join in a federal union and to establish a federal and not a unitary system. In some

respects the Commonwealth was placed in a position of supremacy as the national interest required but it would be inconsistent with the very basis of federation that the

Commonwealthâ™s power should extend to reducing the states to such a position of

subordination that their very existence as independent units would be dependent upon the

manner in which the Commonwealth exercises its powers, rather than on the legal limits

of the powers themselves. He proceeded to say:

Thus, the purpose of the Constitution, and the scheme by which it is

intended to be given effect, necessarily give rise to implications as to the

manner in which the Commonwealth and the States respectively may exercise their powers, vis-a-vis each other.

606. The Advocate General of Maharashtra does not dispute that there are necessary implications in a federal Constitution such as, for example, that any law violating any provision of the Constitution is void even in the absence of an express declaration to that effect. Again it is a necessary implication of a republican Constitution that the sovereign of a foreign State-United Kingdom cannot place Indian territory in groups by Orders in Council as provided in the Fugitive Offenders Act, and, therefore, that Act is inconsistent with the Republican Constitution of India, and is not continued in force by Article 372; see State of Madras v. G.C. Menon [1955] 1 S.C.R. 280. But he maintains that the principle of Queen v. Burah is not in any way displaced. BurahTMs case, according to him, laid down principles of interpretation and in doing so the Privy Council itself enunciated the doctrine of ultra vires which is a necessary implication of an Act of the British Parliament creating bodies or authorities with limited powers. An attempt has been made to show that the judgment of Chief Justice Barwick in the above Australian decision stated the basic principle of construction correctly and those principles are applicable to our Constitution also since the decision was based on Queen v. Burah [1878] 3 A.C. 889 which has been consistently followed by this Court. We have already dealt with that decision and we are unable to agree that Queen v. Burah stands in the way of drawing implications where the purpose of the Constitution and the scheme by which it is intended to be given effect, necessarily give rise to certain implications.

607. Turning to the Canadian decisions we need refer only to those which have a material bearing on the questions before us. In The Attorney General of Nova Scotia v. The Att. Gen. of Canada [1951] Can. L. Rep. 31 the Constitutionality of an Act respecting the delegation of jurisdiction from the Parliament of Canada to the Legislature of Nova Scotia and vice versa was canvassed. The Supreme Court of Canada held that since it contemplated delegation by Parliament of powers exclusively vested in it by Section 91 of the British North America Act to the Legislature of Nova Scotia; and delegation by that Legislature of powers, exclusively vested in Provincial Legislature under Section 92

of the Act to Parliament, it could not be Constitutionally valid. The principal ground on which the decision was based was that the Parliament of Canada and each Provincial Legislature is a sovereign body within its sphere, possessed of exclusive jurisdiction to legislate with regard to the subject matter assigned to it under Section 91 or Section 92 as the case may be. Neither is capable, therefore, of delegating to the other the powers with which it has been vested nor of receiving from the other the power with which the other has been vested. The learned Chief Justice observed that the Constitution of Canada "does not belong either to the Parliament or to the Legislatures; it belongs to the country and it is there that the citizens of the country will find the protection of the rights to which they are entitled.

608. Although nothing was expressly mentioned either in Section 91 or Section 92 of the British North America Act a limitation was implied on the power of Parliament and the Provincial Legislatures to delegate legislative power. Mention may also made of John Switzman v. Freda Elbling (1957) Can. L.R. (Supreme Court) 285 at p. 327 (to which we have already referred while dealing with the question of the use of the preamble.) In that case the validity of the Act respecting communistic propaganda of the Province of Quebec was held to be ultra vires of the Provincial Legislature. Abbot J., after referring to various decisions of the Privy Council as also the Supreme Court of Canada See in particular the observation of Duff C.J. in Alberta Statutes Case (1938) SCR (Canada) 100 at pages 132-133 said that the Canada Election Act, the provisions of the British North America Act which provided for Parliament meeting at least once a year and for the election of a new Parliament at least every five years and the Senate and House of Commons Act, were examples of enactments which made specific statutory provisions for ensuring the exercise of the right of public debate and public discussion. "Implicit in all such legislation is the right of candidates for Parliament or for a Legislature and of citizens generally, to explain, to criticize, debate and discuss in the freest possible manner such matters as the qualifications, the policies, and the political, economic and social principles advocated by such candidates or by the political parties or groups of which they may be member". That right could not be abrogated by a Provincial

Legislature and its power was limited to what might be necessary to protect purely private rights. He was further of the opinion that according to the Canadian Constitution, as it stood, Parliament itself could not abrogate this right of discussion and debate.

609. The Advocate General of Maharashtra has pointed out that these decisions relate to the legislative competence of provincial legislatures to effect civil liberties like freedom of speech, religion or to legislate in respect of criminal matters. They are not relevant for the purpose of determining the amending power under the Constitution. So far as the civil rights are concerned in Canada it is noteworthy, according to the Advocate General, that the Canadian Bill of Rights 1960 makes the rights therein defeasible by an express declaration that an Act of Parliament shall operate notwithstanding the Canadian Bill of Rights. It has also been submitted that the well known writers of Constitutional law both of Australia and Canada have not attached any significance or accepted the principle of implied limitations. See W.A. Wynes, Legislative, Executive and Judicial powers in Australia and Bora Laskin, The Canadian Constitutional Law. The opinions of authors and writers have been cited before us so extensively, by both sides, that we find a great deal of conflict in their expression of opinion and it will not be safe to place any reliance on them. The judges who have read limitations by implication are well known and of recognised eminence and it is not fair to reject their views for the reasons suggested by the Advocate General.

610. We need hardly deal at length with the Irish decisions. The principle emerging from the majority decision in *The State (at the prosecution of Jeremiah Ryan v. Captain Michael Lenons and Ors.* (1935) Irish Reports 170 that under Section 50 of the 1922 Constitution (which provided for Constitutional amendment by ordinary legislation during the first period of 8 years which was subsequently extended to 16 years) an ordinary law inconsistent with the provisions of the Constitution had the effect of amendment of the Constitution, caused considerable debate. During the controversy it was strongly urged that the power of Constitutional amendment was not identical with *pouvoir constituant*; that it was not within the competence of agencies invested with the power of Constitutional amendment to drastically revise the structural organisation of a State, to change a monarchical into a republican and a representative into a direct form of

government. The argument was based on the conception underlying Article 2 of the French Law of 1884 which provided that the republican form of government could not be made subject of Constitutional amendment. Section 50 of that Constitution, in particular, was criticized as being too pliant for the first period of 8 years and too rigid for the period

following it Leo Kohn, The Constitution of the Irish Free State pp. 257-259. After the

1937 Constitution which became a model for our Constitution makers the trend of judicial thinking underwent a transformation and instead of treating an Act inconsistent

with the Constitution as having the effect of impliedly amending the Constitution such an

Act was regarded as invalid to the extent of its inconsistency with the Constitution. See

Edmund Burke v. Lenon (1940) Ir. Reports 136 and Margaret Buckley v. Att. Gen. of

Eire (1950) Ir. Reports 67. The 1922 Constitution was considered to be of such "light

weight" that there were no fewer than 27 Acts expressed to be Acts impliedly amending

that Constitution See generally J.M. Kelly, Fundamental Rights on the Irish Law and

Constitution (1968) 1-17 within a period of 15 years. During the period 1922-27 the

judges were used to the British idea of sovereignty of Parliament and notions of fundamental; law were foreign to their training and tradition. The 1937

Constitution is

more rigid than its predecessor though Article 51 permits the Oireachtas to amend the

Constitution during the first three years by ordinary legislation. Such legislation,

however, is expressly excepted unlike Article 50 of the 1922 Constitution from the

amending power. Mention may be made of The State v. The Minister for Justice etc.

[1967] Ir. Rep. 106 in which it was held that the provisions of Section 13 of the Lunatic

Asylums (Ireland) Act 1875 which prevented an accused person from appearing before

the District Court on the return date of his remand constituted interference with an

exercise of judicial power to administer justice. This case and similar cases e.g., Margaret

Buckley v. Att. Gen. of Eire [1950] Ir. Rep. 67 may not afford much assistance in

determining the question about implied limitation to the amending power in a Constitution because they deal with the question mostly of repugnancy of

ordinary

legislation to Constitutional provisions. The main decision however, was in Ryan^s

[1935] Ir. Rep. 170 case in which Kennedy C.J. drew various implications from the

Constitution but the majority of judges declined to do so and read the word "amendment"

as wide enough to allow the repeal of a number of articles, however important in

substance they might be.

611. It is equally unnecessary to deal with the argument on behalf of the respondents that the Privy Council in *Moore v. Attorney General of Irish Free State* [1935] A.C. 484

rejected the contention of the counsel based on the reasoning of Kennedy C.J. *Moore*™s

case was decided principally on the effect of the passing of the statute of Westminster as

is clear from the summing up of the position by their Lordships. Ibid p. 498

612. As regards the position in the United States of America a great deal of reliance has

been placed on behalf of the respondents on *United States of America v. William H. Sprague*. 75 L. Ed. 640. According to that decision the choice between submission

of a proposed amendment to the federal Constitution to State Legislatures and submission to

State Conventions under Article 5 of the Constitution was in the sole discretion of Congress irrespective of whether the amendment was one dealing with the

machinery of government or with matters affecting the liberty of the citizen. It was argued that

amendments may be of different kinds, e.g., mere changes in the character of federal

means of machinery on the one hand, and matters affecting the liberty of the citizen, on

the other. It was said that the framers of the Constitution accepted the former sort to be

ratified by the legislature whereas they intended that the latter must be referred to the

people because not only of lack of power in the legislature to ratify but also because of

doubt as to their truly representing the people. The Court observed that where the

intention was clear there was no room for construction and no excuse for interpolation or

addition and it had been repeatedly and consistently declared in earlier decisions that the

choice of mode rested solely in the discretion of the Congress. It is sought to be

concluded from this decision that the Supreme Court of the United States refused to read

any implications of the nature argued in that case.

613. Mr. Palkhivala says that the decision in *U.S. v. W.H. Sprague* (Supra) has no

relevance to the questions before us. All that it laid down was that the Congress had the

sole discretion to decide whether a proposed amendment should be submitted to State

Legislatures or to the State conventions. The language of Article 5 itself shows that sole

discretion in this matter is conferred on the Congress irrespective of whether the

amendment deals with the machinery of government or with matters affecting the rights

and liberties of the citizen. *Sprague*™s case it is suggested, was merely a fresh attempt at

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the decision of the Supreme Court in the State of Rhode Island v. A. Mitchell Palmer 64 L. Ed. 946 to argue that the 18th amendment which introduced prohibition was unconstitutional since it was ratified by the State Legislatures and the attempt rightly failed. For the reasons suggested by Mr. Palkhivala which appear to have a good deal of substance we are unable, to derive any help from U.S. v. W.H. Sprague. 614. The Advocate General of Maharashtra has invoked another principle to the effect that unless the power of amendment is co-extensive with the judicial power of invalidating laws made under the Constitution the judiciary would be supreme; therefore, the power of amendment should be co-extensive with judicial power. This follows from what has been repeatedly held by this Court that under our Constitution none of the three great departments of the State is supreme and it is only the Constitution which is supreme and which provides for a government of laws and not of men. The reply of Mr. Palkhivala is that if the Constitution is supreme, as it is, it necessarily follows that the re must be limitation on the amending power because if there are â™no limitations the legislature would be supreme and not the Constitution. If the legislatureâ™s power of amending Constitution were coextensive with the judicial power of invalidating laws made under the Constitution, the legislature can bend the Constitution to its wheel in every way which will lead to a result contrary to what has been provided in the Constitution, namely, that there are three great departments of the State and no one can have supremacy over the other. When the judiciary places a limitation on the amending powers, says, Mr. Palkhivala, only as a matter of true construction the consequence is not that the judiciary is supreme but that the Constitution is supreme. It is claimed that on his arguments, the legislature, executive and judiciary remain coordinate which is the correct position under the Constitution. If the respondentâ™s argument is accepted the amending power is absolute and limitless. It can make the judiciary and the executive completely subordinate to it or take over their powers. 615. We are unable to see how the power of judicial review makes the judiciary supreme in any sense of the word. This power is of paramount importance in a federal Constitution. Indeed it has been said that the heart and core of a democracy lies in the judicial process; (per Bose J., in Bidi Supply Co. v. The Union of India [1956] S.C.R. 267). The observations of Patanjali Sastri C.J. in State of Madras v. V.G. Row [1952] S.C.R. 597 which have become locus classicus need alone be repeated in this

connection.

Judicial review is undertaken by the courts "not out of any desire to tilt at legislative authority in a crusader's spirit, but in discharge of a duty plainly laid upon them by the

Constitution." The respondents have also contended that to let the court have judicial

review over Constitutional amendments would mean involving the court in political

questions. To this the answer may be given in the words of Lord Porter in Commonwealth of Australia v. Bank of New South Wales [1950] A.C. 235 at 310:

The problem to be solved will often be not so much legal as political, social or economic, yet it must be solved by a court of law. For where the dispute is, as here, not only between Commonwealth and citizen but between Commonwealth and intervening States on the one hand and citizens and States on the other, it is only the Court that can decide the issue, it is vain to invoke the voice of Parliament.

There is ample evidence in the Constitution itself to indicate that it creates a system of

checks and balances by reason of which powers are so distributed that none of the three

organs it sets up can become so pre-dominant as to disable the others from exercising and

discharging powers and functions entrusted to them. Though the Constitution does not

lay down the principle of separation of powers in all its rigidity as is the case in the

United Constitution but it envisages such a separation to a degree as was found in

Ranasinghe's case. The judicial review provided expressly in our Constitution by means

of Article 226 and 32 is one of the features upon which hinges the system of checks and

balances. Apart from that, as already stated, the necessity for judicial decision on the

competence or otherwise of an Act arises from the very federal nature of a Constitution

(per Haldane, L.C. in Att. Gen. for the Commonwealth of Australia v. Colonial Sugar

Refining Co. [1914] A.C. 237 and Ex parte Walsh and Johnson, In re Yates. (1925) 37

C.L.R. 36 at p. 58. The function of interpretation of a Constitution being thus assigned to

the judicial power of the State, the question whether the subject of a law is within the

ambit of one or more powers of the legislature conferred by the Constitution would

always be a question of interpretation of the Constitution. It may be added that at no stage

the respondents have contested the proposition that the validity of a Constitutional

amendment can be the subject of review by this Court. The Advocate General of

Maharashtra has characterised judicial review as undemocratic. That cannot, however, be so in our Constitution because of the provisions relating to the appointment of judges, the specific restriction to which the fundamental rights are made subject, the deliberate exclusion of the due process clause in Article 21 and the affirmation in Article 141 that judges declare but not make law. To this may be added the none two rigid amendatory process which authorises amendment by means of 2/3 majority and the additional requirement of ratification.

616. According to the learned Attorney General the entire argument on the basis of implied limitations is fundamentally wrong. He has also relied greatly on the decision in *Burahâ*™s case and other similar decisions. It is pointed out that there can be no inherent limitation on the power of amendment having regard to the purpose for which the power is needed. The argument about the non-amendability of the essential framework of the Constitution is illusive because every part of a Constitutional document admits of the possibility of imperfect drafting or ambiguity. Even basic concepts or ideals undergo progressive changes. It has been strenuously urged that the Constitution read as a whole did not contemplate the perpetuation of the existing social and economic inequalities and a duty has been cast on the State to organise a new social order. The Attorney General quoted the opinion of several writers and authors in support of his contention that there must be express words of limitation in a provision which provides for amendment of the Constitution from which it follows that no implied limitations can be read therein.

617. The correct approach to the question of limitations which may be implied in any legislative provisions including a Constitutional document has to be made from the point of view of interpretation. It is not a novel theory or a doctrine which has to be treated as an innovation of those who evolve heterodox methods to substantiate their own thesis.

The argument that there are no implied limitations because there are no express limitations is a contradiction in terms. Implied limitations can only arise where there are no express limitations. The contention of the learned Attorney General that no implications can be read in an amending power in a Constitution must be repelled in the words of Dixon J. in *West v. Commissioner of Taxation (N.S.W.)* [1936-37] 56 C.L.R. 657:

Since the *Engineersâ*™ case a notion seems to have gained currency that in interpreting the Constitution no implications can be made. Such a method of construction would defeat the intention of any instrument, but of all

instruments a written Constitution seems the last to which it could be applied

618. We are equally unable to hold that in the light of the Preamble, the entire scheme of the Constitution the relevant provisions thereof and the context in which the material expressions are used in Article 368 no implied limitations arise to the exercise of the power of amendment. The respondents do not dispute, that, certain limitations arise by necessary implication e.g., the Constitution cannot be abrogated or repealed in its entirety and that the India's polity has to be a Sovereign Democratic Republic, apart from several other implications arising from Article 368 which have been noticed.

619. The argument that the Nation cannot grow and that the objectives set out in the Preamble cannot be achieved unless the amending power has the ambit and the width of the power of a Constituent Assembly itself or the People themselves appears to be based on grounds which do not have a solid base. The Constitution makers provided for development of the country in all the fields social, economic and political. The structure of the Constitution has been erected on the concept of an egalitarian society. But the Constitution makers did not desire that it should be a society where the citizen will not enjoy the various freedoms and such rights as are the basic elements of those freedoms, e.g., the right to equality, freedom of religion etc., so that his dignity as an individual may be maintained. It has been strongly urged on behalf of the respondents that a citizen cannot have any dignity if he is economically or socially backward. No one can dispute such a statement but the whole scheme underlying the Constitution is to bring about economic and social changes without taking away the dignity of the individual. Indeed, the same has been placed on such a high pedestal that to ensure the freedoms etc. their infringement has been made justiciable by the highest court in the land. The dictum of Das C.J. in Kerala Education Bill case paints the true picture in which there must be harmony between Parts III and IV; indeed the picture will get distorted and blurred if any vital provision out of them is cut out or denuded of its identity.

620. The basic structure of the Constitution is not a vague concept and the apprehensions expressed on behalf of the respondents that neither the citizen nor the Parliament would

be able to understand it are unfounded. If the historical background, the Preamble, the entire scheme of the Constitution, the relevant provisions thereof including Article 368 are kept in mind there can be no difficulty in discerning that the following can be regarded as the basic elements of the Constitutional structure. (These cannot be catalogued but can only be illustrated).

1. The supremacy of the Constitution.
2. Republican and Democratic form of Government and sovereignty of the country.
3. Secular and federal character of the Constitution.
4. Demarcation of power between the legislature, the executive and the judiciary.
5. The dignity of the individual (secured by the various freedoms and basic rights in Part III and the mandate to build a welfare State contained in Part IV.
6. The unity and the integrity of the nation.

621. The entire discussion from the point of view of the meaning of the expression "amendment" as employed in Article 368 and the limitations which arise by implications leads to the result that the amending power under Article 368 is neither narrow nor

unlimited. On the footing on which we have proceeded the validity of the 25th amendment can be sustained if Article 368, as it originally stood and after the amendment, is read in the way we have read it. The insertion of Articles 13(4) and 368(3)

and the other amendments made will not affect the result, namely, that the power in

Article 368 is wide enough to permit amendment of each and every Article of the Constitution by way of addition, variation or repeal so long as its basic elements are not abrogated or denuded of their identity.

622. We may next deal with the validity of the Constitution (25th Amendment) Act.

Section 2 of the Amending Act provides:

2. In Article 31 of the Constitution, (a) for Clause (2), the following clause shall be substituted, namely:

(2) No property shall be compulsorily acquired or requisitioned save for a public purpose and save by authority of a law which provides for acquisition or requisitioning of the property for a amount which may be fixed by such law or which may be determined in accordance with such principles and given in such manner as may be specified in such law; and no such law shall be called in question in any court on the ground that the amount so fixed or determined is not adequate or that the whole or any part of such amount is to be given otherwise than in cash:

Provided...

(b) after Clause (2A), the following clause shall be inserted, namely:

(2B) Nothing in Sub-clause (f) of Clause (1)

of Article 19 shall affect any such law as is referred to in Clause (2). As stated in the Statement of Objects and Reasons to the Bill (No. 106 of 1971) the word "compensation" was sought to be omitted from Article 31(2) and replaced by the word "amount". It was being clarified that the said "amount" may be given otherwise than in cash. It was also provided that Article 19(1)(f) shall not apply to any law relating to acquisition or requisitioning of property for a public purpose. The position of the respondents is that "compensation" had been given the meaning of market value or the just equivalent of what the owner had been deprived of according to the decisions of this Court. See *State of West Bengal v. Mrs. Bela Bannerji and Ors.* (1954) S.C.R. 558. That had led to the 4th Amendment Act 1955. The later decisions (2) *Vajravelu Mudaliar v. Special Deputy Collector, Madras* (1965) S.C.R. 614 and *Union of India v. Metal Corporation of India and Anr.* [1967] 1 S.C.R. 255 had continued to uphold the concept of "compensation" i.e. just equivalent of the value of the property acquired in spite of the amendments made in 1955. In *State of Gujarat v. Shantilal Mangaldas and Ors.* [1969] 3 S.C.R. 341 the decision in *Metal Corporation of India* [1967] 1 S.C.R. 255 was overruled

which itself was virtually overruled by R.C. Cooper v. Union of India. [1970] 3 S.C.R.

530. According to the Advocate General of Maharashtra, if Shantilal Mangaldas etc. had not been overruled by R.C. Cooper v. Union of India there would have been no necessity of amending Article 31(2).

623. The first question that has to be determined is the meaning of the word "amount".

Unlike the word "compensation" it has no legal connotation. It is a neutral, colourless

word. The dictionary meanings do not help in arriving at its true import as used in a

Constitutional provision. It can be anything from one paisa to an astronomical figure in

rupees. Its meaning has, therefore, to be ascertained by turning to the context in which it

is used and the words preceding it as well as following it.

624. The scheme of Article 31(2) now is:

(1) The property has to be compulsorily acquired or requisitioned.

(2) It has to be for a public purpose.

(3) It has to be by a law.

(4) The law must provide for an amount which may be (i) fixed by such law or (ii) which may be determined in accordance with such principles as may be specified in such law.

(5) The law shall not be questioned in a Court on the ground:

(i) The amount so fixed or determined is not adequate or

(ii) the whole or any part of such amount is to be given otherwise than in cash.

It is significant that the amount can be determined in accordance with specified principles, if it is not fixed by the law itself. Moreover, its adequacy cannot be questione

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in a court. The use of the word "principles" and the question of inadequacy can only arise

if the amount has some norm. If it has no norm no question of specifying any principles

arises nor can there be any occasion for the determination of its adequacy. The very fact

that the court is debarred from going into the question of adequacy shows that the

"amount" can be adequate or inadequate. Even if it is inadequate, the fixation or

determination of that amount is immune from any challenge. It postulates the existence of

some standard or norm without which any enquiry into adequacy becomes wholly unnecessary and irrelevant. Moreover, either method of giving an amount must bring

about the same result. In other words, if Rs. 1000 is the amount to be given for acquisition

of a property, it must be either fixed or must be determinable by the principles specified

in the event of its not being fixed. It could not be intended that the two alternative modes

should lead to varying results, i.e., it could be fixed at Rs. 1000 but if the principles ar

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specified they do not yield that figure.

625. The Advocate General of Maharashtra says that the right of the owner is just what the government determines it to be. It can give what it pleases and when it chooses to do so. Such an argument is untenable and introduces an element of arbitrariness which cannot be attributed to the Parliament.

626. In Shantilal Mangal Das, which, on the submission of the Advocate General, enunciated the correct principles relating to Article 31(2) as it then stood, it was laid down that something fixed or determined by the application of specified principles which was illusory or could in no sense be regarded as compensation was not bound to be upheld by the Courts, "for to do so would be to grant a charter of arbitrariness and permit a device to defeat the Constitutional guarantees". It was added that the principles could be challenged on the ground that they were irrelevant to the determination of compensation but not on the plea that what was awarded was not just or fair compensation. Thus it was open to the courts to go into the question of arbitrariness of the amount fixed or its being illusory even under the law laid down in Shantilal Mangaldas (supra). The relevance of the principles had also been held to be justiciable. R.C. Cooper's case did not lay down different principles. But the observations made therein were understood to mean that the concept of just equivalent not accepted in Shantilal's case was restored. The amendment now made is apparently aimed at removing that concept and for that reason the word "amount" has been substituted in place of "compensation". This is particularly so as we find no reason for departing from the well-settled rule that in such circumstances the Parliament made the amendment knowing full well the ratio of the earlier decisions.

627. The Advocate General of Maharashtra has submitted that the fixing of the amount or alternatively specifying the principles for determining that amount is entirely within the

judgment of the legislature and the whole object of the amendment is to exclude judicial review which had been introduced by the courts on the basis of the concept of compensation. But even then the members of the legislature must have some basis or principles before them to fix the amount as the same cannot be done in an arbitrary way.

He, however, gave an unusual explanation that in the Cabinet system of government it is

for the government to determine the amount or specify such principles as it chooses to do.

The legislators belonging to the ruling party are bound to support the measure whether

the basis on which the amount has been determined is disclosed to them or not.

It is

wholly incomprehensible how there can be any legislative judgment or decision unless

there is room for debate and discussion both by members of the ruling party and the

opposition. For any discussion on the "amount" fixed or the principles specified the entire

basis has to be disclosed. There can be no basis if there is no standard or norm.

628. The learned Solicitor General agrees that Article 31(2) after amendment still binds

the legislature to provide for the giving to the owner a sum of money either in cash or

otherwise. In fixing the "amount", the legislature has to act on some principle.

This is not

because of any particular obligation arising out of Article 31(2), but from the general

nature of legislative power itself. Whatever, the subject or the nature of legislation it

always proceeds on a principle it is based on legislative policy. The principle may include

considerations of social justice: Judicial review on the ground of inadequacy of the

"amount" and the manner of payment is excluded by express language. No other question

is excluded. The expropriated owner still continues to have a fundamental right. This

argument is not quite the same as that of the learned Solicitor General.

629. It is true that the "amount" to be paid to an owner may not be the market value. The

price of the property might have increased owing to various factors to which no contribution has been made by the owner. The element of social justice may have to be

taken into consideration. But still on the learned Solicitor General's argument, the right to

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receive the "amount" continues to be a fundamental right That cannot be denuded of its

identity. The obligation to act on some principle while fixing the amount arises both from

Article 31(2) and from the nature of the legislative power. For, there can be no power

which permits in a democratic system an arbitrary use of power. If an aggrieved owner

approaches the court alleging that he is being deprived of that right on the grounds now open to him, the Court cannot decline to look into the matter. The Court will certainly give due weight to legislative judgment. But the norm or the principles of fixing or determining the "amount" will have to be disclosed to the Court. It will have to be satisfied that the "amount" has reasonable relationship with the value of the property acquired or requisitioned and one or more of the relevant principles have been applied and further that the "amount" is neither illusory nor it has been fixed arbitrarily, nor at such a figure that it means virtual deprivation of the right under Article 31(2). The question of adequacy or inadequacy, however, cannot be gone into.

630. As to the mode of payment, there is nothing to indicate in the amended Article that any arbitrary manner of payment is contemplated. It is well known that a discretion has to be exercised reasonably.

631. As regards Clause (2B) inserted in Article 31 which makes Article 19(1)(f) inapplicable, there is no reason for assuming that a procedure will be provided which will not be reasonable or will be opposed to the rules of natural justice. Section 2 of the 25th amendment can be sustained on the construction given to it above.

632. We now come to the most controversial provision of 25th Amendment, namely, Section 3 which inserted the following Article:

31C Notwithstanding anything contained in Article 13, no law giving effect to the policy of the State towards securing the principles specified in Clause (b) or Clause (c) of Article 39 shall be deemed to be void on the ground that it is inconsistent with, or takes away or abridges any of the rights conferred by Article 14, Article 19 or Article 31; and no law containing a declaration that it is for giving effect to such policy shall be called in question in any court on the ground that it does not give effect to such policy:

Provided that where such law is made by the Legislature of a State, the provisions of this Article shall not apply thereto unless such law, having been reserved for the consideration of the President, has received his assent.

According to the Statement of Objects and Reasons contained in Bill No. 106 of 1971, the new Article has been introduced to provide that if any law is passed to give effect to the Directive Principles contained in Clauses (b) and (c) of Article 39 and contains a

declaration to that effect, such law shall not be deemed to be void on the ground that it takes away or abridges any of the rights contained in Articles 14, 19 or 31 and shall not be questioned on the ground that it does not give effect to these principles. For this provision to apply in case of laws made by State legislatures, it is necessary that the relevant Bill should be reserved for the consideration of the President and receive his assent.

633. Article 39 contains certain principles of policy to be followed by the State. It enjoins

the State inter alia to direct its policy towards securing:
39 (b) that the ownership and control of the material resources of the community are so distributed as best to subserve the common good;
(c) that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment;

634. These provisions together with the other provisions of the Constitution contain one of the main objectives, namely, the building of a welfare State and an egalitarian social order in our country. As stated before, the fundamental rights and the directive principles have been described as the "conscience of our Constitution". The Constitution makers

had, among others, one dominant objective in view and that was to ameliorate and improve the lot of the common man and to bring about a socio-economic transformation

based on principles of social justice. While the Constitution makers envisaged development in the social, economic and political fields, they did not desire that it should

be a society where a citizen will not have the dignity of the individual. Part III of the

Constitution shows that the founding fathers were equally anxious that it should be a

society where the citizen will enjoy the various freedoms and such rights as are the basic

elements of those freedoms without which there can be no dignity of individual. Our

Constitution makers did not contemplate any disharmony between the fundamental rights

and the directive principles. They were meant to supplement one another. It can well be

said that the directive principles prescribed the goal to be attained and the fundamental

rights laid down the means by which that goal was to be achieved. While on behalf of the

petitioners greater emphasis has been laid on the fundamental rights, counsel for the

respondents say that the fundamental rights should be subordinate to the directive

principles. The Constituent Assembly did not accept such a proposal made by B.N. Rau.

It has been suggested that a stage has been reached where it has become necessary to

abrogate some of the basic freedoms and rights provided the end justifies the means. At an earlier stage in the development of our Constitutional law a view was taken that the Directive Principles of State Policy had to conform and run subsidiary to the Chapter on Fundamental Rights, but Das C.J. in Kerala Education Bill, 1957, laid down the rule of harmonious construction and observed that an attempt should be made to give effect to both the fundamental rights and the directive principles.

635. According to Mr. Palkhivala, Article 31C destroys several essential features of the Constitution. He says that there is a vital distinction between two cases (a) where fundamental rights are amended to permit laws to be validly passed which would have been void before the amendment and (b) the fundamental rights remain unamended, but the laws which are void as offending those rights are validated by a legal fiction that they shall not be deemed to be void. He further points out that on the analogy of Article 31(C) it would be permissible to have an omnibus Article that notwithstanding anything contained in the Constitution no law passed by Parliament or any State legislature shall be deemed to be void on any ground whatsoever. Article 31(C) according to him, gives a blank charter not only to Parliament but all the State Legislatures to amend the Constitution. On the other hand, the argument on behalf of the respondents is that Article 31(C) is similar to Articles 31(A) and 31(B) and that the object of inserting the Article is to free certain kinds of laws from the limitation on legislative power imposed by conferment of fundamental rights by Part III of the Constitution. As those rights were justiciable under Article 32, says the Advocate General of Maharashtra, the only way of doing so was to exclude judicial review of legislation in respect of those laws. If Article 31(A) is valid, there is no reason or justification for saying that Article 31(C) suffers from all the vices pointed out by Mr. Palkhivala.

636. According to the Solicitor General, Article 31(C) protects only law and not mere executive action. Law can be made by either Parliament or the State Legislatures. Article 31(C) has been enacted for the purpose of achieving the objectives set out in Clause (b)

and (c) of Article 39. The law enacted under it will operate on "material resources", concentration of wealth and "means of production". The legislative effort would generally involve (i) nationalisation of material resources of the community and (ii) imposition of control on the production, supply and distribution of the products of key industries and essential commodities. It, therefore, impinges on a particular kind of economic system only.

637. The question of the validity of Article 31(C) to our mind has to be examined mainly from two points of view; the first is its impact on the various freedoms guaranteed by Article 19, the abrogation of the right of equality guaranteed by Article 14 and the right to property contained in Article 31. The second is whether the amending body under Article 368 could delegate its amending power to the legislatures of the Union and the States. Alternatively, whether the Parliament and the State Legislatures can, under Article 31(C), amend the Constitution without complying with the form and manner laid down in Article 368. Now it is quite obvious that under Article 31(C) a law passed by the Parliament or the State Legislatures shall not be deemed to be void on the ground that it is inconsistent with or takes away or abridges any of the rights conferred by Articles 14, 19 and 31 so long as the law is declared to be one for giving effect to the policy of the State towards securing the principles specified in Clause (b) and Clause (c) of Article 39.

If Article 31(C) is aimed at the removal of a particular economic system, as suggested by the Solicitor General, it is difficult to understand why the freedoms contained in Clauses (a) to (d) of Article 19 as also the right of equality under Article 14 had to be taken away.

The power of enacting Constitution breaking laws has been entrusted even to a small majority in a State Legislature. Mr. Palkhivala points out that the freedom of the Press, for instance, can be destroyed under Article 31(C) as the respondents claim the right to nationalise any industrial or economic activity. Moreover, a person can be put in prison for commending a policy contrary to the government's policy. Such legislation cannot be challenged as Article 19(1)(a) will not apply and Article 21 permits deprivation of personal liberty according to procedure established by law. The case in the State of Bombay and Anr. v. F.N. Balsara [1951] S.C.R. 682 is in point. Commending the use of an intoxicant had been made an offence. It was struck down by this Court as

violative of

Article 19(1)(a). If Article 31(C) is Constitutional, such a provision made in a law

enacted under it relating to matters falling within Article 39(a) and (b) would be valid. As

a matter of fact no cogent or convincing explanation has been given as to why it was

necessary to take away all the freedoms guaranteed by Article 19 and for the abrogation

of the prized right of equality under Article 14 of which has been described as the basic

principle of republicanism. *State of West Bengal v. Anwar Ali Sarkar* (per Patanjali

Sastri C.J.) [1952] S.C.R. 284 at pp. 293, (*Ibid* p. 313 Mahajan J.). This Article combines

the English doctrine of the rule of law and the equal protection clause of the 14th

Amendment to the American Constitution. *Bheshwar Nath v. The Commissioner of Income Tax, Delhi and Rajasthan* (per Das C.J.) [1959] Supp. 1 S.C.R. 528 at 551.

It

follows, therefore, that Article 31(C) impinges with full force on several fundamental

rights which are enabled to be abrogated by the Parliament and the State Legislatures.

638. As regards the question of delegation of amending power, it is noteworthy that no

amendment has been made in Article 368 itself to enable delegation of constituent power.

The delegation of such power to the State Legislatures, in particular, involves serious

consequences. It is well settled that one legislature cannot create another legislative body

. This has been laid down very clearly in two decisions of the Privy Council. In the

Initiative and Referendum Act [1919] A.C. 935 which has already been discussed See

page 88 by us no doubt was entertained that a body that had the power of legislation on

the subjects entrusted to it, even though, the power was so ample as that enjoyed by a

provincial legislature in Canada, could not create and endow with its own capacity a new

legislative power not created by the Act to which it owed its own existence. Attorney

General of Nova Scotia v. The Attorney General of Canada [1951] Can. L.R. 31 is another direct authority for the view that the Parliament of Canada or any of the

legislatures could not abdicate their powers and invest for the purpose of legislation

bodies, which by the very terms of the British North American Act were not empowered

to accept such delegation and to legislate on such matters. The distinction made by

counsel on behalf of the respondents and the cases relied on by them have been fully

discussed in the judgment of the learned Chief Justice and we need not go over the same

ground.

639. The only way in which the Constitution can be amended, apart from Articles 4, 169

and the relevant paras in Schedules V and VI of the Constitution, is by the procedure laid

down by Article 368. If that is the only procedure prescribed, it is not possible to understand how by ordinary laws the Parliament or the State Legislatures can amend the Constitution, particularly, when Article 368 does not contemplate any other mode of amendment or the setting up of another body to amend the Constitution. The other difficulty which immediately presents itself while examining Article 31(C) is the effect of the declaration provided for in the Article. It is possible to fit in the scheme of Article 31(C) any kind of social or economic legislation. If the courts are debarred from going into the question whether the laws enacted are meant to give effect to the policy set out in Article 39(b) and (c), the Court will be precluded from enquiring even into the incidental encroachment on rights guaranteed under Articles 14, 19 and 31. This is not possible with regard to laws enacted under Article 31(A). Those laws can be sustained if they infringe the aforesaid Articles only to the extent necessary for giving effect to them. Although on behalf of the respondents it is said that the Court can examine whether there is any nexus between the laws made under Article 31(C) and Article 39(b) and (c), there would hardly be any law which can be held to have no nexus with Article 39(b) and (c), the ambit of which is so wide.

640. The essential distinction between Article 31(A) and 31(C) is that the former is limited to specified topics; whereas the latter does not give the particular subjects but leaves it to the legislatures to select any topic that may purport to have some nexus with the objectives in Article 39(b) and (c). In other words, Article 31(C) deals with objects with unlimited scope.

641. The argument that Article 31(C) lifts the ban placed on State Legislature and Parliament under Articles 14, 19 and 31 and further that it may be considered as an amendment of Article 368, has been discussed by the learned Chief Justice in his judgment delivered today and we adopt, with respect, his reasoning for repelling them.

642. In our judgment Article 31(C) suffers from two kinds of vice which seriously affect its validity. The first is that it enables total abrogation of fundamental rights contained in Articles 14, 19 and 31 and, secondly, the power of amendment contained in Article 368 is of special nature which has been exclusively conferred on the Parliament and can be exercised only in the manner laid down in that Article. It was never intended that the same could be delegated to any other legislature including the State

Legislatures.

643. The purpose sought to be achieved by Article 31(C) may be highly laudable as

pointed out by the learned Solicitor General, but the same must be achieved by appropriate laws which can be Constitutionally upheld. We have no option, in view of

what has been said except to hold that the validity of Article 31(C) cannot be sustained.

644. The last matter for determination is the validity of the 29th Amendment Act, 1972.

The challenge is only against the inclusion of two Acts, namely, the Kerala Land Reforms (Amendment) Act 1969 and a similar Kerala Act of 1971 in the Ninth Schedule to the Constitution.

645. The main argument on behalf of the petitioners has been confined to the relationship between Article 31(A) and Article 31(B). It has been contended that Article

31(B) is intimately linked with Article 31(A) and, therefore, only those legislative

enactments which fall under Article 31(A) can be included in the 9th Schedule under

Article 31(B). This matter is no longer open to argument as the same stands settled by a

series of decisions of this Court See *State of Bihar v. Maharajadhiraj Sir Kameshwar*

Singh of Darbhanga and Ors.; [1952] S.C.R. 889 *Visweshwar Rao v. The State of Madhya Pradesh* [1952] S.C.R. 1020 and *N.B. Jeejeebhoy v. Assistant Collector, Thana*

Prant, Thana. [1965] 1 S.C.R. 636. In all these cases it was held that Article 31 (B) was

independent of Article 31(A). A matter which has been settled for all these years cannot

be re-opened now. It will still be open, however, to the Court to decide whether the Acts

which were included in the Ninth Schedule by 29th Amendment Act or any provision thereof abrogates any of the basic elements of the Constitutional structure or denudes

them of their identity.

646. Our conclusions may be summarised as follows:

1. The decision in *Golak Nath* has become academic, for even if it be assumed that the majority judgment that the word "law" in Article 13(2), covered Constitutional amendments was not correct, the result on the questions, wider than those raised in *Golak Nath*, now raised before us would be just the same.

2. The discussion on the 24th Amendment leads to the result that (a) the said amendment does no more than to clarify in express language that which was implicit in the unamended Article 368 and that it does not or cannot add to the power

originally conferred thereunder;

(b) though the power to amend cannot be narrowly construed and extends to all the Articles it is not unlimited so as to include the power to abrogate or change the identity of the Constitution or its basic features;

(c) even if the amending power includes the power to amend Article 13(2), a question not decided in *Golak Nath*, the power is not so wide so as to include the power to abrogate or take away the fundamental freedoms; and

(d) the 24th Amendment Act, read as aforesaid, is valid.

3. Clause (2) of Article 31, as substituted by Section 2 of the 25th Amendment, does not abrogate any basic element of the Constitution nor does it denude it of its identity because (a) the fixation or determination of "amount" under that

Article has to be based on some norm or principle which must be relevant for the purpose of arriving at the amount payable in respect of the property acquired or requisitioned;

(b) the amount need not be the market value but it should have a reasonable relationship with the value of such property;

(c) the amount should neither be illusory nor fixed arbitrarily; and

(d) though the courts are debarred from going into the question of adequacy of the amount and would give due weight to legislative judgment, the examination of all the matters in (a), (b) and (c) above is open to judicial review.

4. As regards Clause (2B) inserted in Article 31 which makes Article 19(1)(f) inapplicable, there is no reason to suppose that for determination of the amount on the principles laid down in the law any such procedure will be provided which will be unreasonable or opposed to the rules of natural justice.

5. On the above view Section 2 of the 25th Amendment is valid.

6. The validity of Section 3 of the 25th Amendment which introduced Article 31C in the Constitution cannot be sustained because the said Article suffers from two vices. The first is that it enables abrogation of the basic elements of the Constitution inasmuch as the fundamental rights contained in Articles 14, 19 and 31 can be completely taken away and, secondly, the power of amendment contained in Article 368 is of a special nature which has been exclusively conferred on Parliament and can be exercised only in the manner laid down in that Article. The same could not be delegated to any other legislature in the country. Section 3, therefore, must be declared to be unconstitutional and invalid.

7. The 29th Amendment is valid. However, the question whether the Acts included in the Ninth Schedule by that amendment or any provision of those Acts abrogates any of the basic elements of the Constitutional structure or denudes them of their identity will have to be examined when the validity of those Acts comes up for consideration.

647. The petitions are remitted to the Constitution Bench to be decided in accordance with this judgment and the law. The Constitution Bench will also decide the validity of

the 26th Amendment in the light of our judgment.

K.S. Hegde and A.K. Mukherjea, JJ.

648. In these writ petitions questions of great Constitutional importance have arisen for

consideration. Herein we are called upon to decide the Constitutional validity of the 24th,

25th, 26th and 29th Amendments to the Constitution. We have had the advantage of

hearing long and illuminating arguments covering over 65 working days. We have been referred to numerous decisions of this Court and of the courts in England, United States, Canada, Australia, Germany, Ireland and Ceylon. Our attention has also been invited to various writings of jurists, present and past, of several countries. For paucity of time, we have not taken up the question of the validity of the 26th Amendment. That question can be conveniently considered later after this bench decides certain fundamental questions of law arising for decision. For the same reason we have also refrained from going into the merits of various writ petitions at this stage. At present we are merely deciding the scope and validity of the 24th, 25th and 29th Amendments to the Constitution. 649. In order to decide the validity of the Amendments referred to earlier, it is necessary

to go into the scope of the power conferred on Parliament under Article 368 of the Constitution as it stood prior to its amendment by the 24th Amendment Act which came into force on November 5, 1971. Article 368 is the only article found in Part XX of the Constitution. The title of that part is "Amendment of the Constitution." Its marginal note as it originally stood read "Procedure for amendment of the Constitution". The Article read thus:

An amendment of this Constitution may be initiated only by the introduction of a Bill for the purpose in either House of Parliament, and when the Bill is passed in each House by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of that House present and voting, it shall be presented to the President for his assent and upon such assent being given to the Bill, the Constitution shall stand amended in accordance with the terms of the Bill: Provided that if such amendment seeks to make any change

in (a) Article 54, Article 55, Article 73, Article 162 or Article 241, or

(b) Chapter IV of Part V, Chapter V of Part VI, or Chapter I of Part XI, or

(c) any of the Lists in the Seventh Schedule, or

(d) the representation of States in Parliament, or

(e) the provisions of this article, the amendment shall also require to be ratified by the Legislatures of not less than one half of the States by resolutions to that effect passed by those Legislatures before the Bill making provision for such amendment is presented to the President for assent.

650. The petitioners' learned Counsel, Mr. Palkhivala, advanced twofold arguments as to

the scope of that Article. His first contention was that in the exercise of its powers under

Article 368 as it stood before its amendment, it was impermissible for Parliament to take away or abridge any of the rights conferred by Part III of the Constitution. His second

and more comprehensive argument was that the power conferred on the Parliament under

Article 368 did not permit it to damage or destroy any of the basic or fundamental

features or essential elements of the Constitution. The arguments on these two aspects

naturally ran into each other. But for a proper legal approach, it is necessary to keep them

apart as far as possible. Hence while considering the correctness of the first contention,

we shall not take into consideration the importance of the Fundamental Rights. On this

aspect, our approach to Article 368 will be purely based on the language of Article 368

and Article 13. The importance or transcendental character of the Fundamental Rights as

well as the implied or inherent limitations on the amending power, if any, will

be

considered While dealing with the second of the two alternative contentions advanced by

Mr. Palkhivala.

651. We shall first take up the question whether by the exercise of the power of amendment conferred by Article 368, as it originally stood, Parliament could have taken

away any of the Fundamental Rights conferred by Part III. According to Mr. Palkhivala,

Article 368 as it stood before its amendment merely laid down the procedure for amendment; the power to amend the Constitution must be found somewhere else in the

Constitution; the power to be exercised by Parliament under Article 368 in legislative in

character and the resulting product is "law", hence such a law, in view of Article 13(2)

which says "The State shall not make any law which takes away or abridges the rights

conferred by this Part and any law made in contravention of this clause shall, to the

extent of the contravention, be void", cannot validly take away or abridge any of the

Fundamental Rights. He further contended that the word "law" in Article 13(1) means and

includes not merely legislative enactments but also Constitutional measures. The Counsel

urged, there is no reason why a different meaning should be given to the word "law" in

Article 13(2). A more important argument of his was that the power to amend the Constitution, even if, it is assumed to be contained in Article 368, is by no means an

exclusive power because in certain respects and subject to certain conditions, the

Constitution can also be amended by Parliament by a simple majority by enacting a law

in the same manner as other legislative measures are enacted. In this connection he drew

our attention to Articles 4, 169, Paragraph 7 of the Vth Schedule and Paragraph 21 of the

VIth Schedule. Counsel urged that if the amendment of the provisions of the Constitution

referred to therein is considered as the exercise of constituent power and consequently

such an amendment is not a "law" within the meaning of that expression in Article 13,

then Parliament by a simple majority of the members present and voting if the rule

regarding the quorum is satisfied, can take away or abridge any of the Fundamental

Rights of certain sections of the public in this country.

652. On the other hand, the learned Attorney General, the learned Advocate General for

the State of Maharashtra, appearing for the State of Kerala and the other Counsel

appearing for the various States contended that a plain reading of Article 368 shows that

the power to amend the Constitution as well as the procedure of amendment are both

contained in that Article; once the form and the manner laid down in that Article have

been complied with, the result is the amendment of the Constitution. According to them,

the expression "an amendment of this Constitution" in Article 368 means an amendment

of each and every provision or part of the Constitution; once the form and manner

provided in Article 368 have been complied with, the amended Article is as effective as

the original Article itself; and, therefore, as in the case of the original Article, the val

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of the amended Article also cannot be challenged. They further contended that â™lawâ™ in

Article 13 means only legislative enactments or ordinances, or orders or bye-laws or rules

or regulations or notifications or customs or usages having the force of law in the

territory of India and that expression does not include a Constitutional law, though in a

comprehensive sense, a Constitutional law is also a law. They further contended that the

word â™lawâ™ in Article 13 must be harmoniously construed with Article 368 and, if â™it is so

construed, there is no room for doubt that the expression â™lawâ™ in Article 13 does not

include a Constitutional law. They repudiated the contention of Mr. Palkhivala that there

was any Constitutional law as such in force when the Constitution came into force. Hence

according to them the expression â™lawâ™ in Article 13(2) does not take in the amendment of

the Constitution. According to them, laws enacted under Article 4, Article 169, Paragraph

7 of Schedule V and Paragraph 21 of Schedule VI are not to be deemed as amendments

to the Constitution as is laid down in those provisions, though in fact they do amend the

Constitution in certain respects and they are no different from the other legislative

measures enacted by Parliament; hence the laws enacted under those provisions cannot take away or abridge any of the Fundamental Rights. We have now to see which one of those lines of reasoning is acceptable.

653. The question whether Fundamental Rights can be abridged by Parliament by the exercise of its power under Article 368 in accordance with the procedure laid down therein came up for consideration before this Court very soon after the Constitution came into force. The validity of the Constitution (1st Amendment) Act 1951 came up for the consideration of this Court in *Sankari Prasad Singh Deo v. Union of India and State of Bihar* [1952] S.C.R. 89. In that case the scope of Article 368 vis-a-vis Article 13(2) was debated. This Court rejecting the contention of the petitioners therein that it was impermissible for Parliament to abridge any of the Fundamental Rights under Article 368, held that "although 'law' must ordinarily include Constitutional law, there is a clear demarcation between ordinary law which is made in exercise of legislative power, and Constitutional law, which is made in exercise of constituent power". This Court held that "in the context of Article 13, 'law' must be taken to mean rules or regulations made in exercise of ordinary legislative power and not amendments to the Constitution made in exercise of constituent power, with the result that Article 13(2) does not affect the amendments made under Article 368". In the case this Court also opined that the power to amend the Constitution was explicitly conferred on Parliament by Article 368 and the requirement of a different majority was merely procedural. It rejected the contention that Article 368 is a complete code by itself and upheld the contention of the Government that while acting under Article 368, Parliament can adopt the procedures to be adopted, except to the extent provided in Article 368, in enacting other legislative measures.

654. The power of Parliament to abridge Fundamental Rights under Article 368 was again considered by this Court in *Sajjan Singh v. State of Rajasthan* [1965] 1 S.C.R. 933.

In that case two questions were considered viz. (1) Whether the amendment of the Constitution in so far as it purported to take away or abridge the rights conferred by Part

III of the Constitution was within the prohibition of Article 13(2) and (2) Whether

Articles 31-A and 31-B (as amended by the 17th Amendment Act) sought to make changes in Article 132, Article 136 and Article 226 or any of the Lists in the VIIth

Schedule and therefore the conditions prescribed in the proviso to Article 368 had to be

satisfied. It is clear from the judgment of the Court that the first question was not debate

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before the Court though the majority judges as well as the minority judges did consider

that question evidently without any assistance from the bar. On both those

questions

Chief Justice Gajendragadkar speaking for himself and Wanchoo and Raghubar Dayal JJ.

concurring with the view taken by this Court in Sankari PrasadTMs case. But Hidayatullah J.

(as he then was) and Mudholkar J. doubted the correctness of that decision on the first

question but concurred with the view taken by the majority of judges on the second

question. Hidayatullah and Mudholkar JJ. agreed in dismissing the writ petitions as the

petitioners had not challenged the correctness of the decision of this Court in Sankari

PrasadTMs case on the first question.

655. The question whether any of the Fundamental Rights can be abridged or taken away

by Parliament in exercise of its power under Article 368 again came up for consideration

before this Court in I.C. Golaknath and Ors. v. State of Punjab (1957) 2 S.C.R. 762. This

case was heard by a full court of eleven judges. In that case by a majority of six to five

this Court came to the conclusion that Sankari PrasadTMs case as well as Sajjan SinghTMs case

were not correctly decided. The majority held that the expression "law" in Article 13(2)

includes Constitutional amendments as well. The minority agreeing with the earlier

decisions held that the expression "law" in Article 13(2) does not include Constitutional

amendments. Five of the majority judges namely Subba Rao C.J., Shah, Sikri, Shelat and

Vaidialingam JJ. held that Article 368 in terms only prescribes the various steps in the

matter of amendment and that the Article assumes the existence of the power to amend

somewhere else in the Constitution. According to them the mere completion of the procedural steps mentioned in Article 368 cannot bring about a valid amendment of the

Constitution. In their opinion, the power to amend cannot be implied from Article 368.

They declined to infer such a power by implication in Article 368 as they thought it was

not necessary since Parliament has under Article 248 read with Item 97 of List I of the

VIIth Schedule plenary power to make any law including the law to amend the Constitution subject to the limitations contained therein. They observed that the power of

Parliament to amend the Constitution may be derived from Article 245, Article 246 and

Article 248 read with Item 97 of List I. The remaining six judges held that the power of

amendment is not derived from Article 248 read with Entry 97 of List I of the VIIth

Schedule. Wanchoo J. (as he then was) and Bhargava, Mitter and Bachawat JJ. held that

the power to amend is to be found in Article 368 and Ramaswami J. held that Article 368

confers on Parliament the right (power) to amend the Constitution. Hidayatullah

J. (as he then was) held that Article 368 outlines a process, which, if followed strictly, results in the amendment of the Constitution; that article gives the power to no particular person or persons, and that the power of amendment, if it can be called a power at all, is a legislative power but it is sui generis and exists outside the three Lists in Schedule VII of the Constitution. This reasoning of Hidayatuallah J. may be reasonably read to suggest that the power of amendment] is necessarily implied in Article 368. The majority of the judges who held that it was impermissible for Parliament to take away or abridge any of the Fundamental Rights by an amendment of the Constitution did not proceed to strike down the 1st, 4th and 17th Amendments. Five of them relied on the doctrine of "Prospective Overruling" (Subba Rao C.J., Shah, Sikri, Shelat and Vaidialingam JJ.) and Hidayatullah J. relied on the doctrine of acquiescence to save those amendments. Evidently in an attempt to get over the effect of the decision in Golak Nathâ™s case, Parliament has enacted the 24th Amendment Act, 1971, and the same has been ratified by more than one half of the Legislatures of the States.

656. Now, turning back to the contentions advanced on behalf of the parties, we shall first deal with the contention of the Union and some of the States that once the "form and manner" prescribed in Article 368 are complied with, the Constitution stands amended and thereafter the validity of the amendment is not open to challenge. This contention does not appear to be a tenable one. Before a Constitution can be validly amended, two requirements must be satisfied. Firstly, there must be the power to amend the provision sought to be amended; and secondly, the "form and the manner" prescribed in Article 368 must be satisfied. If the power to amend the Article is wanting, the fact that Parliament has adhered to the form and manner prescribed in Article 368 becomes immaterial. Hence the primary question is whether Parliament has power to abridge or take away any of the Fundamental Rights prescribed in Part III of the Constitution ?

657. In order to find out whether Parliament has the power to take away or abridge any of the Fundamental Rights in exercise of its power under Article 368, we must first ascertain the true scope of that Article. As seen earlier in Sankari Prasadâ™s case, this Court ruled that the power to amend the Constitution is to be found in Article 368. The same view was taken by the majority of judges in Sajjan Singhâ™s case as well as in Golak Nathâ™s case. We respectively hold that view to be the correct view. As mentioned earlier, Part XX of the Constitution which purports to deal with amendment of the Constitution contains only one Article, i.e. Article 368. The title of that Part is "Amendment of the

Constitution." The fact that a separate part of the Constitution is reserved for the amendment of the Constitution is a circumstance of great significance-see Don John Francis Douglas Liyanage and Ors. v. The Queen [1967] 1 A.C. 259 at 287 and State of U.P. v. Manbodhan Lal Srivastava [1958] S.C.R. 533 at 544. The provisions relating to the amendment of the Constitution are some of the most important features of any modern Constitution. All modern Constitutions assign an important place to the amending provisions. It is difficult to accept the view expressed by Subba Rao C.J. and the learned judges who agreed with him that the power to amend the Constitution is not to be found even by necessary implication in Article 368 but must be found elsewhere. In their undoubtedly difficult task of finding out that power elsewhere they had to fall back on Entry 97 of List I. Lists I to III of the VIIth Schedule of the Constitution merely divide the topics of legislation among the Union and the States. It is obvious that these lists have been very carefully prepared. They are by and large exhaustive. Entry 97 in List I was included to meet some unexpected and unforeseen contingencies. It is difficult to believe that our Constitution-makers who were keenly conscious of the importance of the provision relating to the amendment of the Constitution and debated that question for several days, would have left this important power hidden in Entry 97 of List I leaving it to the off chance of the courts locating that power in that Entry. We are unable to agree with those learned judges when they sought to place reliance on Article 245, Article 246 and Article 248 and Entry 97 of List I for the purpose of locating the power of amendment in the residuary power conferred on the Union. Their reasoning in that regard fails to give due weight to the fact that the exercise of the power under those articles is "subject to the provisions of this Constitution". Hardly few amendments to the Constitution can be made subject to the existing provisions of the Constitution. Most amendments of the Constitution must necessarily impinge on one or the other of the existing provisions of the Constitution. We have no doubt in our minds that Article 245 to Article 248 as well as the Lists in the VIIth Schedule merely deal with the legislative power and not with the amending power. 658. Now coming back to Article 368, it may be noted that it has three components; firstly, it deals with the amendment of the Constitution; secondly, it designates the body or bodies which can amend the Constitution, and lastly, it prescribes the form and the

manner in which the amendment of the Constitution can be effected. The Article does not expressly confer power to amend; the power is necessarily implied in the Article. The Article makes it clear that the amendment of the Constitution can only be made by Parliament but in cases falling under the proviso, ratification by legislatures of not less than one-half of the States is also necessary. That Article stipulates various things. To start with, the amendment to the Constitution must be initiated only by the introduction of a Bill for that purpose in either House of Parliament. It must then be passed in each House by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of that House present and voting and if the amendment seeks to make any change in the provisions mentioned in the proviso, it must be ratified by not less than one-half of the State Legislatures. Thereafter, it should be presented to the President for his assent. It further says that upon such assent being given to the Bill "the Constitution shall stand amended in accordance with the terms of the Bill". To restate the position, Article 368 deals with the amendment of the Constitution. The Article contains both the power and the procedure for amending the Constitution. No undue importance should be attached to the marginal note which says "Procedure for amendment of the Constitution". Marginal note plays a very little part in the construction of a statutory provision. It should have much less importance in construing a Constitutional provision. The language of Article 368 to our mind is plain and unambiguous. Hence we need not call into aid any of the rules of construction about which there was great deal of debate at the hearing. As the power to amend under the Article as it originally stood was only implied, the marginal note rightly referred to the procedure of amendment. The reference to the procedure in the marginal note does not negative the existence of the power implied in the Article.

659. The next question is whether the power conferred under Article 368 is available for amending each and every provision of the Constitution. The Article opens by saying "An amendment of this Constitution" which means an amendment of each and every provision and part of the Constitution. We find nothing in that Article to restrict its scope.

e. If we read Article 368 by itself, there can be no doubt that the power of amendment implied in that Article can reach each and every Article as well as every part of the Constitution.

660. Having ascertained the true scope of Article 368, let us now turn to Article 13. A great deal of reliance was placed by the learned Counsel for the petitioners on the expression "law" found in Article 13(1) and (2). As seen earlier, the two judges in *Sajjan Singh's* case as well as the majority of judges in *Golak Nath's* case opined that "law" in Article 13(2) also includes Constitutional law i.e. law which amends the Constitution and we see no substance in the contention that the amendment of a Constitution is not "law".

The Constitution is amended by enacting Amendment Acts. The Constitution is not only a law but the paramount law of the country. An amendment of that law must necessarily

be a law. The fact that the word "law" is not used in Article 368 is of little significance.

For that matter Article 110 also does not provide that a Bill when assented to by the

President becomes law. The amendment of a Constitution is initiated by a Bill and it goes

through the procedure laid down in Article 368, supplemented wherever necessary by the

procedure prescribed in Article 107; see *Sankari Prasad's* case. The Bill when passed by

both the Houses of Parliament and, in matters coming under the proviso to Article 368,

after securing the necessary ratification by the State Legislatures, is presented to the

President for his assent. The procedure adopted is the same as that adopted in enacting an

ordinary statute except to the extent provided in Article 368. Even if it had been different

, there can be hardly any doubt that the amendment of a Constitution is "law". In *Sankari*

Prasad's case, *Patanjali Sastri J.* (as he then was) speaking for the Court had no doubt in

ruling that the expression "law" must ordinarily include "Constitutional law". The same

view was taken by all the judges in *Sajjan Singh's* case and also by most of the judges in

Golak Nath's case.

661. But the question still remains whether our Constitution makers by using the expression "law" in Article 13(2) intended that that expression should also include the

exercise of Parliament's amending power under Article 368. We have earlier explained

the scope and extent of Article 368. In understanding the meaning of the word "law" in

Article 13(2) we should bear in mind the scope of Article 368. The two Articles will have

to be construed harmoniously. The expression "law" may mean one of two things, namely,

either those measures which are enumerated in Article 13(3) as well as statutes passed by

legislatures or in addition thereto Constitutional laws (amendments) as well. In

this

connection reference may be made to a passage in Corpus Juris Secundum (Vol. XVI Title Constitutional Law Article 1, p. 20), which says:

The term "Constitution" is ordinarily employed to designate the organic law in contradistinction to the terms "law" which is generally used to designate statutes or legislative enactments. Accordingly, the term "law" under this distinction does not include a Constitutional amendment. However, the term "law" may, in accordance with the context in which it is used, comprehend or include the Constitution or a Constitutional provision or amendment

662. It is true that Article 13(3) contains an inclusive definition of the term "law" and, therefore, the question whether it includes Constitutional amendment also cannot be

answered with reference to that clause. All the same, since the expression "law" can have

two meanings, as mentioned earlier, we must take that meaning which harmonises with

Article 368. As mentioned earlier, Article 368 is unambiguous, whereas Article 13 is

ambiguous because of the fact that the word "law" may or may not include Constitutional

amendment. Further, when we speak of "law" we ordinarily refer to the exercise of

legislative power. Hence, "law" in Article 13(2) must be construed as referring to the

exercise of an ordinary legislative power.

663. An examination of the various provisions of our Constitution shows that it has made

a distinction between "the Constitution" and "the laws". The two are invariably treated

separately-see Article 60, 61, proviso to Article 73(1), Article 75(4) read with the Third

Schedule, Article 76(2); Article 124(6) read with the Third Schedule, Article 148(5),

Article 159 and Article 219 read with the Third Schedule. These provisions clearly

establish that the Constitution-makers have not used the expression "law" in the

Constitution as including Constitutional law.

664. Mr. Palkhivala contended that the term "law" in Article 13(1) includes Constitutional

law also. Wanchoo J. speaking for himself and on behalf of two other judges in Golaknath's case held that on the day the Constitution came into force, no Constitutional

law was in force. Therefore in his view, the term "law" in Article 13(1) can only refer to

legislative measures or ordinances or bye-laws, rules, regulations, notifications, customs

and usages. Mr. Palkhivala contended that the said finding is not correct. In that

connection he referred to the treaties and agreements entered into between the former

Rulers of the Indian States and the Central Government as well as to certain other

measures which were in force when the Constitution came into force which, according to him, are "Constitutional law" and, on that basis, he contended that certain Constitutional laws were in force on the day when the Constitution came into force. We are not satisfied that this contention is correct. Under Article 395, the Indian Independence Act, 1947 as well as the Government of India Act, 1935, were repealed. The laws which were continued under Article 372 after the Constitution came into force did not operate on their own strength. For their validity they had to depend on Article 372 and that Article made it clear that those laws will continue to be in force "subject to the other provisions of the Constitution". Anyway it is not necessary to decide the question whether those laws are Constitutional laws. Article 13(1) does not refer to "laws" as such. It refers to "laws in force in the territory of India immediately before the commencement of this Constitution". It identifies certain laws and determines the extent of their validity. The scope of Article 13(1) does not bear on the interpretation of the expression "law" in Article 13(2).

665. We shall now examine the contention of Mr. Palkhivala based on Articles 4, 169, Paragraph 7 of Schedule V and Paragraph 21 of Schedule VI. He contended and we have no doubt that he did so rightly, -that the Constitution can be amended not only under Article 368 but also under Article 4, Article 169, Paragraph 7 of Schedule V and Paragraph 21 of Schedule VI. Amendments under these provisions can be effected by Parliament by a simple majority vote of the members present in the House and voting, if the prescribed quorum is there. If the two Houses do not agree on any amendment under those provisions, the same has to be decided by a Joint sitting of the two Houses as provided in Article 108. That is because of the express exclusion of the application of Article 368 to the amendments made under those provisions. According to Mr. Palkhivala, by the exercise of its power under the aforementioned provisions, Parliament can in certain respects take away or abridge the Fundamental Rights of a section of the people of this country. He painted a gloomy picture as to what can happen by the exercise of power by Parliament under those provisions. It is true that the power conferred under the aforementioned provisions is amending power but those provisions make it clear that the exercise of the power under those provisions shall not be "deemed to be the amendment of the Constitution for the purpose of Article 368".

666. This brings us to a consideration, what exactly is the intent of the

expression "No such law as aforesaid shall be deemed to be an amendment of this Constitution for the purpose of Article 368". There can be little doubt that these words merely mean that the form and manner prescribed in Article 368 need not be complied with. Once this position is accepted any law made under those provisions takes the character of an ordinary law and that law becomes subject to the other provisions of the Constitution including Article 13(2).

667. Counsel either side took us through the debates of the Constituent Assembly relating to Article 368. Naturally each one of them relied on those passages from the speeches of the various members who took part in the debate and, in particular, on the speeches of late Prime Minister Nehru and the then Law Minister Dr. Ambedkar, which supported their contention. Having gone through those speeches, we feel convinced that no conclusive inference can be drawn from those speeches as to the intention of those speakers. Hence, we need not go into the question at this stage whether it is permissible for us to place reliance on those speeches for finding out the true scope of Article 368.

668. Mr. Palkhivala placed a great deal of reliance on the stages through which the present Article 13 passed. It is seen from the Constituent Assembly records that when the Constituent Assembly was considering the provision which resulted in Article 13(2), Mr.

Santhanam one of the members of the Constituent Assembly moved an amendment to make it clear that the expression "law" in Article 13(2) does not include an amendment of the Constitution under draft Article 304 (present Article 368) and that the amendment was accepted by Sardar Patel, Chairman of the Advisory Committee. On the basis of that decision, Sir B.N. Rau, the Constitutional Adviser redrafted the concerned provision by specifically excluding from its operation amendments of the Constitution. When this matter went before the Drafting Committee consisting of eminent lawyers, they redrafted the clause thus:

The State shall not make any law which takes away or abridges the rights conferred by this part and any law made in contravention of this clause shall to the extent of contravention be void.

669. In other words, the drafting committee deleted from Sir B.N. Rau's draft those words

which specifically excluded from the operation of the clause amendments of the Constitution. From these circumstances, Mr. Palkhivala seeks to draw the inference that

the Constituent Assembly finally decided to bring within the scope of Article 13(2)

Constitutional amendments also. We are unable to accept this contention. It is not clear why the drafting committee deleted the reference to the amendment of the Constitution in Article 13(2). It is possible that they were of the opinion that in view of the plain language of the provision relating to the amendment of the Constitution i.e. draft Article 304, it was unnecessary to provide in Article 13(2) that the amendment of the Constitution does not come within its scope.

670. It is true that this Court has characterised the Fundamental rights as "paramount" in *A.K. Gopalan v. State of Madras* [1950] S.C.R. 88 at 198, as "sacrosanct" in *State of Madras v. Smt. Champakam Dorairajan*, [1951] S.C.R. 525, as "rights served by the people" in *Pandu M.S.M. Sharma v. Shri Sri Krishna Sinha*, [1959] Supp. 1 S.C.R. 806 as "inalienable and inviolable" in *Smt. Ujjam Bhai v. State of U.P.* [1963] 1 S.C.R. 778 and as "transcendental" in several other cases. In so describing the Fundamental Rights in those cases, this Court could not have intended to say that the Fundamental Rights alone are the basic elements or fundamental features of the Constitution. Mr. Palkhiwala conceded that the basic elements and fundamental features of the Constitution are found not merely in Part III of the Constitution but they are spread out in various other parts of the Constitution. They are also found in some of the Directive Principles set out in Part IV of the Constitution and in the provisions relating to the sovereignty of the country, the Republic and the Democratic character of the Constitution. According to the Counsel, even the provisions relating to the unity of the country are basic elements of the Constitution.

671. It was urged that since even amendment of several provisions of minor significance requires the concurrence of the legislatures of the majority of the States it is not likely that the Constitution makers would have made the amendment of the provisions relating to Fundamental Rights a plaything of the Parliament. This argument, however, does not lead to any definite conclusion. It is not unlikely that the Constitution-makers thought that the states are specially interested in the provisions mentioned in the proviso to Article 368, so that the amendment of those provisions should require ratification by the legislatures of the majority of the States. When the language of Article 368 is plain, as we think it is, no question of construction of that Article arises. There is no need to delve into the intention of the Constitution-makers.

672. Every Constitution is expected to endure for a long time. Therefore, it must necessarily be elastic. It is not possible to place the society in a straight jacket. The society grows, its requirements change. The Constitution and the laws may have to be changed to suit those needs. No single generation can bind the course of the generation to come. Hence every Constitution wisely drawn up provides for its own amendment. We shall separately consider the contention of Mr. Palkhivala that our Constitution embodies certain features which are so basic that no free and civilised society can afford to discard them and in no foreseeable future can those features become irrelevant in this country. For the present we shall keep apart, for later consideration. Mr. Palkhivala's contention that the Parliament which is only a constituted body cannot damage or destroy the essential features of the Constitution. Up till now we have merely confined our attention to the question as to the scope and reach of Article 368. This Court has always attached great importance to the Fundamental Rights guaranteed under our Constitution. It has given no less importance to some of the Directive Principles set out in Part IV. The Directive Principles embodied in Part IV of the Constitution or at any rate most of them are as important as the rights of individuals. To quote the words of Graville Austin (The Indian Constitution-Corner Stone of a Nation, page 50):

The Indian Constitution is first and foremost a social document. The majority of its provisions are either directly aimed at furthering the goals of social revolution by establishing the conditions necessary for its achievement yet despite the permeation of the entire Constitution by the aim of national renaissance, the core of the commitment to the social revolution lies in Parts III and IV, in the Fundamental Rights and the Directive Principles of State Policy. These are the conscience of the Constitution.

673. Therefore to implement the duties imposed on the States under Part IV, it may be necessary to abridge in certain respects the rights conferred on the citizens or individuals under Part III, as in the case of incorporation of Clause 4 in Article 15 to benefit the

backward classes and Scheduled Castes and Scheduled Tribes and the amendment of Article 19(2) with a view to maintain effectively public order and friendly relations with foreign States. Hence we are unable to construe the amending power in a narrow or pedantic manner. That power, under any circumstance, must receive a broad and liberal interpretation. How large it should be is a question that requires closer examination. Both on principle as well as on the language of Article 368, we are unable to accede to the contention that no right guaranteed by Part III can be abridged.

674. This Court is always reluctant to overrule its earlier decisions. There must be compelling reasons for overruling an earlier decision of this Court. As seen earlier, there are already conflicting decisions as to the scope of Article 368. As far back as 1951, in *Sankari Prasadâ€™s case*, this Court took the view that the power of amendment conferred under Article 368 included within itself the power to abridge and take away the Fundamental Rights incorporated in Part III of the Constitution. The correctness of that view was not challenged in several other decisions. The same view was taken in *Sajjan Singhâ€™s case*. That view was negatived in *Golaknathâ€™s case* by a very narrow majority. Bearing in mind the disastrous effect that decision would have had on many important laws that had been enacted by the Union and the States between the years 1951 to 1967, this Court by relying on the doctrines of prospective overruling and the doctrine of acquiescence did not invalidate those laws.

675. One other circumstance of great significance is that the 1st Amendment to the Constitution was carried out by the provisional Parliament which consisted of the very members who were the members of the Constituent Assembly. It should be remembered that members of the Constituent Assembly continued as the members of the provisional Parliament till the General Election in 1952. They must have been aware of the intention with which Article 368 was enacted. These are important circumstances. The interpretation we place on a Constitutional provision, particularly on a provision of such great importance as Article 368 must subserve national interest. It must be such as to further the objectives intended to be achieved by the Constitution and to effectuate the philosophy underlying it. To quote the memorable words of Chief Justice Marshall we must not forget that we are expounding a Constitution.

676. We now come to the second contention of Mr. Palkhivala that the word 'amendment' has a limited meaning and Article 368 does not permit any damage to or destruction of

the basic or fundamental features or essential elements of the Constitution. Mr. Palkhivala urged that the word "amendment" or "amend" ordinarily means â™to make certain changes or effect some improvements in a textâ™. Those words do not, according to him, except under special circumstances mean the widest power to make any and every change in a document, including a power to abrogate or repeal the basic features of that document. The same, he contended, is true of a power to amend a statute or a Constitution. In support of his contention, he invited our attention to the various meanings given to the word "amendment" or "amend" in several dictionaries. He further urged that in construing the meaning of the word "amendment" in Article 368, we must take into consideration the donee to whom the power to amend the Constitution is granted, the atmosphere in which the Constitution came to be enacted, the consequences of holding that power is unlimited in scope as well as the scheme of the Constitution. He urged that in the final analysis, the duty of the Court is to find out the true intention of the founding fathers and therefore the question before us is whether the founding fathers intended to confer on Parliament, a body constituted under the Constitution, power to damage or destroy the very basis on which our Constitution was erected. On the other hand it was contended on behalf of the Union of India, State of Kerala as well as the other States that the power of amendment conferred under Article 368 is of the widest amplitude. It brooks no limitation. It is a power which can be used to preserve the Constitution, to destroy the Constitution and to re-create a new Consitution. It was contended that the society can never be static, social ideals and political and economic theories go on changing and every Constitution in order to preserve itself needs to be changed now and then to keep in line with the growth of the society. It was further contended that no generation can impose its Will permanently on the future generations. Wise as our founding fathers were, wisdom was not their sole monopoly. They themselves realised it. They knew that in a changing world, there can be nothing permanent and, therefore, in order to attune the Constitution to the changing concepts of politics, economics and social ideas, they provided in Article 368 a machinery which is neither too flexible nor too rigid and makes it possible to so reshape the Constitution as to meet the requirements of the time. According to them by following the form and manner prescribed in Article 368, Parliament can exercise the same power which the Constituent

Assembly could have exercised. We have now to consider which one of the two contentions is acceptable.

677. While interpreting a provision in a statute or, Constitution the primary duty of the court is to find out the legislative intent. In the present case our duty is to find out the intention of the founding fathers in enacting Article 368. Ordinarily the legislative intent is gathered from the language used. If the language employed is plain and unambiguous, the same must be given effect to irrespective of the consequences that may arise. But if the language employed is reasonably capable of more meanings than one, then the Court will have to call into aid various well settled rules of construction and in particular, the history of the legislation-to find out the evil that was sought to be remedied and also in some cases the underlying purpose of the legislation-the legislative scheme and the consequences that may possibly flow from accepting one or the other of the interpretations because no legislative body is presumed to confer a power which is capable of misuse.

678. It was conceded at the bar that generally speaking, the word "amendment" like most words in English or for that matter in any language, has no precise meaning. Unlike "sale" or "exercise", it is not a term of law. It is capable of receiving a wide meaning as well as a narrow meaning. The power to amend a Constitution in certain context may include even a power to abrogate or repeal that Constitution. It may under certain circumstances mean a power to effect changes within narrow limits. It may sometime mean a power that is quite large but yet subject to certain limitations. To put it shortly, the word "amendment" without more, is a colourless word. It has no precise meaning. It takes its colour from the context in which it is used. It cannot be interpreted in vacuo. Few words in English language have a natural, or ordinary meaning in the sense that they must be so read that their meaning is entirely independent of the context. As observed by Holmes J. in *Towne v. Eisner*. 215 U.S. 418 at 425 "A word is not a crystal, transparent and unchanged; it is the skin of a living thought and may vary greatly in colour and content according to circumstances and the time in which it is used". We must read the word "amendment" in Article 368 not in isolation but as occurring in a single complex instrument, Article 368 is a part of the Constitution. The Constitution confers various powers on legislatures as well as on other authorities. It also imposes duties on those

authorities. The power conferred under Article 368 is only one such power. Unless it is plain from the Constitutional scheme that the power conferred under Article 368 is a super power and is capable of destroying all other powers, as contended on behalf of the Union and the States, the various parts of the Constitution must be construed harmoniously for ascertaining the true purpose of Article 368.

679. In our Constitution unlike in the Constitution of the United States of America the words "amendment" and "amend" have been used to convey different meanings in different places. In some Articles they are used to confer a narrow power, a power merely to effect changes within prescribed limits-see Articles 4, 107(2), 111, 169(2), 196(2), 197(2) and 200. Under Paragraph 7 of the Fifth Schedule as well as Paragraph 21 of the Sixth Schedule to the Constitution, a much larger power to amend those Schedules has been conferred on Parliament. That power includes power to amend "by way of addition, variation or repeal". Similar is the position under the repealed Article 243(2), Article 252(2) and 350(5). It is true that the power to amend conferred under the Fifth and Sixth Schedules is merely a power to amend those Schedules but if the Constitution-makers were of the opinion that the word "amendment" or "amend" included within its scope, unless limited otherwise, a power to add, vary, or repeal, there was no purpose in mentioning in those Articles or parts "amend by way of addition, variation or repeal". In this connection it may also be remembered that the Constituent Assembly amended Section 291 of the Government of India Act, 1935 on August 21, 1949 just a few days before it approved Article 368 i.e. on September 17, 1949. The amended Section 291 empowered the Governor-General to amend certain provisions of the 1935 Act "by way of addition, modification or repeal". From these circumstances, there is prima facie reason to believe that our Constitution makers made a distinction between a mere power to amend and a power to amend by way of "addition, modification or repeal". It is one of the accepted rules of construction that the courts should presume that ordinarily the legislature uses the same words in a statute to convey the same meaning. If different words are used in the same statute, it is reasonable to assume that, unless the context otherwise indicates, the legislature intended to convey different meanings by those words. This rule of interpretation is applicable in construing a Constitution as well.

680. Now that we have come to the conclusion that the word "amendment" in Article 368

is not a word of precise import and has not been used in the various Articles and parts of the Constitution to convey always the same precise meaning, it is necessary to take the aid of the other relevant rules of construction to find out the intention of the Constitutio
n
makers.

681. The question whether there is any implied limitation on the amending power under

Article 368 has not been decided by this Court till now. That question did not come up

for consideration in Sankari Prasadâ€™s case. In Sajjan Singhâ€™s case neither the majority

speaking through Gajendragadkar C.J. nor Hidayatullah J. (as he then was) went into that

question. But Mudholkar J. did foresee the importance of that aspect. He observed in the

course of his judgment:

We may also have to bear in mind the fact that ours is a written Constitution. The Constituent Assembly which was the repository of sovereignty could well have created a sovereign Parliament on the British model. But instead it enacted a written Constitution, created three organs of State, made the Union executive responsible to Parliament and the State executive to the State legislatures, erected a federal structure and distributed legislative power between Parliament and the State Legislatures; recognised certain rights as fundamental and provided for their enforcement, prescribed forms of oaths of office or affirmations which require those who subscribe to them to owe true allegiance to the Constitution and further require the members of the Union Judiciary and of the Higher judiciary in the States, to uphold the Constitution. Above all, it formulated a solemn and dignified preamble which appears to be an epitome of the basic features of the Constitution. Can it not be said that these are indicia of the intention of the Constituent Assembly to give a premanency to the basic features of the Constitution ?

It is also a matter for consideration whether making a change in a basic feature of the Constitution can be regarded merely as an amendment or would it be, in effect, rewriting a part of the Constitution; and if the latter, would it be within the purview of Article 368 ?

682. For the first time in Golak Nathâ€™s case, the contention that the power of amendment

under Article 368 is subject to certain inherent and implied limitations was urged. Subba

Rao C.J. speaking for himself and four of his colleagues, while recognising the force of

that contention refrained from pronouncing on the same. Wanchoo J. (as he then was)

speaking for himself and two other judges opined that the power under Article 368 is a

very wide power but it may not include a power to abrogate the Constitution. He did

explain what he meant by "abrogate the Constitution". Hidayatullah J. (as he then was)

did not address himself to that question. Bachawat J. side-stepped that question by saying

that the impugned amendments did not destroy any, basic feature of the Constitution, The

only judge who rejected the contention that there are inherent or implied

limitations on

the amending power was Ramaswami J. >From the above discussion it is seen that in

cases that came up for consideration before this Court in the past several judges did

consider the possibility of having some limitation on the amending power under Article

368 though they did not definitely pronounce on that question.

683. One of the well-recognised rules of construction is the rule laid down in Heydonâ€™s

case. What was the mischief that the Constitution-makers intended to remedy?

What was

the purpose intended to be achieved by the Constitution? To answer this question it is

necessary to make a brief survey of our Nationalist movement ever since 1885 and the

objectives sought to be achieved by that movement.

684. The objectives underlying our Constitution began to take their shape as a result of

the forces that operated in the national struggle during the British rule when the British

resorted to arbitrary acts of oppression such as brutal assaults on unarmed satyagrahis,

internments, deportations, detention without trial and muzzling of the press.

The

harshness with which the executive operated its repressive measures strengthened the

demand for Constitutional guarantees of Fundamental Rights. As far back as 1895, the

Constitution of India Bill, prepared by some eminent Indians, envisaged for India a

Constitution guaranteeing to everyone of our citizens freedom of expression, inviolability

of oneâ€™s house, right to property, equality before the law, equal opportunity of admission

to public offices, right to present claims, petitions and complaints and right to personal

liberty. After the publication of the Montague-Chelmsford Report, the Indian National

Congress at its special session held in Bombay in August 1918 demanded that the new

Government of India Act should contain "Declaration of Rights of the people of India as

British citizens". The proposed declaration was to embody among other things, guarantees in regard to equality before the law, protection in respect of life and liberty,

freedom of speech and press and right of association. In its Delhi Session in December of the same year, the Congress passed another resolution demanding the immediate repeal of all laws, regulations and ordinances restricting the free discussion of political questions and conferring on the executive the power to arrest, detain, intern, extern or imprison any British subject in India outside the process of ordinary Civil or Criminal law and the assimilation of the law of sedition to that of England. The Commonwealth of India Bill, finalised by the National Convention in 1926 embodied a specific declaration of rights visualising for every person certain rights in terms practically identical with the relevant provisions of the Irish Constitution. The problems of minorities in India further strengthened the general argument in favour of inclusion of Fundamental Rights in the Indian Constitution. In its Madras Session in 1927, the Indian National Congress firmly laid down that the basis of the future Constitution must be a declaration of Fundamental Rights. In 1928, the Nehru Committee in its report incorporated a provision for enumeration of such rights, recommending their adoption as a part of the future Constitution of India. The Simon Commission, rejected the demand on the plea that an abstract declaration of such rights was useless unless there existed "the will and the means to make them effective". In 1932, in its Karachi Session, the Indian National Congress reiterated its resolve to regard a written guarantee of Fundamental Rights as essential in any future Constitutional set up in India. The demand for the incorporation of the Fundamental Rights in the Constitutional document was reiterated by the Indian leaders at the Round Table Conferences. The Joint Select Committee of the British Parliament rejected those demands. The Sapru Committee (1944-45) was of the opinion that in the peculiar circumstances of India, the Fundamental Rights were necessary not only as assurance and guarantees to the minorities but also prescribing a standard of conduct for the legislatures, governments and the courts. The Committee felt that it was for the Constitution-making body to enumerate first the list of Fundamental Rights and then to undertake their further division into justiciable and non-justiciable rights and provide a suitable machinery for their enforcement.

685. The atrocities committed during the Second World War and the world wide agitation for human rights, the liberties guaranteed in the Atlantic Charter, the U.N. Charter and

the Declaration of Human Rights by the Human RightsTM Commission strengthened the demand for the incorporation of Fundamental Rights in our Constitution. The British Cabinet Mission in 1946 recognised the need for a written guarantee of Fundamental Rights in the Constitution of India. It accordingly recommended the setting up of an advisory committee for reporting, inter alia, on Fundamental Rights. By the Objectives Resolution adopted on January 22, 1947, the Constituent Assembly solemnly pledged itself to draw up for IndiaTMs future governance a Constitution wherein "shall be guaranteed and secured to all the people of India justice, social, economic and political, equality of status, of opportunity and before the law; freedom of thought, expression, belief, faith, worship, vocation, association and action subject to law and public morality and wherein adequate safeguard would be provided for minorities, backward and tribal areas and depressed and other backward classes". The close association between political freedom and social justice has become a common concept since the French Revolution. Since the end of the first World War, it was increasingly recognised that peace in the world can be established only if it is based on social justice. The most modern Constitutions contain declaration of social and economic principles, which emphasise, among other things, the duty of the State to strive for social security and to provide work, education and proper condition of employment for its citizens. In evolving the Fundamental Rights and the Directive Principles, our founding fathers, in addition to the experience gathered by them from the events that took place in other parts of the world, also drew largely on their experience in the past. The Directive Principles and the Fundamental Rights mainly proceed on the basis of Human Rights. Representative democracies will have no meaning without economic and social justice to the common man. This is a universal experience. Freedom from foreign rule can be looked upon only as an opportunity to bring about economic and social advancement. After all freedom is nothing else but a chance to be better. It is this liberty to do better that is the theme of the Directive Principles of State Policy in Part IV of the Constitution.

686. The Objectives Resolution passed by the Constituent Assembly in January 1947, is a definite landmark. It is a precursor to the preamble to our Constitution. It sets out in detail the objectives that were before our Constitution-makers. Those objectives have now been incorporated in the preamble to our Constitution which reads:

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN DEMOCRATIC REPUBLIC and to secure to all its citizens:

JUSTICE, social, economic and political;
LIBERTY of thought, expression, belief, faith and worship;
EQUALITY of status and of opportunity;
and to promote among them all
FRATERNITY assuring the dignity of the individual and the unity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949 do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

687. From the preamble it is quite clear that the two primary objectives that were before

the Constituent Assembly were (1) to constitute India into a Sovereign Democratic

Republic and (2) to secure to its citizens the rights mentioned therein. Our founding

fathers, at any rate, most of them had made immense sacrifices for the sake of securing

those objectives. For them freedom from British rule was an essential step to render

social justice to the teeming millions in this country and to secure to one and all in this

country the essential human rights. Their Constitutional plan was to build a welfare state

and an egalitarian society.

688. Now that we have set out the objectives intended to be achieved by our founding

fathers, the question arises whether those very persons could have intended to empower

the Parliament, a body constituted under the Constitution to destroy the ideals that they

dearly cherished and for which they fought and sacrificed.

689. If the nature of the power granted is clear and beyond doubt the fact that it may be

misused is wholly irrelevant. But, if there is reasonable doubt as to the nature of the

power granted then the Court has to take into consideration the consequences that might

ensue by interpreting the same as an unlimited power. We have earlier come to the

conclusion that the word "amendment" is not an expression having a precise connotation.

It has more than one meaning. Hence it is necessary to examine the consequence of

accepting the contention of the Union and the States. Therefore let us understand the

consequences of conceding the power claimed. According to the Union and the States

that power inter alia, includes the power to (1) destroy the sovereignty of this country and

make this country a satellite of any other country; (2) substitute the democratic form of

government by monarchical or authoritarian form of government; (3) break up the unity

of this country and form various independent States; (4) destroy the secular character of

this country and substitute the same by a theocratic form of government; (5) abrogate completely the various rights conferred on the citizens as well as on the minorities; (6) revoke the mandate given to the States to build a Welfare State; (7) extend the life of the two Houses of Parliament indefinitely; and (8) amend the amending power in such a way as to make the Constitution legally or at any rate practically unamendable. In fact, their contention was that the legal sovereignty, in the ultimate analysis rests only in the amending power. At one stage, Counsel for the Union and the States had grudgingly conceded that the power conferred under Article 368 cannot be used to abrogate the Constitution but later under pressure of questioning by some of us they changed their position and said that by "abrogation" they meant repeal of the Constitution as a whole. When they were asked as to what they meant by saying that the power conferred under Article 368 cannot be used to repeal the Constitution, all that they said was that while amending the Constitution, at least one clause in the Constitution must be retained though every other clause or part of the Constitution including the preamble can be deleted and some other provisions substituted. Their submission in short was this that so long as the expression the "Constitution of India" is retained, every other article or part of it can be replaced. They tried to tone down the effect of their claim by saying that, though legally, there is no limitation on the amending power, there are bound to be political compulsions which make it impermissible for Parliament to exercise its amending power in a manner unacceptable to the people at large. The strength of political reaction is uncertain. It depends upon various factors such as the political consciousness of the people, their level of education, strength of the various political organizations in the country, the manner in which the mass media is used and finally the capacity of the government to suppress agitations. Hence the people's will to resist an unwanted amendment cannot be taken into consideration in interpreting the ambit of the amending power. Extra legal forces work in a different plane altogether.

690. We find it difficult to accept the contention that our Constitution-makers after

making immense sacrifices for achieving certain ideals made provision in the Constitution itself for the destruction of those ideals. There is no doubt as men of experience and sound political knowledge, they must have known that social, economic and political changes are bound to come with the passage of time and the Constitution must be capable of being so adjusted as to be able to respond to those new demands. Our Constitution is not a mere political document. It is essentially a social document. It is based on a social philosophy and every social philosophy like every religion has two main features, namely, basic and circumstantial. The former remains constant but the latter is subject to change. The core of a religion always remains constant but the practices associated with it may change. Likewise, a Constitution like ours contains certain features which are so essential that they cannot be changed or destroyed. In any event it cannot be destroyed from within. In other words, one cannot legally use the Constitution to destroy itself. Under Article 368 the amended Constitution must remain the Constitution which means the original Constitution. When we speak of the abrogation or repeal of the Constitution, we do not refer to any form but to substance. If one or more of the basic features of the Constitution are taken away to that extent the Constitution is abrogated or repealed. If all the basic features of the Constitution are repealed and some other provisions inconsistent with those features are incorporated, it cannot still remain the Constitution referred to in Article 368. The personality of the Constitution must remain unchanged.

691. It is also necessary to bear in mind that the power to amend the Constitution is conferred on Parliament, a body constituted under the Constitution. The people as such are not associated with the amendment of the Constitution. From the preamble we get that it is the people of this country who conferred this Constitution on themselves. The statement in the preamble that the people of this country conferred the Constitution on themselves is not open to challenge before this Court. Its factual correctness cannot be gone into by this Court which again is a creature of the Constitution. The facts set out in the preamble have to be accepted by this Court as correct. Anyone who knows the composition of the Constituent Assembly can hardly dispute the claim of the members of that Assembly that their voice was the voice of the people. They were truly the representatives of the people, even though they had been elected under a narrow

franchise. The Constitution framed by them has been accepted and worked by the people for the last 23 years and it is too late in the day now to question, as was sought to be done

at one stage by the Advocate-General of Maharashtra, the fact, that the people of this country gave the Constitution to themselves.

692. When a power to amend the Constitution is given to the people, its contents can be construed to be larger than when that power is given to a body constituted under that

Constitution. Two-thirds of the members of the two Houses of Parliament need not necessarily represent even the majority of the people of this country. Our electoral system

is such that even a minority of voters can elect more than two-thirds of the members of

the either House of Parliament. That is seen from our experience in the past. That apart,

our Constitution was framed on the basis of consensus and not on the basis of majority

votes. It provides for the protection of the minorities. If the majority opinion is taken as

the guiding factor then the guarantees given to the minorities may become valueless. It is

well known that the representatives of the minorities in the Constituent Assembly gave

up their claim for special protection which they were demanding in the past because of

the guarantee of Fundamental Rights. Therefore the contention on behalf of the Union

and the States that the two-thirds of the members in the two Houses of Parliament are

always authorised to speak on behalf of the entire people of this country is unacceptable.

693. The President of India under Article 60 of the Constitution is required to take an

oath before he assumes his office to the effect that he will "to the best of his ability

preserve, protect and defend the Constitution". Somewhat similar oaths have to be taken

by the Governors of States, Ministers at the Centre and in the States, Judges of the

superior courts and other important functionaries. When the President of India is

compelled to give assent to a Constitutional amendment which might destroy the basic

features of the Constitution, can it be said that he is true to his oath to "preserve, prote

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and defend the Constitution" or does his oath merely mean that he is to defend the

amending power of Parliament ? Can the amending power of Parliament be considered as

the Constitution? The whole scheme and the structure of our Constitution proceeds on the

basis that there are certain basic features which are expected to be permanent.

694. Implied limitations on the powers conferred under a statute constitute a general

feature of all statutes. The position cannot be different in the case of powers conferred under a Constitution. A grant of power in general terms of even in absolute terms may be qualified by other express provisions in the same enactment or may be qualified by the implications of the context or even by considerations arising out of what appears to be the general scheme of the statute. In *Re The Central Provinces and Berar (Central Provinces and Berar Act No. XIV of 1938 [1939] F.C.R. p. 18*, Sir Maurice Gwyer C.J. observed at p. 42:

A grant of the power in general terms, standing by itself, would no doubt be construed in the wider sense; but it may be qualified by other express provisions in the same enactment, by the implications of the context, and even by considerations arising out of what appears to be the general scheme of the Act.

695. Lord Wright in *James v. Commonwealth of Australia [1936] A.C. 578 at 613* stated the law thus:

The question, then, is one of construction, and in the ultimate resort must be determined upon the actual words used, read not in vacuo but as occurring in a single complex instrument, in which one part may throw light on another. The Constitution has been described as the federal compact, and the construction must hold a balance between all its parts.

696. Several of the powers conferred under our Constitution have been held to be subject

to implied limitations though those powers are expressed in general terms or even in

absolute terms. The executive power of the Union is vested in the President and he is

authorised to exercise the same either directly or through officers subordinate to him in

accordance with the Constitution. Under Article 75, it is the President who can appoint

the Prime Minister and the Ministers are to hold office during his pleasure. Despite this

conferment of power in general and absolute terms, because of the scheme of the Constitution, its underlying principles and the implications arising from the other

provisions in the Constitution, this Court has held in several cases that the President is a

Constitutional head and the real executive power vests in the Cabinet. Similarly though

plenary powers of legislation have been conferred on the Parliament and the State

legislatures in respect of the legislative topics allotted to them, yet this Court has opined

that by the exercise of that power neither Parliament nor the State legislatures can

delegate to other authorities their essential legislative functions nor could they invade on

the judicial power. These limitations were spelled out from the nature of the power

conferred and from the scheme of the Constitution. But, it was urged on behalf of the

Union and the States that, though there might be implied limitations on other powers conferred under the Constitution, there cannot be any implied limitations on the amending power. We see no basis for this distinction. The amending power is one of the powers conferred under the Constitution whatever the nature of that power might be. That apart, during the course of hearing the learned Solicitor-General had to concede that there are certain implied limitations on the amending power itself. The amending power of Parliament in certain respects is subject to the express limitations placed on it by the proviso to Article 368. Article 368 prescribes that if Parliament wants to amend Article 54, the Article dealing with the election of the President, the amendment in question must be ratified by the legislatures of not less than one half of the States. No such express limitation is placed on the amending power of Parliament in respect of Article 52 which provides that there shall be a President of India. If it be held that Article 52 can be amended without complying with the requirements of the proviso to Article 368, the limitation placed on Parliament in respect of the amendment of Article 54 becomes meaningless. When this incongruity was pointed out to the learned Solicitor-General, he conceded that in view of the fact that before Article 54 can be amended, the form and the manner laid down in proviso to Article 368 has to be followed, it follows as a matter of implication that the same would be the position for the amendment of Article 52. The only other alternative inference is that Article 52 can never be amended at all. It is not necessary to go into the other implications that may arise from the language of Article 368.

697. From what has been said above, it is clear that the amending power under Article 368 is also subject to implied limitations. The contention that a power to amend a Constitution cannot be subject to any implied limitation is negated by the observations of the Judicial Committee in *The Bribery Commissioner v. Rana Singhe* [1965] A.C. 172. The decision of the Judicial Committee in *Liyange's case* (supra) held that Ceylon Parliament was incompetent to encroach upon the judicial power also lends support to

our conclusion that there can be implied limitations on the amending power. 698. In support of the contention that there can be no implied limitations on the amending power, our attention was invited to writings of various jurists of eminence. Most of the writings relate to the amending power under Article 5 of the United States Constitution. It is true that in the United States most of the writers are of opinion that there is no implied limitation on the amending power under the United States Constitution. The Supreme Court of the United States has not specifically pronounced on this question. The only case in which the question of implied limitation on the amending power under the United States Constitution came up for consideration was Rhode Island v. Palmer 64 L. Edn. 946. In that case the Supreme Court of United States rejecting the contention that the 18th Amendment-National Prohibition Amendment-was outside the amending power under Article 5 because of implied limitations on that power, held that the Amendment was valid. The Supreme Court, however, did not discuss the question of implied limitations on the amending power as such. In fact the judgment that was rendered in that case gave no reasons. Only certain questions were formulated and answered. It is not clear from the judgment whether the particular limitation pleaded was rejectedTM or whether the plea of implied limitation on the amending power was rejected though writers of most text books have taken the view that the court rejected the plea of implied limitations on the amending power. It may be noted that in the United States not a single human right has been taken away or even its scope narrowed. There the controversy centred round two questions viz. (1) abolition of slavery and (2) prohibition of sale and consumption of liquor. We will not be justified in expounding our Constitution on the basis of the controversies relating to those issues. Article 5 of the U.S. Constitution is not similar to Article 368 of our Constitution. In the former Article, there is an express limitation on the amending power i.e. regarding the representation of the States in the Senate. Further the amendment under Article 5 of the United States Constitution can be proposed either by the Congress or by State Conventions. They may be ratified either by a minimum of 3/4th of the State Legislatures or by Conventions held in at least 3/4th of the States. Whether a particular amendment should be ratified by the State Legislatures or by the State

Conventions is entirely left to the discretion of the Congress. As held by the United States Supreme Court, the decision of the Congress on that question is final. The Constitution makers must have proceeded on the basis that the Congress is likely to require the amendment of basic elements or fundamental features of the Constitution to be ratified by State Conventions. The scheme of no two Constitutions is similar. Their provisions are not similar. The language employed in the amending clauses differ from Constitution to Constitution. The objectives lying behind them also are bound to differ. Each country has its own needs, its own philosophy, its own way of life and above all its own problems. Hence in our opinion, we will be clouding the issues, if we allow ourselves to be burdened either by the writings of the various writers on other Constitutions or by the decisions rendered on the basis of the provisions of the other Constitutions, though Counsel on either side spared no efforts to place before us various opinions expressed by various writers as well as the decisions rendered by several courts including the State Courts in United States of America.

699. The rule laid down by the Judicial Committee in *R. v. Burah* (1878) I.A. 178 that "if what has been done is legislation, within the general scope of the affirmative words which give the power, and if it violates no express condition or restriction by which that power is limited it is not for any court of Justice to inquire further, or to enlarge constructively those conditions and restrictions" was heavily relied on by Mr. Seervai. That decision, however, has been confined to the interpretation of conditional legislations and the rule that it laid down has not been applied while considering the question whether there are any implied limitations on any of the powers conferred under a statute or Constitution.

700. It was strenuously urged on behalf of the Union and the States that if we come to the conclusion that there are implied or inherent limitations on the amending power of Parliament under Article 368, it would be well nigh impossible for Parliament to decide before hand as to what amendments it could make and what amendments it is forbidden to make. According to the Counsel for the Union and the States, the conceptions of basic elements and fundamental features are illusive conceptions and their determination may differ from judge to judge and therefore we would be making the task of Parliament impossible if we uphold the contention that there are implied or inherent limitations on the amending power under Article 368. We are unable to accept this contention. The

broad contours of the basic elements or fundamental features of our Constitution are clearly delineated in the preamble. Unlike in most of the other Constitutions, it is comparatively easy in the case of our Constitution to discern and determine the basic elements or the fundamental features of our Constitution. For doing so, one has only to look to the preamble. It is true that there are bound to be border line cases where there can be difference of opinion. That is so in all important legal questions. But the courts generally proceed on the presumption of Constitutionality of all legislations. The presumption of the Constitutional validity of a statute will also apply to Constitutional amendments. It is not correct to say that what is difficult to decide does not exist at all. For that matter, there are no clear guidelines before the Parliament to determine what are essential legislative functions which cannot be delegated, what legislations do invade on the judicial power or what restrictions are reasonable restrictions in public interest under Article 19(2) to 19(6) and yet by and large the legislations made by Parliament or the State legislatures in those respects have been upheld by courts. No doubt, there were occasions when courts were constrained to strike down some legislations as ultra vires the Constitution. The position as regard the ascertainment of the basic elements or fundamental features of the Constitution can by no means be more difficult than the difficulty of the legislatures to determine before hand the Constitutionality of legislation s made under various other heads. Arguments based on the difficulties likely to be faced by the legislatures are of very little importance and they are essentially arguments against judicial review.

701. Large number of decisions rendered by courts in U.S.A., Canada, Australia, United Kingdom, Ceylon and Ireland, dealing with the question of implied limitations on the amending power and also as regards the meaning of the word "amendment" were read to us at the hearing. Such of those that are relevant have been considered by the learned Chief Justice in the judgment just now delivered. We entirely agree with the views expressed by him and we cannot usefully add to the same.

702. It was contended on behalf of the Union and the States that, the Constitution should not be treated as something sacred. It should be regarded just in the same way as we regard other human institutions. It should be possible to alter every part of it

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time so as to bring it in harmony with the new and changed conditions. In support of this

contention we were invited to the writings of the various writers such as Burgess, Bryce,

Willis, Orfield, Weaver Livingston etc. It was further urged that the

Constituent

Assembly knowing that, it will disperse, had arranged for the recreation of a

Constituent

Assembly, under Article 368 in order to so shape the Constitution as to meet the demands

of the time. However, attractive these theories may sound in the abstract, on a closer

examination, it will be seen that they are fallacious, more particularly in a Constitutional

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set up like ours. We have earlier noticed that under our electoral system, it is possible for

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a party to get a 2/3rd majority in the two Houses of Parliament even if that party does not

get an absolute majority of votes cast at the election. That apart, when a party goes to

election, it presents to the electorate diverse programmes and holds out various promises.

The programmes presented or the promises held out need not necessarily include proposals for amending the Constitution. During the General Elections to

Parliament in

1952, 1957, 1962 and 1967, no proposal to amend the Constitution appears to have been

placed before the electorate. Even when proposals for amendment of the Constitution are

placed before the electorate as was done by the Congress Party in 1971, the proposed

amendments are not usually placed before the electorate. Under these circumstances, the

claim that the electorate had given a mandate to the party to amend the Constitution in

any particular manner is unjustified. Further a Parliamentary Democracy like ours

functions on the basis of the party system. The mechanics of operation of the party

system as well as the system of Cabinet government are such that the people as a whole

can have little control in the matter of detailed law-making. "...on practically every issue

in the modern State, the serried millions of voters cannot do more than accept or reject

the solutions; offered. The stage is too vast to permit of the nice shades of quantitative

distinction impressing themselves upon the public mind. It has rarely the leisure, and

seldom the information, to do more than indicate the general tendency of its will. It is in

the process of law-making that the subtler adjustments must be effected." (Laski : A

Grammar of Politics; Fifth Edn. pp. 313-314).

703. The assertion that either the majority of members of Parliament or even 2/3rd members of Parliament speak on behalf of the nation has no basis in fact. Indeed it may be possible for the ruling party to carry through important Constitutional amendments even after it has lost the confidence of the electorate. The members of Lok Sabha are elected for a term of five years. The ruling party or its members may or may not enjoy the confidence of the electorate throughout their terms of office. Therefore it will not be correct to say that whenever Parliament amends the Constitution, it must be held to have done it as desired by the people.

704. There is a further fallacy in the contention that whenever Constitution is amended, we should presume that the amendment in question was made in order to adapt the Constitution to respond to the growing needs of the people. We have earlier seen that by using the amending power, it is theoretically possible for Parliament to extend its own life indefinitely and also, to amend the Constitution in such a manner as to make it either legally or practically unamendable ever afterwards. A power which is capable of being used against the people themselves cannot be considered as a power exercised on behalf of the people or in their interest.

705. On a careful consideration of the various aspects of the case, we are convinced that the Parliament has no power to abrogate or emasculate the basic elements or fundamentalâ™ features of the Constitution such as the sovereignty of India, the democratic character of our polity, the unity of the country, the essential features of the individual freedoms secured to the citizens. Nor has the Parliament the power to revoke the mandate to build a Welfare State and egalitarian society. These limitations are only illustrative and not exhaustive. Despite these limitations, however, there can be no question that the amending power is a wide power and it reaches every Article and every part of the Constitution. That power can be used to reshape the Constitution to fulfil the obligations imposed on the State. It can also be used to reshape the Constitution within the limits mentioned earlier, to make it an effective instrument for social good. We are unable to agree with the contention that in order to build a Welfare State, it is necessary to destroy some of the human freedoms. That, at any rate is not the perspective of our Constitution.

Our Constitution envisages that the States should without delay make available to all the citizens of this country the real benefits of those freedoms in a democratic

way. Human freedoms are lost gradually and imperceptibly and their destruction is generally followed by authoritarian rule. That is what history has taught us. Struggle between liberty and power is eternal. Vigilance is the price that we like every other democratic society have to pay to safeguard the democratic values enshrined in our Constitution. Even the best of governments are not averse to have more and more power to carry out their plans and programmes which they may sincerely believe to be in public interest. But a freedom once lost is hardly ever regained except by revolution. Every encroachment on freedoms sets a pattern for further encroachments. Our Constitutional plan is to eradicate poverty without destruction of individual freedoms.

706. In the result we uphold the contention of Mr. Palkhivala that the word "amendment" in Article 368 carries with it certain limitation and, further, that the power conferred under Article 368 is subject to certain implied limitations though that power is quite large.

707. Next, we shall take up for consideration the contentions of Mr. Palkhivala regarding the validity of the 24th, 25th and 29th Amendments.

708. It was contended on behalf of the petitioners that in enacting the 24th Amendment Act, the Parliament has exceeded its powers. It has purported to enlarge its limited power of amendment into an unlimited power, by the exercise of which it can damage or destroy the basic elements or fundamental features of the Constitution. It was said that such an exercise is an unlawful usurpation of power. Consequently, the 24th Amendment Act is liable to be struck down. To pronounce on that contention, it is necessary to examine at the very outset whether the 24th Amendment Act has really enlarged the powers of the Parliament. If we come to the conclusion that it has not enlarged the power of the Parliament, as we think it has not, the various contentions of Mr. Palkhivala do not arise for consideration.

709. Now let us see what is the true effect of the Constitution 24th Amendment Act, 1971. That Act amended Article 13 and Article 368. By that Act one more sub-article has been added to Article 13 viz. Sub-article (4) which reads thus: Nothing in this article shall apply to any amendment of this Constitution made under Article 368.

710. Section 3 of that Act which amends Article 368 reads. Article 368 of the Constitution shall be renumbered as Clause (2) thereof, and-

(a) for the marginal heading to that article the following marginal heading shall be substituted, namely:

Power of Parliament to amend the Constitution and procedure therefor".

(b) before Clause (2) as so-renumbered, the following clause shall be inserted, namely:

Notwithstanding anything in the Constitution, Parliament may in exercise of its constituent power amend by way of addition, variation or repeal any provision of this Constitution in accordance with the procedure laid down in this article.

(c) in Clause (2) as so re-numbered, for the words "it shall be presented to the President for his assent and upon such assent being given to the Bill", the words "It shall be presented to the President who shall give his assent to the Bill and thereupon" shall be substituted;

(d) after Clause (2) as so re-numbered, the following clause shall be inserted, namely(3) Nothing in Article 13 shall apply to any amendment made under this Article.

711. The material changes effected under this Act are:

1. Addition of Clause (4) to Article 13 and Clause (3) to Article 368;
2. Change in the marginal heading;
3. Specific mention of the fact that the power is conferred on the Parliament to amend the Constitution;
4. The power conferred on the Parliament is claimed to be a constituent power;
5. That power is described as a power to "amend by way of addition, variation or repeal of any provision of this Constitution" and
6. Making it obligatory for the President to give assent to the Bill amending the Constitution.

712. In our opinion the 24th Amendment has not made any material change in Article

368 as it stood originally. It is true the original Article did not say specifically that th

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power to amend rested with Parliament. On the other hand, while setting out the procedure of amendment, it referred to the functions of the two Houses of Parliament and

the President. Because of the fact that Parliament was not specifically referred to in

Article 368, as it originally stood, the learned Advocate General of Maharashtra wanted

us to spell out that the power conferred under Article 368, as it originally stood was not

conferred on Parliament as such but on the two Houses of Parliament. We have earlier

rejected that contention. We agree with the learned Attorney General that the power in

question had been conferred on Parliament. Article 79 says that "There shall be a

Parliament for the Union, which shall consist of the President and two Houses to be

known respectively as the Council of States and the House of the People".

Whether an

enactment refers to the three components of Parliament separately or whether all

the three

of them are compendiously referred to as Parliament, in law it makes no difference. In

Sankari Prasadâ€™s case, in Sajjan Singhâ€™s case as well as in Golaknathâ€™s case, each one of

the Judges who delivered judgments specifically mentioned that the power to amend the

Constitution was vested in Parliament though there was difference of opinion on the

question whether that power could be traced to Article 368 or Article 248 read with Entry

97 of List I. There is no ground for taking a different view.

713. We have already come to the conclusion that Article 368 as it originally stood

comprehended both power as well as procedure to amend the Constitution. Hence the

change effected in the marginal note has no significance whatsoever. The marginal note

as it stood earlier was in a sense incomplete. The expression â€™constituent powerâ€™ is used to

describe only the nature of the power of amendment. Every amending power, however

large or however small it might be, is a fact of a constituent power. The power, though

described to be â€™constituent powerâ€™, still continues to be an â€™amending powerâ€™. The scope

and ambit of the power is essentially contained in the word â€™amendmentâ€™.

Hence, from the

fact that the new article specifically refers to that power as a constituent power, it cannot

be understood that the contents of the power have undergone any change. The power

conferred under the original Article being a limited power to amend the Constitution, the

constituent power to amend the Constitution referred to in the amended Article must also

be held to carry with it the limitation to which that power was subject earlier. There is

also no significance in the substitution of the expression "amend by way of addition, variation or repeal of any provision of this Constitution" found in the amended Article in the place of the expression "amendment of the Constitution" found in the original Article. Every power to amend a statute must necessarily include within itself some power to make addition, variation or repeal of any provision of the statute. Here again, the power conferred under the original Article being a limited one, that limitation will continue to operate notwithstanding the change in the phraseology. The words "addition, variation or repeal" only prescribe the modes or manner by which an "amendment" may be made, but they do not determine the scope of the power of "amendment". The original Article 368 mentioned that after the bill for amendment of the Constitution is passed by the two Houses of Parliament in the manner prescribed in Article 368 "it shall be presented to the President for his assent and upon such assent being given to the Bill, the Constitution shall stand amended in accordance with the terms of the bill". The amended Article makes a change. It prescribes that when the Bill is presented to the President, he "shall give his assent to the Bill". Some comment was made at the bar about the inappropriateness of commanding the President to give his assent to the Bill. That is a question of propriety. The substance of the matter is that when the Bill is presented to the President, he shall not withhold his assent. This change cannot be said to have damaged or destroyed any basic element of the Constitution. In fact Article 111 which deals with the assent to the Bills specifically prescribes that when a money Bill, after having been passed by the Houses of Parliament is presented to the President he "shall not withhold assent therefrom". Hence it cannot be said that the change made in Article 368 relating to the assent of the President has any great importance in the scheme of our Constitution. In fact under our Constitution the President is only a Constitutional head. Ordinarily he has to act on the advice of the cabinet. There is no possibility of the Constitution being amended in opposition to the wishes of the cabinet.

714. The only change that remains to be considered is as to the exclusion of the application of Article 13 to an amendment of the Constitution. We have earlier come to the conclusion that Article 13 as it stood earlier did not bar the amendment of the Constitution. Article 13(4) and 368(3) make explicit what was implicit.

715. It was contended that by means of the 24th Amendment Parliament intended to and

in fact purported to enlarge its amending power. In this connection reliance was placed on the statement of objects and reasons attached to the Bill which resulted in the 24th Amendment. The power of Parliament does not rest upon its professed intention. It cannot acquire a power which it otherwise did not possess. We are unable to accept the contention that Clause (e) to the proviso to Article 368 confers power on Parliament to enlarge its own power. In our judgment the power to amend the Constitution as well as the ordinary procedure to amend any part of the Constitution was and is contained in the main part of the Article. The proviso merely places further restrictions on the procedure to amend the articles mentioned therein. Clause (e) to the proviso stipulates that Article 368 cannot be amended except in the manner provided in the proviso. In the absence of that clause, Article 368 could have been amended by following the procedure laid down in the main part. At best Clause (e) of the proviso merely indicates that Article 368 itself comes within its own purview. As we have already seen, the main part of Article 368 as it stood earlier, expressly lays down only the procedure to be followed in amending the Constitution. The power to amend is only implied therein.

716. It is difficult to accept the contention that an implied power was impliedly permitted to be enlarged. If that was so, there was no meaning in limiting that power originally. Limitation on the power to amend the Constitution would operate even when Article 368 is amended. A limited power cannot be used to enlarge the same power into an absolute power. We respectfully agree with the observation of Hidayatullah J. (as he then was) in *Golaknath*'s case that what Parliament cannot do directly, it also cannot do indirectly. We have earlier held that the "amendment of this Constitution" means the amendment of every part of the Constitution. It cannot be denied that Article 368 is but a part of the Constitution. Hence, the mere fact that the mover of the 24th Amendment Act, in the Statement of Objects and Reasons laid claim to certain power does not go to show that Parliament either endorsed that claim or could have conferred on itself such a power. It must be deemed to have exercised only such power as it possessed. It is a well-accepted rule of construction that if a provision is reasonably capable of two interpretations the Court must accept that interpretation which makes the provision valid. If the power conferred on Parliament to amend the Constitution under Article 368 as it stood originally is a limited power, as we think it is, Parliament cannot enlarge the scope of that power.

power-see Attorney General for the State of New South Wales v. The Brewery Employees Union of New South Wales; 6, C.L.R. 469 Ex Parte Walsh and Johnson; In Re Yates; 37, C.L.R. 36 at p. 67 and Australian Communist Party v. The Commonwealth 83, C.L.R. p 1.

717. For the reasons mentioned heretofore, the scope of Parliament's power to amend the Constitution or any part thereof must be held to have remained as it was before the 24th

Amendment notwithstanding the alterations made in the phraseology of Article 368. The

24th Amendment made explicit, what was implicit in the unamended Article 368. In this

view of the matter the 24th Amendment must be held to be valid.

718. This takes us to the validity of the Constitution 25th Amendment Act. It is necessary

to examine the scope and effect of that Act for deciding the question whether that Act or

any one of its provisions can be held to be outside the amending power of the Parliament.

That Act has three sections. We are not concerned with the first section which sets out the

short title. Clause (a) of the second section amends Article 31(2). Clause (b) of that

section incorporates into the Constitution Article 31(2B). Section 3 introduces into the

Constitution a new Article viz. Article 31C.

719. Let us first take up the newly substituted Article 31(2) in the place of the old Article

31(2) and examine its scope. To do so, it is necessary to examine the history of that Article.

720. Article 31(2) has undergone several changes. As originally enacted it read thus:

No property, movable or immovable, including any interest in, or in any company owning, any commercial or industrial undertaking, shall be taken possession of or acquired for public purposes under any law authorising the taking of such possession or such acquisition, unless the law provides for compensation for the property taken possession of or acquired and either fixes the amount of the compensation, or specifies the principles on which, and the manner in which, the compensation is to be determined and given."

721. That Article was amended first by the Fourth Amendment Act 1955 and, thereafter

by the Twenty-fifth Amendment Act, 1971. At a later stage, it will be necessary for us to

compare Article 31(2) as it stood after the Fourth Amendment Act and as it stands after

the Twenty-fifth Amendment Act. Hence we shall quote them side by side.

Article 31(2) as substituted by Article 3(2) as substituted by the 4th Amendment Act 1955 the 25th Amendment Act 1971 No property shall be

compulsorily No property shall be compulsorily acquired or

requisitioned save for acquired or requisitioned save for a public purpose and save by a public purpose and save by authority of a law

which provides for authority of a law which provides compensation for the property so for acquisition or requisitioning acquired or

requisitioned and either of the property for an amount fixes the amount

of the compensation which may be fixed by such law or specifies the principles on or which may be determined in which and the manner in which, accordance with such principles the compensation is to be determined and given in such manner as may be fixed and given; and no such law be specified in such law; and shall be called in question in any no such law shall be called court on the ground that the in question in any court on the compensation provided by that law is ground that the amount so fixed not adequate. or determined is not adequate or that the whole or any part of such amount is to be given otherwise than in cash: Provided that in making any law providing for the compulsory acquisition of any property of an educational institution established and administered by a minority, referred to Clause (1) of Article 30, the State shall ensure that the amount fixed by or determined under such law for the acquisition of such property is such as would not restrict or abrogate the right guaranteed under that clause.

722. For finding out the true scope of Article 31(2), as it stands now, the learned

Advocate General of Maharashtra as well as the Solicitor General has taken us through the history of this Article. According to them the Article as it stands now truly represents the intention of the Constitution makers. In support of that contention, we were asked to go through the Constituent Assembly debates relating to that article. In particular, we were invited to go through the speeches made by Pandit Nehru, Sir Alladi Krishnaswami Ayyar, Dr. Munshi and Dr. Ambedkar. In our opinion, it is impermissible for us to do so. It is a well settled rule of construction that speeches made by members of a legislature in

the course of debates relating to the enactment of a statute cannot be used as aids for interpreting any of the provisions of the statute. The same rule is applicable when we are called upon to interpret the provisions of a Constitution. This Court ruled in State of

Travancore Cochin and Ors. v. Bombay Co. Ltd. [1952] S.C.R. 113 that speeches made

by the members of the Constituent Assembly in the course of the debates on the draft

Constitution cannot be used as aid for interpreting the Constitution. In the course of his

judgment Patanjali Sastri C.J. speaking for the Constitution Bench observed at p. 1121 of

the Report:

It remains only to point out that the use made by the learned Judges below of the speeches made by the members of the Constituent Assembly in the course of the debates on the draft Constitution is unwarranted. That this form of extrinsic aid to the interpretation of statutes is not admissible has been generally accepted in England, and the same rule has been observed in the construction of Indian Statutes-see Administrator-General of Bengal v. Prem Nath Mallick [(1895 22 I.A. 107, 118)]. The reason behind the rule was explained by one of us in *Gapalanâ*™s case [1950] S.C.R. 88, at 144 thus:

A speech made in the course of the debate on a bill could at best be indicative of the subjective intent of the speaker, but it could not reflect the inarticulate mental process lying behind the majority vote which carried the Bill. Nor is it reasonable to assume that the minds of all those legislators were in accord", or as it is more tersely put in a American case Those who did not speak may not have agreed with those who did; and those who spoke might differ from each other-United States v. Trans-Missouri Freight Association 169 U.S. 290, 318.

723. No decision of this Court dissenting from the view taken in the above case was

brought to our notice. But it was urged that this Court had ignored the rule laid down in

Bombay Co.â™s case (supra) in *Golaknathâ*™s case as well as in what is popularly known as

the Privy Purse (1971) 3, S.C.R. 9 case. We do not think that this statement is accurate. In

Golaknathâ™s case, Subba Rao C.J. referred to certain portions of speeches made by Pandit

Nehru and Dr. Ambedkar. But he made it clear at p. 792 of the Report, the specific

purpose for which he was referring to those speeches. This is what he stated:

We have referred to the speeches of Pandit Jawaharlal Nehru and Dr.

Ambedkar not with a view to interpret the provisions of Article 368 which we propose to do on its own terms, but only to notice the transcendental character given to the fundamental rights by two of the important architects of the Constitution.

724. Bachawat J. in the course of his judgment also referred to some of the speeches

made during the debates on Article 368. But before doing so this is what he observed at

p. 922 of the report:

Before concluding this judgment I must refer to some of the speeches

made by the members of the Constituent Assembly in the course of debates on the draft Constitution. These speeches cannot be used as aids for interpreting the Constitution-see *State of Travancore Cochin and Ors. v. The Bombay Co. Ltd.* Accordingly I do not rely on them as aids to construction. But I propose to refer to them, as Shri A.K. Sen relied heavily on the speeches of Dr. B.R. Ambedkar. According to him, the speeches of Dr. Ambedkar show that he did not regard the fundamental rights as amendable. This contention is not supported by the speeches.

725. From these observations, it is clear that the learned judges were not referring to the speeches as aids for interpreting any of the provisions of the Constitution.

726. Now, let us turn to this Court's Judgment in the Privy Purse case. Shah J. (as he then

was) in the course of his judgment (at p. 83 of the report) quoted a portion of the speech

of the Home Minister Sardar Patel not for the purpose of interpreting any provision of the

Constitution but for showing the circumstances which necessitated the giving of certain

guarantees to the former ruler. That speech succinctly sets out why certain guarantees had

to be given to the rulers. Hence it is not correct to say that Shah J. speaking for himself

and six other Judges had used the speech of Sardar Patel in aid of the construction of any

of the articles of the Constitution It is true Mitter J. in his dissenting judgment (at p. 1

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of the report) used the speech of Shri T.T. Krishnamachari in aid of the construction of

Article 363 but the learned judge nowhere in his judgment discussed the question

whether the speeches made by the members of the Constituent Assembly were admissible

in aid of interpreting any provision of the Constitution.

727. Before concluding the discussion on this topic, it is necessary to refer to one more

decision of this Court i.e. *Union of India v. H.S. Dhillon*. [1972] 2 S.C.R. 33

In that case

this Court was called upon to decide whether the provision in the Wealth Tax Act, 1957

providing for the levy of tax on the capital value of agricultural property were Constitutionally sustainable. By a majority of four against three, this Court upheld the

levy. Sikri C.J. who spoke for himself and two other judges after sustaining the validity

of the provision on an examination of the relevant provisions of the Constitution as well

as the decided cases referred to some of the speeches made during the debates in the

Constituent Assembly in support of the conclusion already reached by him. Before referring to those speeches this is what the learned judge observed at p. 58:

We are, however, glad to find from the following extracts from the debates

that our interpretation accords with what was intended.

728. From this it is clear that the learned Judge did not seek any aid from the speeches for

the purpose of interpreting the relevant provision. It is necessary to note that the learned

judge did not dissent from the view earlier taken by the Court in *Bombay Co. Ltd.*'s case

(*supra*). Hence the law as laid down in *Bombay Co.*'s case is binding on us and its

correctness was not challenged before us.

729. The learned Advocate General of Maharashtra is right in his contention that for

finding out the true scope of Article 31(2), as it stands at present, it is necessary for us

to

find out the mischief that was intended to be remedied by the present amendment. In

other words, we must find out what was the objective intended to be achieved by that

amendment. The original Article 31(2) first came up for consideration by this Court in

State of West Bengal v. Mrs. Bela Bannerjee and Ors., [1954] S.C.R. 558 wherein Patanjali Sastri C.J. speaking for the Court observed:

While it is true that the legislature is given the discretionary power of laying down the principle which should govern the determination of the amount to be given to the owner for the property appropriated, such principles must ensure that what is determined as payable must be compensation, that is, a just equivalent of what the owner has been deprived of. Within the limits of this basic requirement of full

indemnification of the expropriated owner, the Constitution allows free play to the legislative judgment as to what principles should guide the

determination of the amount payable. Whether such principles take into account all the elements which make up the true value of the property appropriated and exclude matters which are to be neglected is a justiciable issue to be adjudicated by the Court. This, indeed, was not disputed.

730. We are told that Article 31(2) came to be amended by means of the 4th Amendment

Act in view of the decision of this Court in Mrs. Bela Banerjee's case. The scope of the

article as amended by the 4th Amendment Act was considered by this Court in P. Vairayelu Mudaliar v. Special Deputy Collector, Madras and Anr. [1965] 1 S.C.R. 614.

Therein Subba Rao J. (as he then was) speaking for a bench consisting of himself,

Wanchoo, Hidayatullah, Raghubar Dayal and Sikri JJ. observed (at p. 626):

The fact that Parliament used the same expressions namely

"compensation" and "Principles" as were found in Article 31 before the Amendment is a clear indication that it accepted the meaning given by this Court to those expressions in Mrs. Bela Banerjee's case. It follows that a Legislature in making a law of acquisition or requisition shall provide for a just equivalent of what the owner has been deprived of or specify the principles for the purpose of ascertaining the "just equivalent" of what the owner has been deprived of. If Parliament intended to enable a Legislature to make such a law without providing for compensation so defined, it would have used other expressions like "price", "consideration" etc.

731. Proceeding further the learned judge observed:

The real difficulty is, what is the effect of ouster of jurisdiction of the court to question the law on the ground that the "compensation" provided by the law is not adequate ? It will be noticed that the law of acquisition or requisition is not wholly immune from scrutiny by the Court. But what is excluded from the court's jurisdiction is that the said law cannot be questioned on the ground that the compensation provided by that law is

not adequate. It will further be noticed that the clause excluding the jurisdiction of the Court also used the word "compensation" indicating thereby that what is excluded from the court's jurisdiction is the adequacy of the compensation fixed by the legislature. The argument that the word "compensation" means a just equivalent for the property acquired and, therefore, the court can ascertain whether it is a "just equivalent" or not makes the amendment of the Constitution nugatory. It will be arguing in a circle. Therefore, a more reasonable interpretation is that neither the principles prescribing the "just equivalent" nor the "just equivalent" can be questioned by the court on the ground of the inadequacy of the compensation fixed or arrived at by the working of the principles. To illustrate; a law is made to acquire a house, its value at the time of acquisition has to be fixed; there are many modes of valuation namely estimate by the engineer, value reflected by comparable sales, capitalisation of rent and similar others. The application of different principles may lead to different results. The adoption of one principle may give a higher value and the adoption of another principle may give a lesser value. But nonetheless they are principles on which and the manner in which compensation is determined. The court cannot obviously say that the law should have adopted one principle and not the other, for it relates only to the question of adequacy. On the other hand, if a law lays down principles which are not relevant to the property acquired or to the value of the property at or about the time it is acquired, it may be said that they are not principles contemplated by Article 31(2) of the Constitution.... In such cases the validity of the principles can be scrutinized. The law may also prescribe a compensation which is illusory it may provide for the acquisition of a property worth lakhs of rupees for a paltry sum of Rs. 100. The question in that context does not relate to the adequacy of the compensation for it is no compensation at all. The illustrations given by us are not exhaustive. There may be many others falling on either side of the line. But this much is clear. If the compensation is illusory or if the principles prescribed are irrelevant to the value of the property at or about the time of its acquisition, it can be said that the legislature committed a fraud on power, and therefore, the law is bad. It is a use of the protection of Article 31 in a manner which the Article hardly intended. (emphasis supplied)

733. The principles that emerge from the decision in *Vajravelu's* case are: (1) compensation means just equivalent of the value of the property acquired; (2) principles prescribed must be principles which provide for compensation; (3) adequacy of compensation fixed or to be determined on the basis of the principles set out cannot be gone into by the court; (4) the principles fixed must be relevant to the property acquired or to the value of the property at about the time it is acquired; (5) the compensation fixed should not be illusory and (6) courts have power to strike down a law on the ground of fraud on power if the principles fixed are irrelevant or if the compensation granted is illusory.

734. The next decision cited to us is the decision of this Court in *Union of India v. Metal Corporation of India Ltd. and Anr.* (1967) 1, S.C.R. p. 255. It is a decision of a Division Bench consisting of Subba Rao C.J. and Shelat J. As that decision was overruled by this Court in *State of Gujarat v. Shantilal Mangaldas and Ors.* (1969) 3, S.C.R. 341

it is not necessary to refer to its ratio. 735. This takes us to the decision of this Court in Shantilalâ€™s case. This case related to the acquisition of some landed property on behalf of the Borough Municipality of Ahmedabad for making town planning scheme under the Bombay Town Planning Act, 1955. Sections 53 and 57 of that Act fixed certain principles for the determination of compensation for the land acquired. The High Court of Gujarat declared that those provisions were ultra vires in so far as they authorised the local authority to acquire land under a Town Planning Scheme and as a corollary to that view declared invalid the City Wall Improvement Town Planning Scheme No. 5 framed in exercise of the powers conferred under the Act. In doing so they purported to follow the decision of this Court in Vajravelu Mudaliarâ€™s case. A Constitution Bench of this Court reversed the decision of the Gujarat High Court. In that case Shah J. speaking for the Court elaborately reviewed the earlier decisions of this Court bearing on Article 31(2). After doing so, he observed at

p. 365 of the report:

Reverting to the amendment made in Clause (2) of Article 31 by the Constitution (Fourth Amendment) Act, 1955, it is clear that adequacy of compensation fixed by the Legislature or awarded according to the principles specified by the Legislature for determination is not justiciable. It clearly follows from the terms of Article 31(2) as amended that the amount of compensation payable if fixed by the Legislature, is not justiciable, because the challenge in such a case, apart from a plea of abuse of legislative power, would be only a challenge to the adequacy of compensation. If compensation fixed by the Legislature-and by the use of the expression "compensation" we mean what the legislature justly regards as proper and fair recompense for compulsory expropriation of property and not something which by abuse of legislative power though called compensation is not a recompense at all or is something illusory-is not justiciable, on the plea that it is not a just equivalent of the property compulsorily acquired is it open to the courts to enter upon an enquiry whether the principles which are specified by the Legislature for determining compensation do not award to the expropriated owner a just equivalent ? In our view, such an enquiry is not open to the Court under the statutes enacted after the amendments made in the Constitution by the Constitution (Fourth Amendment) Act. If the quantum of compensation fixed by the Legislature is not liable to be canvassed before the Court on the ground that it is not a just equivalent, the principles specified for determination of compensation will also not be open to challenge on the plea that the compensation determined by the application of those principles is not a just equivalent. The right declared by the Constitution guarantees that compensation shall be given before a person is compulsorily expropriated of his property for a public purpose. What is fixed as compensation by statute, or by the application of principles specified for determination of compensation is guaranteed; it does not mean however that something fixed or determined by the application of specified principles which is illusory or can in no sense be regarded as compensation must be upheld by the Courts, for, to do so, would be to grant a charter of arbitrariness and permit a device to defeat the Constitutional guarantee. But compensation fixed or determined on principles specified by the Legislature cannot be permitted to be challenged on the somewhat indefinite plea that it is not a just or fair equivalent. Principles may be challenged on the ground that they are irrelevant to the determination of compensation, but not on the plea that what is awarded as a result of the application of those principles is not just or fair compensation. A challenge to a statute that the principles specified by it do not award a just equivalent will be in clear violation of the Constitutional declaration that inadequacy of compensation provided is not justiciable.

(emphasis supplied)

736. The Advocate General of Maharashtra contended that if only this decision had not been indirectly overruled by the Bank Nationalisation case *R.C. Cooper v. Union of India*

[1970] 3 S.C.R. 530 there would have been no occasion to further amend Article 31(2).

That being so, it is necessary to find out clearly as to what are the principles enunciated in

this decision. This decision firmly laid down that any arbitrary fixation of recompense is liable to be struck down by the court as an abuse of legislative power. It further laid down

that the principles laid down may be challenged on the ground that they are not relevant for the purpose of determining the recompense payable to the owner of the property acquired. If the recompense fixed or determined is either not arbitrary or illusory or if the principles fixed are relevant to the purpose of acquisition or requisition of the property in question, the courts cannot go into the question of adequacy of the payment. 737. Then came the Bank Nationalisation case. The majority judgment in that case was delivered by Shah J. (as he then was). In that judgment he referred somewhat extensively to the decision in Shantilal Mangaldas's case and other cases rendered by this Court. He did not purport to deviate from the rule laid down in Shantilal's case. The ratio of that

decision relating to Article 31(2) is found at p. 598 of the report. The learned judge observed:

Both the lines of thought (in Vajravelu's case and Shantilal's case) which converge in the ultimate result, support the view that the principle specified by the law for determination of compensation is beyond the pale of challenge, if it is relevant to the determination of compensation and is a recognised principle applicable in the determination of compensation for property compulsorily acquired and the principle is appropriate in determining the value of the class of property sought to be acquired. On the application of the view expressed in P. Vajravelu Mudaliar's case or in Shantilal Mangaldas's case, the Act in our judgment is liable to be struck down as it fails to provide to the expropriated banks compensation determined according to relevant principles.

738. Proceeding further the learned judge observed at p. 599:

We are unable to hold that a principle specified by the Parliament for determining compensation of the property to be acquired is conclusive. If that view be expressed, the Parliament will be invested with a charter of arbitrariness and by abuse of legislative process, the Constitutional guarantee of the right to compensation may be severely impaired. The principle specified must be appropriate to the determination of compensation for the particular class of property sought to be acquired. If several principles are appropriate and one is selected for determination of the value of the property to be acquired, selection of that principle to the exclusion of other principles is not open to the challenge for the selection must be left to the wisdom of the Parliament.

739. It is clear from the passages we have quoted above that this case also emphasised

that the power of the Parliament to fix the compensation for the property acquired is not

an arbitrary power. Further, the principles prescribed for determining the compensation

must be relevant to the subject matter of acquisition or requisition. That decision also laid

down

that both the questions whether the compensation has been fixed arbitrarily or

whether the principles laid down are irrelevant are open to judicial review.

740. Let us now examine Article 31(2) as it stands now in the light of the decisions

already referred to. The only material changes made in that Article under the 25th

Amendment Act are:

(1) in place of the word "compensation", the word "amount" has been used and

(2) an additional clause viz. "or that the whole or any part of such amount is to be given otherwise than in cash" has been added.

741. We are not concerned in this case as to the effect of the additional clause. No

arguments were advanced on that aspect. All that we are concerned with is as to what is

the effect of the substitution of the word "amount" in place of the word "compensation".

As seen earlier, the word "compensation" has been interpreted in the various decisions

referred to earlier as "just equivalent" of the value of the property taken. That concept has

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now been removed. In other respects, the Article has not been altered. It remains what it was. We have earlier noticed that the decisions of this Court have firmly laid down that while examining the validity of law made under Article 31(2) as it stood after it was amended under the 4th Amendment Act, it was open to the Court to go into the questions whether the compensation had been fixed arbitrarily and whether the same was illusory. Those decisions further ruled that the Court can go into the relevant of the principles fixed. Parliament would have undoubtedly known the ratio of those decisions. That is also the legal presumption. Hence if the Parliament intended to take away the judicial review in any respect other than relating to the adequacy of the amount fixed, it would have expressed its intention by appropriate words. We find no such words in the Article as it stands. Therefore, it is reasonable to assume that it has accepted the interpretation placed by this Court in all respects except as regards the concept of compensation. That this is the mischief which the 25th Amendment seeks to remedy by amending Article 31(2) is also clear from the language of the amended Article itself. It says that the law shall not be called in question on the ground that the amount fixed or determined is not adequate. What is an adequate amount ? An amount can be said to be adequate only when the owner of the property is fully compensated, that is when he is paid an amount which is equivalent in value to the property acquired or requisitioned. And that is also what is connoted by the concept of "compensation" as interpreted by this Court. Therefore, stated briefly, what the 25th Amendment makes non-justiciable is an enquiry into the question

whether the amount fixed or determined is an equivalent value of or
â™compensationâ™ for
the property acquired or requisitioned.

742. The word "amount" is a neutral word. Standing by itself, it has no norm and is

completely colourless. The dictionary meaning of the word appropriate to the
present

context is "sum total or a figure". We have to find out its connotation from the
context. In

so doing, we have to bear in mind the fact that Article 31(2) still continues to
be a

fundamental right. It is not possible to accept the contention of the learned
Advocate

General of Maharashtra and the learned Solicitor General that the right of the
owner at

present is just to get whatever the Government pleases to give, whenever it
pleases to

give and however it pleases to give. A position so nebulous as that cannot be
considered

as a right much less a fundamental right, which Article 31(2) still claims to
be.

743. It is difficult to believe that Parliament intended to make a mockery of
the

fundamental right conferred under Article 31(2). It cannot be that the
Constitution while

purporting to preserve the fundamental right of the citizens to get an "amount"
in lieu of

the property taken for public purpose has in fact robbed him of all his right.

744. Undoubtedly Article 31 empowers the legislature to acquire or requisition
the

property of a citizen for an "amount". What does the word "amount" mean in that
Article

? As we have already said, that word by itself does not disclose any norm. But
then the

word "amount" is followed by the words "which may be fixed by such law or which
may

be determined in accordance with such principles and given in such manner as may
be

specified in such law and no such law shall be called in question in any court
on the

ground that the amount so fixed or determined is not adequate.

745. If the expression "amount" has no norm and is just what the Parliament
stipulates,

there can be no question of prescribing principles for determining that
"amount"; nor is

there any scope for finding out its adequacy. The legislatures are permitted
under the

amended Article 31(2) either to fix the "amount" to be paid in lieu of the
property

acquired or to lay down the principles for determining that "amount". These two
alternative methods must bring about nearly the same result. If the relevancy of

the
principles fixed can be judicially reviewed-as indeed they must be-in view of

the
decisions referred to earlier, we fail to see how the fixation of the "amount"

which is the
alternative method of determining the recompense to be paid in lieu of the

property taken

is excluded from judicial review.

746. The word "fixed" in Article 31(2) connotes or postulates that there must be some

standard or principle by the application of which the legislature calculates or ascertains

definitely the amount. In Bouviarâ™s Law Dictionary (1946) at p. 421, the word â™fixâ™ is

defined thus: "To determine; to settle. A Constitutional provision to the effect that the

General Assembly shall fix the compensation of officers means that it shall prescribe or

â™fixâ™ the rule by which such compensation is to be determined". (See also Fraser Henlein

Pvy. Ltd. v. Cody (1945) 70, C.L.R. 100 at 128 cited in Saunders, Words and Phrases:

Legally Defined Vol. 2, p. 258 (1969). This being the meaning of the word

â™fixâ™ it would

be necessary for the legislature to lay down in the law itself or otherwise indicate the

principles on the basis of which it fixes the amount for the acquisition or requisitioning o

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the property. If this construction is placed on the first mode of determining the amount,

then there would be no difference between this method, and the other method whereby

the legislature lays down the principles and leaves it for any other authority to determine

the amount in accordance with such principles. Whether the legislature adopts one or the

other method, the requirement of Article 31(2) would be the same, namely, there must be

principles on the basis of which the amount is determined. Such an amount may be determined either by the legislature or by some other authority authorised by the

legislature. The content of the right in Article 31(2) is not dependent upon whether the

legislature chooses one or the other method of determining the amount. There is no

contradiction between these two methods. It is true that in both cases, the judicial review

is necessarily limited because it cannot extend to the examination of the adequacy of the

amount fixed or to be determined. It was conceded on behalf of the contesting respondents that the court can go into the question whether the "amount" fixed is illusory.

This very concession shows the untenability of the contention advanced on behalf of the

Union. For determining whether the "amount" fixed is illusory or not, one has first to

determine the value of the property because without knowing the true value of the

property, no court can say that the "amount" fixed is illusory. Further, when Article 31(2)

says that it is not open to the court to examine whether the "amount" fixed or determined

is adequate or not, it necessarily means that the "amount" payable has to be determined

on the basis or principles relevant for determining the value of the property acquired or

requisitioned. There can be no question of adequacy unless the "amount" payable has

been determined on the basis of certain norms and not arbitrarily, without having regard to the value of the property.

748. Further, Article 31(2) provides for fixing or determining the amount for the acquisition or requisitioning of the property. The State action is still described as "acquisition or requisition" and not "confiscation". Therefore, the principles for fixing or determining the amount must be relevant to the "acquisition or requisition", and not to "confiscation". The amount fixed or determined should not make it appear that the measure is one of confiscation. The principles for fixing or determining the amount may be said to be relevant to the acquisition or requisition when they bear reasonable relationship to the value of the property acquired or requisitioned.

749. Further there is practical difficulty in accepting the contention that the word

"amount" in the context in which it is used, has no norm. The amount has to be fixed by the legislatures which means by the members of the legislatures. When a law for acquisition of certain types of property is enacted, it is not as if the members of the legislature-each and every one of them who participates in the making of the law would first go and inspect the property to be acquired and then assess the value of that property.

In the very nature of things, the "amount" payable has to be determined on the basis of

certain principles. If that be so, as it appears to us to be obvious, then the legislators must

have some principles before them to determine the amount. In this connection the Advocate-General of Maharashtra tried to give an explanation, which appears to us to be

unsatisfactory and unacceptable. His contention was that our democracy is worked on the

basis of party system. The ruling party has the majority of the members of the legislature

behind it. Therefore, the members of the opposition party need not know the basis of

fixation of the value of the property acquired. Even the members of the ruling party need

not be told about the basis on which the value is fixed. The option before them is either to

accept the amount fixed by the cabinet or by the Minister concerned or to reject the

proposal and face the consequences. If this is the true position, it is, in our opinion, a

negation of parliamentary democracy. Our democracy like all true parliamentary democracies is based on the principles of debate and discussion. As far as possible,

decisions in the legislatures are arrived at on the basis of consensus. Our Constitution

does not provide for one party rule where there is no room for opposition. Opposition

parties have an important role to play under our Constitution. Members belonging to the opposition parties have as much right to participate in making laws as the members belonging to the ruling party. Further the learned Advocate General is not correct in his assumption that the function of the members belonging to the ruling party is to blindly support a measure sponsored by the executive. They also have a right, nay, a duty to mould every measure by debate and discussion. If the question of fixation of "amount" under Article 31(2) is considered as the exclusive function of the executive, then, not only the judicial review will be taken away, even the legislature will not have the opportunity of examining the correctness or appropriateness of the "amount" fixed. A power so arbitrary as that can speedily degenerate into an instrument of oppression and is likely to be used for collateral purposes. Our Constitution has created checks and balances to minimise the possibility of power being misused. We have no doubt that the theory propounded by the Advocate General of Maharashtra will be repudiated by our legislatures and the cabinets as something wholly foreign to our Constitution. 750. If we bear in mind the fact that the "amount" in question is to be paid in lieu of the property taken, then, it follows that it must have a reasonable relationship with the value of the property taken. It may not be the market value of the property taken. The market value of a property is the result of an inter-action of various forces. It may not have any reasonable relationship with the investment made by its successive owners. The price of the property acquired might have shot up because of various contributions made by the society such as improvements effected by the State in the locality in question or the conversion of a rural area into an urban area. It is undoubtedly open to the State to appropriate to itself that part of the market value of a property which is not the result of any contribution made by its owners. There may be several other relevant grounds for fixing a particular "amount" in a given case or for adopting one or more of the relevant principles for the determination of the price to be paid. In all these matters the legislative judgment is entitled to great weight. It will be for the aggrieved party to clearly satisfy the Court that the basis adopted by the legislature has no reasonable relationship to the

value of the property acquired or that the "amount" to be paid has been arbitrarily fixed or that the same is an illusory return for the property taken. So long as the basis adopted for computing the value of the property is relevant to the acquisition in question or the amount fixed can be justified on any such basis, it is no more open to the court to consider whether the amount fixed or to be determined is adequate. But it is still open to the court to consider whether "amount" in question has been arbitrarily determined or whether the same is an illusory return for the property taken. It is also open to the court to consider whether the principles laid down for the determination of the amount are irrelevant for the acquisition or requisition in question. To put it differently, the judicial review under the amended Article 31(2) lies within narrow limits. The court cannot go into the question whether what is paid or is payable is compensation. It can only go into the question whether the "amount" in question was arbitrarily fixed as illusory or whether the principles laid down for the purpose of determining the "amount" payable have reasonable relationship with the value of the property acquired or requisitioned.

751. If the amended Article 31(2) is understood in the manner as laid down above, the right to property cannot be said to have been damaged or destroyed. The amended Article 31(2) according to us fully protects the interests of the individual as well as that of the society. Hence its validity is not open to challenge.

752. Now, let us turn to Article 31(2B). It says that "Nothing in Sub-clause (f) of Clause (1) of Article 19 shall affect any such law as is referred to in Clause (2)". This provision has no real impact on the right conferred under Article 31(2). Article 31(2) empowers the State to compulsorily acquire or requisition property for public purpose. When property is acquired or requisitioned for public purpose, the right of the owner of that property to hold or dispose of that property is necessarily lost. Hence there is no anti-thesis between Article 19(1)(f) and Article 31(2). That being so, the only assistance that the owner of the property acquired or requisitioned would have obtained from Article 19(1)(f) read with Sub-article (5) of that Article would be the right to insist that the law made under Article 31(2) as it stood before its recent amendment, should have to conform to some reasonable procedure both in the matter of dispossessing him as well as in the matter of

determining

the "amount" payable to him. In a way, those rights are protected by the principles of natural justice.

753. For the reasons mentioned above, we are unable to accept the contention urged on behalf of the petitioners that Section 2 of the 25th Amendment Act, 1971 is invalid.

754. This takes us to Section 3 of the 25th Amendment Act which now stands as Article

31C of the Constitution. This Article empowers the Parliament as well as the Local

Legislatures to enact laws giving effect to, the policy of the State towards securing the

principles specified in Clause (b) or Clause (c) of Article 39, completely ignoring in the

process, Articles 14, 19 and 31. Further it lays down that if the law in question contains a

declaration that it is for giving effect to such policy, that law shall not be called in

question in any court on the ground that it does not give effect to such policy. The

proviso to that Article prescribes that where such law is made by the legislature of a

State, the provisions of Article 31C shall not apply thereto unless such law, having been

reserved for the consideration of the President has received his assent. This Article has

two parts. The first part says that laws enacted by Parliament as well as by the Local

Legislatures for giving effect to the policy of the State towards securing the principles

specified in Clause (b) or Clause (c) of Article 39 shall not be deemed to be void on the

ground that it is inconsistent with or takes away or abridges any of the rights conferred by

Articles 14, 19 and 31 notwithstanding anything contained in Article 13 and the second

part provides that no law containing a declaration that is for giving effect to such policy

shall be called in question in any court on the ground that it does not give effect to such

policy. Clauses (b) and (c) of Article 39 do not prescribe any subject matter of legislation

. They contain certain objectives to be achieved. The methods to be adopted to achieve

those objectives may be numerous. Those clauses cover a very large field of social and

economic activities of the Union and the States. Clause (b) of Article 39 says that the

State shall direct its policy towards securing that the ownership and control of the

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material resources of the community are so distributed as best to subserve the common good and Clause (c) of that Article says that the State shall direct its policy towards securing that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment. These two provisions lay down a particular political philosophy. They in conjunction with some other provisions of

the Constitution direct the State to build a Welfare State.

755. No one can deny the importance of the Directive Principles. The Fundamental Rights and the Directive Principles constitute the "conscience" of our Constitution. The

purpose of the Fundamental Rights is to create an egalitarian society, to free all citizens

from coercion or restriction by society and to make liberty available for all.

The purpose

of the Directive Principles is to fix certain social and economic goals for immediate

attainment by bringing about a non-violent social revolution. Through such a social

revolution the Constitution seeks to fulfil the basic needs of the common man and to

change the structure of our society. It aims at making the Indian masses free in the

positive sense.

756. Part IV of the Constitution is designed to bring about the social and economic

revolution that remained to be fulfilled after independence. The aim of the Constitution is

not to guarantee certain liberties to only a few of the citizens but for all.

The Constitution

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visualizes our society as a whole and contemplates that every member of the society

should participate in the freedoms guaranteed. To ignore Part IV is to ignore the

substance provided for in the Constitution, the hopes held out to the Nation and the very

ideals on which our Constitution is built. Without faithfully implementing the Directive

Principles, it is not possible to achieve the Welfare State contemplated by the Constitution. A society like ours steeped in poverty and ignorance satisfying the

minimum economic needs of every citizen of this country. Any Government which fails

to fulfil the pledge taken under the Constitution cannot be said to have been faithful to the

Constitution

and to its commitments.

757. Equally, the danger to democracy by an over emphasis on duty cannot be minimised. Kurt Reizler, a German Scholar, from his experience of the tragedy of the

Nazi Germany warned:

If...these duties of man should be duties towards the "public welfare" of the "society" and the State, and rights are made conditional on the fulfilment of these duties, the duties will uproot the rights. The rights will wither away...(the) State can use the allegedly unfulfilled duties to shove

aside rights.-Any Bill of Rights that makes the rights conditional on duties towards society or the State, however strong its emphasis on human dignity, freedom, God or whatever else, can be accepted by any totalitarian leader. He will enforce the duties while disregarding the right. 758. Indeed the balancing process between the individual rights and the social needs is a

delicate one. This is primarily the responsibility of the "State" and in the ultimate analysis

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of the courts as interpreters of the Constitution and the laws.

759. Our founding fathers were satisfied that there is no anti-thesis between the

Fundamental Rights and the Directive Principles. One supplements the other. The Directives lay down the end to be achieved and Part III prescribes the means through

which the goal is to be reached. Our Constitution does not subscribe to the theory that

end justifies the means adopted. The Counsel for the petitioners urged that the Fundamental Rights are not the cause of our failure to implement the Directive Principles. According to him, it is not the Constitution that has failed as; but we have

failed to rise up to its expectations. He urged that the attack against Fundamental Rights

is merely an alibi and an attempt to find a scape-goat on the part of those who were

unable or willing to implement the Directives. These allegations are â™denied on behalf of

the Union and the States. It was urged on their behalf that interpretations placed by the

courts on some of the Articles in Part III of the Constitution have placed impediments in

the way of States, in implementing the Directives. These controversies are not capable of

being decided by courts.

760. There is no doubt that the power conferred under Article 31C, if interpreted in the

manner contended on behalf of the Union and the States would result in denuding substantially the contents of the right to equality, the right to the seven freedoms

guaranteed under Article 19 and the right to get some reasonable return by the person

whose property is taken for public purpose. Unlike Article 31A, Article 31C is not

confined to some particular subjects. It can take in a very wide area of human activities.

The power conferred under it, is an arbitrary power. It is capable of being used for

collateral purposes. It can be used to stifle the freedom of speech, freedom to assemble peaceably, freedom to move freely throughout India, freedom to reside and settle in any part of India, freedom to acquire, hold and dispose of property and freedom to practise any profession or carry on any occupation, trade or business. The power conferred under that provision is a blanket power. Even a small majority in a legislature can use that power to truncate or even destroy democracy. That power can be used to weaken the unity and integrity of this country. That Article is wholly out of tune with our Constitution. Its implications are manifold. There is force in the contention of the petitioners that this Article has the potentiality of shaking the very foundation of our Constitution.

761. What is the nature of the power conferred under Article 31C ? It is claimed to have empowered Parliament and the State Legislatures to enact laws pro tanto abrogating Articles 14, 19 and 31. A power to take away directly or indirectly a right guaranteed or a duty imposed under a Constitution, by an ordinary law, is a power to pro tanto abrogate the Constitution. If the legislature is empowered to amend the Constitution by ordinary legislative procedure, any law enacted by it, even if it does not purport to amend the Constitution, but all the same, is inconsistent with one or more of the provisions of the Constitution has the effect of abrogating the Constitution to the extent of inconsistency. That position is clear from the judgment of the Judicial Committee in *McCawley v. The King* [1920] A.C. 691. In other words, the power conferred under the Article is a power to amend the Constitution in certain essential respects while enacting legislations coming within the purview of that Article. It is a power not merely to abridge but even to take away the rights guaranteed under Articles 14, 19 and 31 by ordinary law. Further that power is conferred not only on the Parliament but also on the State Legislatures.

762. Article 368 specifically provides that amendment of the Constitution can be done only in the manner provided therein. It is true that there are provisions in the Constitution under which the Parliament can amend some parts of the Constitution by ordinary law see Article 2 to 4, Article 169, Paragraph 7 of Schedule V and Paragraph 21 of Schedule VI. But these provisions clearly provide that the laws enacted under those provisions "are not to be deemed as amendments to the Constitution for the purpose of Article 368".

There are also some transitional provisions in the Constitution which can be changed by the Parliament by law. Leaving aside for separate consideration Article 31-A, which was first introduced by the 1st Amendment Act, 1951, there is no provision in the Constitution apart from Article 31(4) which permitted the State Legislatures to enact laws contravening one or more of the provisions in Part III. Article 31(4) relates to legislation

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pending before the State Legislatures at the time the Constitution came into force. Their scope was known to the Constitution-makers. That provision was enacted to protect certain Zamindari Abolition laws which were on the anvil. But it must be remembered that the original provisions in the Constitution were not controlled by Article 368. That Article is as much a creature of the Constitution as the other Articles are. The form and manner prescribed in Article 368 did not govern the procedure of the Constituent Assembly. The mandates contained in Article 368 are applicable only to the amendments made to the Constitution. The power to amend the Constitution was exclusively given to the Parliament and to no other body. The manner of exercising that power is clearly prescribed. Article 31C gives a very large power to the State Legislatures as well as to Parliament to pro tanto amend the Constitution by enacting laws coming within its ambit. To put it differently, Article 31C permits the State Legislatures and the Parliament to enact Constitution-breaking laws by a simple majority vote of the members present and voting, if the rule regarding quorum is satisfied.

763. It cannot be said that Article 31C is similar to Articles 4, 169, Paragraph 7 of Schedule V and Paragraph 21 of Schedule VI. Each one of those Articles makes it clear that the laws passed under those Articles are not to be deemed to be an amendment of the Constitution for the purpose of Article 368. Those laws cannot affect the basic features of the Constitution. They operate within narrow fields.

764. The learned Advocate-General of Maharashtra contended that Article 31C lifts the ban placed on the State Legislatures and Parliament under Articles 14, 19 and 31. It is true that there are several provisions in the Constitution which lift the ban placed by one or the other Article of the Constitution on the legislative power of the State Legislatures and Parliament e.g. Articles 15(4), 16(3), 16(4), 16(5), 19(2) to 19(6), 22(3), 22(6), 23(2)

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28(2), 31(4), 31(6) etc. Each one of these Articles lifts the limitations placed on the legislative power of the legislatures by one or more of the provisions of the Constitution particularly those contained in Part III. But when the limitation is so lifted, there will be

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no conflict between the law enacted and Article 13. In such a situation, there is no occasion for providing that the law enacted will not be deemed to be void notwithstanding anything contained in Article 13. The laws made under the provisions set out earlier cannot in their very nature take away any of the fundamental features of the Constitution. They can merely modify one or other of those features. Article 31C proceeds on the basis that the laws enacted under that Article are in conflict with Article 13 and are prima facie void. Otherwise there was no purpose in providing in that Article "Notwithstanding anything contained in Article 13, no law giving effect to the policy of the State towards securing the principles specified in Clause (b) or Clause (c) of Article 39 shall be deemed to be void on the ground that it is inconsistent with or takes away or abridges any rights conferred by Article 14, Article 19 or Article 31...." Hence the contention that limitations imposed by Articles 14, 19 and 31 on the legislative power of the Union and the States are lifted to the extent provided in Article 31C cannot be accepted.

765. It is true that there is some similarity between the laws made under Article 31A and those made under Article 31C. The scope of the latter article is much wider than that of the former. The character of the laws made under both those Articles is somewhat similar. It was urged that if laws made under Article 31-A, without more, are valid even if they take away or abridge the rights conferred under Articles 14, 19 and 31, for the same reason, laws made under Article 31C must also be held valid. It was contended, now that this Court has upheld the validity of Article 31-A, we should also uphold the validity of Article 31C. In that connection, reliance was placed on the following observations of Brandies J. of the United States Supreme Court in *Lesser v. Garnett* : 66

L. Ed. p. 595(511)=258 U.S.13.

This Amendment (19th Amendment) is in character and phraseology precisely similar to the 15th. For each the same method of adoption was pursued. One cannot be valid and the other invalid. That the 15th is valid...has been recognised and acted upon for half a century.... The suggestion that the 15th was incorporated in the Constitution not in accordance with law, but practically as a war measure which has been validated by acquiescence cannot be entertained.

766. These observations do not lay down any principle of law. The validity of the 19th

Amendment was upheld on various grounds and not merely because the 15th amendment was upheld.

767. The laws enacted under Article 31A by their very nature can hardly abrogate the

rights embodied in Articles 14, 19 and 31. Those laws can encroach upon the rights guaranteed under Articles 14, 19 and 31 only to the extent necessary for giving effect to them. The laws made must be those made under the topics of legislation mentioned in Article 31A. Hence the encroachment of the rights guaranteed under Article 14, 19 and 31 must necessarily be incidental. If the encroachment is found to be excessive, the same can be struck down. In this connection reference may be usefully made to the decision of this Court in *Akadasi Padhan v. State of Orissa* [1963] Supp. 2 S.C.R. 691. Therein the validity of a provision of a statute enacted under Article 19(6)(ii) i.e. law providing for State monopoly in Kendu Leaves, came up for consideration. The question for decision before the Court was whether that law can unreasonably encroach upon the right guaranteed under Article 19(1)(g). That question was answered by Gajendragadkar J. (as he then was) speaking for the Court, thus:

"A law relating to" a State monopoly cannot, in the context include all the provisions contained in the said law whether they have direct relation with the creation of the monopoly or not. In our opinion, the said expression should be construed to mean the law relating to the monopoly in its absolutely essential feature. If a law is passed creating a State monopoly, the Court should enquire what are the provisions of the said law which are basically and essentially necessary for creating the State monopoly. It is only those essential and basic provisions which are protected by the latter part of Article 19(6). If there are other provisions made by the Act which are subsidiary, incidental or helpful to the operation of the monopoly, they do not fall under the said part and their validity must be judged under the first part of Article 19(6). In other words, the effect of the amendment made in Article 19(6) is to protect the law relating to the creation of monopoly and that means that it is only the provisions of the law which are integrally and essentially connected with the creation of the monopoly that are protected. The rest of the provisions which may be incidental do not fall under the latter part of Article 19(6) and would inevitably have to

satisfy the test of the first part of Article 19(6).

768. The same principle was reiterated by the full Court in the Bank Nationalisation case.

769. As far back as in 1951 this Court ruled in State of Bombay and Anr. v. F.N. Balsara

[1951] S.C.R. 682 that merely because law was enacted to implement one of the Directive Principles, the same cannot with impunity encroach upon the Fundamental

Rights. The ratio of Akadasi Padhanâ™s case would be equally applicable in respect of the

laws made under Article 31A which speaks of the "law providing for the" topics mentioned therein. But that ratio cannot be effectively applied when we come to laws

made under Article 31C. The reach of Article 31C is very wide. It is possible to fit into

the scheme of that Article almost any economic and social legislation. Further, the Court

cannot go into the question whether the laws enacted do give effect to the policy set out in

Article 39(b) and (c). We were told on behalf of the Union and the States that it is open to

the courts to examine whether there is a nexus between the laws made under Article 31C

and Article 39(b) and (c) and all that the courts are precluded from examining is the

effectiveness of the law in achieving the intended purpose. But, such a power in its very

nature is tenuous. There can be few laws which can be held to have no nexus with Article

39(b) and (c). At any rate, most laws may be given the appearance of aiming to achieve

the objectives mentioned in Article 39(b) and (c). Once that facade is projected, the laws

made can proceed to destroy the very foundation of our Constitution.

Encroachment of

valuable Constitutional guarantees generally begins imperceptibly and is made with the

best of intentions but, once that attempt is successful further encroachments follow as a

matter of course, not perhaps with any evil motives, and may be, out of strong convictions regarding the righteousness of the course adopted and the objectives intended

to be achieved but they may all the same be wholly unconstitutional. Lord Atkin observed in Proprietary Articles Traders Association and Ors. v. Attorney General for

Canada and Ors. [1931] A.C. 311 at 317.

Both the Act and the sections have a legislative history which is relevant to the discussion. Their Lordships entertain no doubt that time alone will not validate an Act which when challenged is found to be ultra vires; nor will a history of a gradual series of advances till this boundary is finally crossed avail to protect the ultimate encroachment.

770. The observation of Lord Atkin "nor will a history of a gradual series of advances till

this boundary is finally crossed avail to protect the ultimate encroachment" is extremely

apposite for our present purpose. The First Amendment Act permitted enactment of Constitution breaking laws in respect of one subject; the Fourth Amendment Act enlarged

that field and permitted the Legislatures to make laws ignoring Articles 14, 19 and 31 in respect of five subjects. Now the Twenty-Fifth Amendment has finally crossed the boundary.

771. It cannot be said that under Article 31C Parliament merely delegated its own

amending power to State Legislatures and such a delegation is valid. The power conferred on Parliament under Article 368 in its very nature is one that cannot be

delegated. It is a special power to be exclusively exercised by Parliament and that in the

manner prescribed in Article 368. The State Legislatures are not institutions subordinate

to Parliament. Parliament as well as State Legislatures in their respective allocated fields

are supreme. Parliament cannot delegate its legislative powers-much less the amending

power-to the State Legislatures. The question whether the legislatures can confer power

on some other independent legislative body to exercise its legislative power came up for

consideration before the Judicial Committee in re The Initiative and Referendum Act

[1919] A.C. p. 935 at 945 P.C. Therein Viscount Haldane speaking for the Board observed:

Section 92 of the Act of 1867 (British North American Act) entrusts the legislative power in a Province to its legislature and to that legislature only. No doubt a body with a power of legislation on the subjects entrusted to it so ample as that enjoyed by a Provincial Legislature in Canada, could, while preserving its own capacity intact, seek the assistance of subordinate agencies, as had been done in *Hodge v. The Queen* 19 App. Cas. 117 the Legislature of Ontario was held entitled to entrust to a Board of Commissioners authority to enact regulations relating to Tavernes; but it does not follow that it can create and endow with its own capacity a new legislative power not created by the Act to which it owes its own existence. Their Lordships do no more than draw attention to the gravity of the Constitutional questions which thus arise.

772. In *Queen v. Burah*, (1878) 5 I.A. 178 at 194 the Judicial Committee observed:

Their Lordships agree that the Governor General in Council could not, by any form of enactment, create in India, and arm with general legislative authority, a new legislative power, not created or authorised by the Councilsâ™ Act.

773. We respectfully agree with these observations. From these observations it follows

that Parliament was incompetent to create a new power-a power to ignore some of the

provisions of the Constitution-and endow the same on the State Legislatures.

That power

was exclusively conferred on Parliament so that the unity and integrity of this country

may not be jeopardised by parochial considerations. The Constitution makers were evidently of the opinion that the sovereignty of the country, the democratic character of

the polity, and the individual liberties etc. would be better safeguarded if the amending

power is exclusively left in the hands of the Parliament. This exclusive conferment of

amending power on the Parliament is one of the basic features of the Constitution and the

same cannot be violated directly or indirectly. Article 31A made a small dent on this

feature and that went unnoticed. That provision is now protected by the principle of stare

decisis. Public interest will suffer if we go back on these decisions and take away the

protection given to many statutes. Now, to use the words of Lord Atkin in the Proprietary

Articles Traders Associationâ™s case, the â™boundary line has been crossedâ™ and a challenge

to the very basic conceptions of the Constitution is posed. Hence the neglect or avoidance

of the question in previous cases cannot be accepted as a sound argument.

774. In Queen v. Kirby and Ors. (1956) 94, C.L.R. 295 Dixon C.J. observed:

These cases, and perhaps other examples exist, do no doubt add to the weight of the general considerations arising from lapse of time, the neglect

or avoidance of the question in previous cases and the very evident

desirability of leaving undisturbed assumptions that have been accepted as

to the validity of the provisions in question. At the same time, the Court is not entitled to place very great reliance upon the fact that, in cases, before it where occasions might have been made to raise the question for

argument and decision, this was not done by any member of the Court and

that on the contrary all accepted the common assumption of the parties and

decided the case accordingly. Undesirable as it is that doubtful questions

of validity shouldâ™ go by default, the fact is that, the court usually acts

upon the presumption of validity until the law is specifically challenged.

775. Similar was the view expressed by Viscount Simonds speaking for the Judicial

Committee in Attorney-General of Commonwealth of Australia v. The Queen and Ors. 95, C.L.R. 529 at 547

It is therefore asked and no one can doubt that it is a formidable question, why for a quarter of a century no litigant has attacked the validity of this

obviously illegitimate unions. Why in Alexanderâ™s case (1918) 25, C.L.R.

434) itself was no challenge made ? How came it that in a series of cases,

which are enumerated in the majority and the dissentient, judgments it was

assumed without question that the provisions now impugned were valid ?

It is clear from the majority judgment that the learned Chief Justice and

the Judges who shared his opinion were heavily pressed by this consideration. It could not be otherwise. Yet they were impelled to their conclusion by the clear conviction that consistently with the Constitution the validity of the impugned provision could not be sustained. Whether the result would have been different if their validity had previously been judicially determined after full argument directed to the precise question and had not rested on judicial dicta and common assumption it is not for their Lordships to say. Upon a question of the applicability of the doctrine of stare decisis to matters of far reaching Constitutional importance they would imperatively require the assistance of the High Court itself. But here no such question arises. Whatever the reason may be, just as there was a patent invalidity in the original Act which for a number of years went unchallenged, so far a greater number of years an invalidity which to their Lordships as to the majority of the High Court has been convincingly demonstrated, has been disregarded. Such clear conviction must find expression, in the appropriate judgment.

776. The contention that Article 31C may be considered as an amendment of Article 368 is not tenable. It does not purport to be so. That Article does not find a place in Part XX of the Constitution. It is not shown as a proviso to Article 368, the only Article which deals with the amendment of the Constitution as such. Article 31C does not say that the powers conferred under that Article are available "notwithstanding anything contained in Article 368" or "notwithstanding anything in this Constitution". There is no basis for

holding that the Parliament intended that Article 31C should operate as an amendment of

Article 368. We have earlier come to the conclusion that the State Legislatures cannot be invested with the power to amend the Constitution.

777. If the purpose of Article 31C is to secure for the Government, the control of means of production in certain economic spheres exclusively or otherwise, the same can be

achieved by the exercise of legislative power under Article 31(2) or under Article 31(2)

read with Article 19(6)(ii). If on the other hand, the object is to reduce the existing economic disparity in the country, that object can be achieved by exercising the various

powers conferred on the legislatures under the Constitution, in particular by the exercise

of the power to tax, a power of the largest amplitude. That power can be exercised

without discriminating against any section of the people. One of the basic underlying

principles of our Constitution is that every governmental power, which includes both the

power of the executives as well as of the legislatures, must be so exercised as to give no

room for legitimate complaint, that it was exercised with an evil eye or an uneven hand.

778. For the reasons mentioned above, we hold that Article 31C permits the destruction

of some of the basic features of our Constitution and consequently, it is void.

779. Lastly, we come to the validity of the 29th Amendment Act, 1972.

Contentions

relating to the 29th Amendment Act of the Constitution lie within narrower limits. The

only plea taken was that if any of the provisions in the two Acts included in the IXth

Schedule to the Constitution by means of the 29th Amendment Act does not satisfy the

requirements of Article 31A(1)(a), the said provision does not get the protection of

Article 31-B.

780. As a result of the 29th Amendment Act, the Kerala Land Reforms (Amendment) Act, 1969, (Kerala Act 33 of 1969) and Kerala Land Reforms (Amendment) Act, 1971 (Kerala Act 25 of 1971) were added as items 65 and 66 in the IXth Schedule of the

Constitution. The IXth Schedule is an appendage to Article 31-B, which says:

Without prejudice to the generality of the provisions contained in Article 31A none of the Acts and Regulations specified in the Ninth Schedule nor any of the provisions thereof shall be deemed to be void, or ever to have become void, on the ground that such Act, Regulation or provision is inconsistent with or takes away or abridges any of the rights conferred by, any provisions of this Part and notwithstanding any judgment, decree or order of any court or tribunal to the contrary, each of the said Acts and Regulations shall, subject to the power of any competent Legislature to repeal or amend it, continue in force.

781. The learned Counsel for the petitioners did not challenge the validity of Article 31B.

Its validity has been accepted in a number of cases decided by this Court. His

only

contention was that before any Act or any provision in an Act, included in the IXth

Schedule can get the protection of Article 31B, the Act or the provision in question must

satisfy the requirements of one or the other of the provisions in Article 31A. For this

contention of his, he relied on the opening words of Article 31B namely "without prejudice to the generality of the provisions contained in Article 31A". He urged that, if

Article 31B had been an independent provision having no connection whatsoever with

Article 31A as contended on behalf of the contesting respondents, there was no occasion

for using the words referred to earlier in Article 31B. He also attempted to trace the

history of Articles 31A and 31B and establish that there is link between those two

Articles. Though there is some force in those contentions, the question of law raised is no

more res integra. It is concluded by a series of decisions of this Court and we see no

justification to reopen that question.

782. In State of Bihar v. Maharajadhiraja Sir Kameshwar Singh of Darbhanga and Ors.

[1952] S.C.R. 889 a contention similar to that advanced by Mr. Palkhivala was advanced

by Mr. Somayya. That contention was rejected by Patanjali Sastri C.J. speaking for the

Court with these observations:

Mr. Somayya, however, submitted that the opening words of Article 31-B, namely "Without prejudice to the generality of the provisions contained in Article 31A" showed that the mention of particular statutes in Article 31-B read with the Ninth Schedule was only illustrative, and that, accordingly, Article 31-B could not be wider in scope.. Reliance was placed in support of this argument upon the decision of the Privy Council in *Sibnath*

Banerji™s case. (1945) F.C.R. 195). I cannot agree with that view. There is nothing in Article 31-B to indicate that the specific intention of certain statutes was only intended to illustrate the application of the general words of Article 31-A. The opening words of Article 31-B are only intended to make clear that Article 31-A should not be restricted in its application by reason of anything contained in Article 31-B and are in no way calculated

to restrict the application of the latter article or of the enactments referred to therein to acquisition of "estates".

783. In Vishweshwar Rao v. The State of Madhya Pradesh (1952) S.C.R. 1020 Mahajan

J. (as he then was) reiterated the same view. He observed:

It was contended that Article 31-B was merely illustrative of the rule stated in Article 31-A and if Article 31-A had no application, that article also should be left out of consideration....

On the basis of the similarity of the language in the opening part of Article 31-B with that of Sub-section (2) of Section 2 of the Defence of India Act "without prejudice to the generality of the provisions contained in Article 31-A", it was urged that Article 31-B was merely illustrative of Article 31A and as the latter was limited in its application to estates as defined therein, Article 31-B was also so limited. In my opinion, the observations in Sibnath Bannerjee's case far from supporting the contention raised, negatives it. Article 31-B specifically validates certain Acts mentioned in the Schedule despite the provisions of Article 31-A, but stands independent of it. The impugned Acts in this situation qua the acquisition of the eight malguzari villages cannot be questioned on the ground that it contravenes the provisions of Article 31(2) of the Constitution or any of the other provisions of Part III.

784. A similar view was expressed by this Court in N.B. Jeejeebhoy v. Assistant Collector, Thana Prant. Thana [1965] 1, S.C.R. 636 Therein Subba Rao J. (as he then

was) speaking for the Court observed thus:

The learned Attorney General contended that Article 31-A and Article 31B should be read together and that if so read Article 31-B would only illustrate cases that would otherwise fall under Article 31-A and, therefore, the same construction as put upon Article 31-B should also apply to Article 31-A of the Constitution. This construction was sought to be based upon the opening words of Article 31-B, namely "without prejudice to the generality of the provisions contained in Article 31-A". We find it difficult to accept this argument. The words "Without prejudice to the generality of the provisions" indicate that the Acts and regulations specified in the Ninth Schedule would have the immunity even if they did not attract Article 31-A of the Constitution. If every Act in the 9th Schedule would be covered by Article 31-A, this article would become redundant. Indeed, some of the Acts mentioned therein, namely, items 14 to 20 and many other Acts added to the 9th Schedule, do not appear to relate to estates as defined in Article 31-A(2) of the Constitution. We, therefore, hold that Article 31-B is not governed by Article 31A and that Article 31B is a Constitutional device to place the specified statutes beyond any attack on the ground that they infringe Part III of the Constitution....

785. Several other decisions of this Court proceed on the basis that Article 31-B is

independent of the Article 31A. It is too late in the day to reopen that question. Whether

the Acts which were brought into the IXth Schedule by the 29th Amendment Act or any

provision in any of them abrogate any of the basic elements or essential features of the

Constitution can be examined when the validity of those Acts is gone into.

786. For the foregoing reasons, we reject the contention of the petitioners that before an

Act can be included in the IXth Schedule, it must satisfy the requirements of Article 31A.

787. In the result we hold:

(1) The power to amend the Constitution under Article 368 as it stood

before its amendment empowered the Parliament by following the form and manner laid down in that Article, to amend each and every Article and each and every Part of the Constitution.

(2) The expression "law" in Article 13(2) even before Article 13 was amended by the 24th Amendment Act, did not include amendments to the Constitution.

(3) Though the power to amend the Constitution under Article 368 is a very wide power, it does not yet include the power to destroy or emasculate the basic elements or the fundamental features of the Constitution.

(4) The 24th Amendment Act did not enlarge the amending power of the Parliament. It merely made explicit what was implicit in the original Article. Hence it is valid.

(5)(A) The newly substituted Article 31(2) does not destroy the right to

property because (i) the fixation of "amount" under that Article should have reasonable relationship with the value of the property acquired or requisitioned;

(ii) the principles laid down must be relevant for the purpose of arriving at the "amount" payable in respect of the property acquired or requisitioned;

(iii) the "amount" fixed should not be illusory and

(iv) the same should not be fixed arbitrarily.

5(B) The question whether the "amount" in question has been fixed arbitrarily or the same is illusory or the principles laid down for the determination of the same are relevant to the subject matter of acquisition or requisition at about the time when the property in question is acquired or requisitioned are open to judicial review. But it is no more open to the court to consider whether the "amount" fixed or to be determined on the basis of the principles laid down is adequate.

(6) Clause 2(b) of the 25th Amendment Act which incorporated Article 31

(2B) is also valid as it did not damage or destroy any essential features of the Constitution.

(7) Clause (3) of the 25th Amendment Act which introduced into the Constitution Article 31C is invalid for two reasons i.e. (1) it was beyond the amending power of the Parliament in so far as the amendment in question permits destruction of several basic elements or fundamental features of the Constitution and (2) it empowers the Parliament and the State Legislatures to pro tanto amend certain human freedoms guaranteed to the citizens by the exercise of their ordinary legislative power.

(8) The 29th Amendment Act is valid but whether the Acts which were brought into the IXth Schedule by that Amendment or any provision in any of them abrogate any of the basic elements or essential features of the Constitution will have to be examined when the validity of those Acts is gone into.

In the circumstances of the case we direct the parties to bear their own costs in these cases uptill this stage.